

Detailed Resettlement Plan

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Cambodia: Livable Cities Investment Project

Bavet: Wastewater Management, Stormwater Drainage and Solid Waste Management Subprojects

Prepared by the Ministry of Public Works and Transport with the assistance of consultants under the guidance and direction of the General Department of Resettlement of the Ministry of Economy and Finance for the Royal Government of Cambodia and Asian Development Bank.

CURRENCY EQUIVALENTS¹

(as of 22 October 2024)

Currency unit – riel (KR)

KR1.00 = \$0.00024

\$1.00 = KR 4062

ABBREVIATIONS

ADB	– Asian Development Bank
AH	– Affected Household
AHH	– Affected Household Head
AP	– Affected Person
BRP	– Basic Resettlement Plan
COD	– Cut-off Date
COI	– Corridor of impact
CW	– Civil Works
DCSC	-- Design and Construction Supervision Consultant
DED	– Detailed Engineering Design
DIMDM	– Department of Internal Monitoring and Data Management
DMS	– Detailed Measurement Survey
DRP	– Detailed Resettlement Plan
EM	– Entitlement Matrix
GDR	– General Department of Resettlement
GMS-SECTDP	– Greater Mekong Subregion Southern Economic Corridor Towns Development Project
GRC	– Grievance Redress Committee
GRM	– Grievance Redress Mechanism
IOL	– Inventory of Losses
IR	– Involuntary Resettlement
IRC	– Inter- Ministerial Resettlement Committee
IRP	– Income Restoration Program
LCIP	– Livable Cities Investment Project
LAR	– Land Acquisition and Resettlement
MEF	– Ministry of Economy and Finance
MLMUPC	– Ministry of Land Management, Urban Planning and Construction
MPWT	– Ministry of Public Works and Transport
MRF	Materials Recovery Facility
PGRC	– Provincial Grievance Redress Committee
PCM	– Public Consultation Meeting
PIB	– Public Information Brochure
PIU	– Project Implementation Unit
PMU	– Project Management Unit
PRSC	– Provincial Resettlement Sub-Committee
RGC	– Royal Government of Cambodia
RCS	– Replacement Cost Study
RD3	– Resettlement Department 3
ROW	– Right of Way
SES	– Socio-Economic Survey
SOP	– Standard Operating Procedures
SPS	– Safeguard Policy Statement
SWM	– Solid Waste Management

¹ Source: National Bank of Cambodia

WG	– Working Group
WWTP	– Wastewater Treatment Plant

NOTE

In this report ‘\$’ refers to US dollars.

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DEFINITION OF TERMS²

Affected Household	– In the case of an affected household (AH), it includes all displaced/affected persons residing under one roof and operating as a single economic unit, who are adversely affected by the Project or any of its components.
Affected Persons	– In the context of involuntary resettlement, affected persons are those who are physically displaced (relocation, loss of residential land, or loss of shelter) and/or economically displaced (loss of land, assets, access to assets, income sources, or means of livelihoods) as a result of (i) involuntary acquisition of land, or (ii) involuntary restrictions on land use or on access to legally designated parks and protected areas.
Compensation	– Refers to payment in cash or in kind for an asset or resource that is acquired or affected by a Project at the time the asset needs to be replaced. All compensation is based on the principle of replacement cost, which is the method of valuing assets to replace the loss at current market rates, plus any transaction costs such as administrative charges, taxes, registration and titling costs. In applying this method of valuation, depreciation of structures and assets should not be considered.
Corridor of Impact	– (i) Permanent. Is the area which is required to be permanently acquired by GDR for easement of the civil works and their unhindered operation & maintenance (O&M) in the future, and it is agreed and demarcated by the executing agency (EA). The exact location of the permanent boundaries of the easement may be required for formal confirmation of boundaries in the cadastral records. (ii) Temporary. Is the area within which the temporary construction activities and movements of equipment will take place during the Project implementation. The extent of the area is somewhat dependent on the types of construction method and machinery used by the contractor. Such impacts and associated remedial measures and costs are typically borne by the contractor at his own expenses depending on the contractual details.
Consultation	– A process that (i) begins early in the Project preparation stage and is carried out at different stages of the Project and land acquisition and involuntary resettlement cycle; (ii) provides timely disclosure of relevant and adequate information in Khmer Language that is understandable and readily accessible to AP; (iii) is undertaken in an atmosphere free of intimidation or coercion with due regard to cultural norms; and (iv) is gender inclusive and responsive, and tailored to the needs of disadvantaged and vulnerable groups; enables to consider the incorporation of all relevant views of affected people and other stakeholders into decision making, such as Project design, mitigation measures and implementation issues.
Cut-off date	– This refers to the date after which people will not be eligible for compensation or assistance. Those persons occupying or using the Project prior to the identified date are eligible to be categorized as AHs and to receive compensation and/or assistance. Persons not covered in the census are not eligible for compensation and other entitlements unless they can show proof that (i) they have been inadvertently missed out during the census and the inventory of losses (IOL); or (ii) they have lawfully acquired the affected assets subsequent to the completion of the census and the IOL and before the conduct of the detailed measurement survey (DMS).

² The definition of terms is the same as those of the September 2021 approved Basic Resettlement Plan.

Detailed Measurement Survey	--	With the aid of detailed engineering design, this activity involves the finalization of the inventory of losses, severity of losses, measurement of additional losses, and 100% coverage of Socioeconomic Survey and 100% census of APs.
Displaced Persons (DPs)	--	In the context of involuntary resettlement, DPs are those who are physically displaced (relocation, loss of residential land, or loss of shelter) and/or economically displaced (loss of land, assets, access to assets, income sources, or means of livelihoods) as a result of (i) involuntary acquisition of land, or (ii) involuntary restrictions on land use or on access to legally designated parks and protected areas. The SPS uses the term ‘affected person’ (AP) in a broader sense in the context of consultations, disclosure, and grievance redress mechanism that includes persons not directly affected by an ADB Project. However, the EA understands and uses the term AP as what the SPS calls DP. Accordingly, the term AP is used in this DRP.
Economic Displacement	--	Refers to loss of land, assets, access to assets, income sources, or means of livelihood because of (i) involuntary acquisition of land, or (ii) involuntary restrictions on land use or on access to legally designated parks and protected areas.
Eligibility	--	Refers to any person or persons, household, firm, private or public institution who has settled in the Project area before the cut-off date, that (i) loss of shelter, (ii) loss of assets or ability to access such assets, permanently or temporary, or (iii) loss of income sources or mean of livelihood, regardless of relocation will be entitled to be compensation and/or assistance
Entitlement	--	Refers to a range of measures comprising compensation, income restoration support, transfer assistance, relocation support, etc. which are due to the APs, depending on the type and severity of their losses, to restore their economic and social base.
Grievance Redress Mechanism	--	Refers to an established mechanism to receive and facilitate the resolution of affected persons’ concerns and grievances/ complaints about physical and economic displacement and other Project impacts, paying particular attention to the impacts on vulnerable groups.
Income Restoration	--	Refers to re-establishing productive livelihood of the APs to enable income generation equal to or, if possible, better than that earned by the APs before the resettlement or of pre-Project levels.
Inventory of Losses	--	This is the process where all fixed assets (i.e. lands used for residence, commerce, agriculture, including ponds; dwelling units; stalls and shops; secondary structures, such as fences, tombs, wells; trees with commercial value; etc.) and sources of income and livelihood inside the Project right-of-way are identified, measured, their owners identified, their exact location pinpointed, and their replacement costs calculated. Additionally, the severity of impact to the affected assets and the severity of impact to the livelihood and productive capacity of APs will be determined.
Involuntary Resettlement	--	Refers to when displaced persons have no right to refuse land acquisition by the state that result in their displacement which occurs when land is acquired through (i) expropriation by invoking the eminent domain power of the state, or (ii) land is acquired through negotiated settlement when the pricing is negotiated, and the failure will result in expropriation through invoking the eminent domain of power of the state.

Land Acquisition	- Refers to the process whereby individual, household, firm or private institution is compelled by a public agency to alienate all or part of the land it owns or possesses to the ownership and possession of that agency for public purposes in return for compensation at replacement costs.
Major Impacts	- Refers to AHs who will (i) lose 10% or more of their total productive land and/or assets; (ii) have to relocate; and/or (iii) lose 10% or more of their total income sources due to the Project.
Negotiated Settlement	- Negotiated settlements is used to avoid expropriation and eliminate the need to use involuntary resettlement. The Government can acquire land and other assets through a negotiated settlement, based on meaningful consultation with affected persons, including those without legal title to assets. A negotiated settlement will offer adequate and fair price for land and/or other assets. The Government will ensure that any negotiations with displaced persons openly address the risks of asymmetry of information and bargaining power of the parties involved in such transactions. For this purpose, the Government can engage an independent external party to document the negotiation and settlement processes.
Physical Displacement	- Refers to relocation, loss of residential land, or loss of shelter because of (i) involuntary acquisition of land; or (ii) involuntary restrictions on land use or on access to legally designated parks and protected areas.
Relocation	- This is the physical relocation of a displaced person from their pre-project place of residence and/or business.
Replacement Cost	- Replacement cost involves replacing an asset at a cost prevailing at the time of its acquisition. This includes fair market value, transaction costs, interest accrued, transitional and restoration costs, and any other applicable payments, if any. Depreciation of assets and structures should not be taken into account for replacement cost. Where there are no active market conditions, replacement cost is equivalent to delivered cost of all building materials, labor cost for construction, and any transaction or relocation cost. Where land market conditions are absent or in a formative stage, the APs and host populations will be consulted with to obtain adequate information about recent land transactions, land value by types, land titles, land use, cropping patterns and crop production, availability of land in the Project area and region, and other related information.
Replacement Cost Study	- This refers to the process involved in determining replacement costs of affected assets and land and performed by an independent qualified national consultant (firm or individual) with necessary expertise to carry out asset valuation.
Resettlement Plan	- This is a time-bound action plan, with budget, setting out the resettlement objectives and strategies, entitlements the income and livelihood restoration strategy, institutional arrangements, monitoring and reporting framework, budget, and implementation schedule. The outline Resettlement Plan is in Annex to Appendix 2 of the ADB Safeguard Policy Statement (2009).
Right-of-Way	- It is a government owned strip of land following a centerline (such as for roads, canals, etc.) providing an area of access.

- Vulnerable Groups³ - These are distinct groups of APs who are likely to be more adversely affected than others and who are likely to have limited ability to reestablish their livelihoods or improve their status and specifically include:
- (i) all the household living below the national poverty rate established by the Government⁴;
 - (ii) female headed households with dependents living below the national poverty rate,
 - (iii) disabled household heads,
 - (iv) elderly headed households who are landless and with no other means of support,
 - (v) landless poor living below the national poverty rate, and
 - (vi) indigenous people or ethnic minorities (who often have traditional land rights but no formal titles).
- Willing Buyer Willing Seller - Process where the Government purchases a property from private owner with a fair market value, which a willing seller approves. In the arrangement neither party is being under any compulsion to buy or to sell and both having reasonable knowledge of relevant facts, and eminent domain is not used

³ The group is classified under Sub-decree No. 291 ANKr. BK on Identification of Poor Households issued with ID Poor Cards by Royal Government of Cambodia

⁴ This includes squatters and those without land titles. The national poverty rate applied is \$70.58/month/capita.

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Executive Summary

A. Project and Subproject Descriptions

1. The Livable Cities Investment Project (LCIP), financed by the Asian Development Bank (ADB), aims to support the Royal Government of Cambodia (RGC) in promoting long-term sustainable growth and enhancing urban livability in secondary cities in Cambodia. The Project will address key environmental and infrastructure challenges, thereby facilitating both economic development and improved living conditions for residents. Outputs include: (i) Output 1: policy and regulatory environment improved; (ii) Output 2: urban infrastructure improved; and (iii) Output 3: institutional effectiveness, and governance improved. Only activities under Output 2 will result in land acquisition and involuntary resettlement (LAR).

2. The Project will improve access to urban infrastructure through (i) construction of a wastewater treatment plant and sewerage network in Bavet and Poipet, and the expansion of the sewerage network in Kampot; (ii) rehabilitation of existing canals and construction of new stormwater drains in Bavet and Poipet; and (iii) construction of landfills, including sorting of solid waste and composting plants, in Bavet and Poipet. The Project at approval was classified Category B for involuntary resettlement (IR) impacts. Three Basic Resettlement Plans (BRPs) for the subprojects in Bavet, Poipet and Kampot were prepared and disclosed on the ADB website in September 2021. This detailed resettlement plan (DRP) is only for Bavet Subprojects for the affected assets and resettlement assistance acquired under expropriation.

3. In Bavet there are two (2) Subprojects namely: (i) CW-BAV-01: Wastewater Treatment Plant (WWTP) and Conveyance Network and Stormwater Drainage Network and (ii) CW-BAV-02: Solid Waste Management (SWM) System. The outputs for CW-BAV-01 Subproject include (i) construction of a sewerage network comprising a WWTP with a capacity of 3,930 m³/day, and 1,522 household connections; (ii) 9.6 km of new or rehabilitated drainage network, and (iii) sorting and composting plant with a controlled landfill of 516,305 m³ capacity with waste collection vehicles. The outputs of CW-BAV-02 Subproject include (i) construction and operation of a SWM landfill, land gas collection and flaring, leachate collection, transfer and storage, construction of support facilities (office, security guard house, weighbridge, parking lots, fencing, administrative and service buildings, a materials recovery facility (MRF), compost bay, wash bay), internal access road network, sewerage and storm water systems. It also includes the rehabilitation of an access road of 4,816 m from the Junction of National Road 1 to Chark Mtes Village. **Table 1** summarizes the detailed scope of work under the Subprojects.

Table 1: Summary of detailed Scope of Works under the Subprojects

No.	Subproject Name	Component Descriptions
1	CW-BAV-01: Wastewater Treatment Plant and Conveyance Network and Stormwater Drainage Network Subproject	The wastewater component will include the construction of: • Sewerage collection: 34.106km primary lines, 23.251km secondary line, corridor of impact (COI) 2.4 - 3.3 m* • Force main: 7.628km, COI 2.4 - 3.3 m • Pumping stations: 4 stations • Connection to the centralized system (after pre-treatment) for SEZs located in areas served by the sewer network. The component will cover villages of Bavet Leu, Bavet Kandal, Chrak Leav, Ta Boeb and Ta Pov in Sangkat Bavet. The WWTP component will include the construction of: • WWTP treatment capacity 5,444 m³/day above flood levels using waste stabilization pond treatment (Anaerobic Ponds + Facultative Ponds + Maturation Ponds). Site size: 13.86 ha • Construction of administration building, workshop, generator building and guardhouse

		• Upgrading of the existing canal for treated effluent discharge The WWTP will be located at Thnanh Village, Sangkat Bati, Bavet. The stormwater drainage network component will include the construction of: • Open canal: 5.812km, COI 1.6 - 3.3 m** • Box culvert concrete pipelines: 1.397km, COI 6.27 - 11.27 m • U-drains in the not yet built-up area: 1.0 km • Outfalls: 2 (no buffer zones required) The stormwater drainage network will cover Sangkat (Bavet)
2	Solid Waste Management System Subproject	The SWM system component will include the construction of: • Sorting plant, composting plant, controlled landfill area (capacity 516,305m³ gas treatment plant, materials recovery facility, internal road network, - Site size: 20.0468 ha) • Construction of administrative and amenity building, service building and shelter, potable water facility. parking area. • Improvement of the door-to-door waste collection system in the urban area • Centralized collection system including eight collection points. • Surfacing of 4.176km of access road The SWM System Subproject will be located at Chrok Mtes village, Sangkat Chrok Mtes, Bavet

* COI varies depending on width of pipe to be installed and installation depth, both which directly impact top width of working ditch.

** COI varies depending on design capacity required for storm water flow and possible depth of canal to maintain effective flow velocities. Existing width of open canals varies considerably depending on their current condition. Source: Detailed Engineering design Consultants.

B. Summary of Scope of Land Acquisition and Resettlement Impacts

4. Based on the Detailed Measurement Survey (DMS) conducted from 19 June to 30 August 2024 a total of 74 Affected Households (AHs)/286 affected persons (APs) will be impacted by the two (2) Subprojects. No AH is physically displaced, 74 AHs are economically displaced as they encounter partial or marginal economic impacts, and no AH is both physically and economically displaced. The Subprojects IR impacts include: 4,569.68 m² of unused private agricultural land of 7 AHs, 528.80 m² of residential land of 3 AHs, state-owned land in the corridor of impact (COI) within the right-of-way (ROW) which is not compensated and therefore was not measured during the DMS, 41.08 m² of partially affected primary structures of 4 AHs; 712.10 m, 722.01 m² and 11 Nos. of secondary structures of 23 AHs, 29 AHs and 11 AHs respectively and 216 trees of 45 AHs (48 fruit trees of 37 AHs and 168 non-fruit trees of 44 AHs). The fruit and non-fruit trees are not planted and grown for commercial use. There are no major impacts, no permanent loss of livelihoods and no relocation of any AH to another site however, there will be partial impacts to 1 shop and 2 fixed stalls of 3 AHs who will also have temporary disruptions during construction. **Table 2** summarizes the LAR impacts by type for the Subprojects.

Table 2: Summary of Land Acquisition and Involuntary Resettlement by Impact Type

No.	Impact Type	Quantity (Measurement units)
1	Affected Households/Affected Persons	74 AHs/286 APs
2	State-owned Land	Impacted in the ROW.
3	Loss of Land Use (state-owned land)	None
4	Loss of Unused Private Agricultural Land	4,569.68m ² of 7 AHs
5	Loss of Residential Land	528.80m ² of 3 AHs
6	Main Structures (house, shops and stalls)	41.08m ² of 4 AHs
7	Secondary Structures	712.10m, 722.01m ² and 11 Nos. of 23 AHs, 29 AHs and 11 AHs respectively
8	Crops	None
9	Trees	216 of 45 AHs
10	Public Facilities	None
11	Loss of Business Income	1 shop of 1 AH and 2 fixed stalls of 3 AHs/13 APs
12	Major Impacts	None
13	Income Restoration Program	None
14	Relocation	None

Source: DMS Data, 19 June to 30 August 2024

C. Socio Economic Information and Profile

5. The socioeconomic survey (SES) was conducted simultaneously with detailed DMS with a total of 74 AHs comprising 62 (83.78%) male and 12 (16.22%) female headed households. These figures represent 100.00% of the AHs impacted by the Subprojects. Female-headed households may face unique challenges in terms of resettlement and access to income restoration programs (IRPs), and specific measures, such as targeted livelihood support, will be provided to ensure their full participation in the compensation process.

6. The 74 AHs include a total of 286 affected persons (APs) comprising 140 (48.95%) males and 146 (51.05%) females. The majority or 30 (40.54%) affected household heads (AHH)s are aged 31-45 years followed by 23 (31.08%) aged 46-60 years, 18 (24.32%) aged 61-80 years, 2 (2.70%) aged 20-30 years and 1 (1.35%) aged over 80 years. A total of 66 (89.19%) AHHs are married, 7 (9.46%) are widowed, and 1 (1.35%) is unmarried. All 74 (100.00%) AHHs are Khmer. In terms of educational attainment, 72 (97.30%) AHHs completed some form of education with 27 (36.49%) completing primary school, 41 (55.41%) completing secondary school, 2 (2.70%) completing high school and 2 (2.70%) completing a university degree. The remaining 2 (2.70%) AHHs reported no formal education. Of the 286 persons affected by the Subproject, 18 (6.29%) are under 5 years old, 43 (15.03%) are 5-16 years, 49 (17.13%) are 17-25 years, 102 (35.66%) are 26-45 years, 51 (17.83%) are 46-65 years and 23 (8.04%) are over 65 years. For main sources of livelihood reported, 39 (52.70%) AHs earn income from the private sector, 21 (28.38%) earn income from trade/own business, 8 (10.81%) earn income from agriculture, fishing and forestry, 3 (4.05%) earn income from the government sector, and 2 (2.70%) earn income from daily/casual labor, with 1 (1.35%) AH who reported no household income, holds an ID poor card and receives a monthly allowance from the government. In total, 49 AHs (66.22%) also reported having secondary sources of income. For annual household incomes, 3 (4.05%) AHs declared earning under \$3,000, 12 (16.22%) declared earning \$3,000 - \$4,999, 16 (21.62%) declared earning \$5,000 - \$6,999, 22 (29.73%) declared earning \$7,000 - \$9,999 and 21 (28.38%) declared earning \$10,000 or more. During the DMS/SES interviews, 1 AH with 2 APs was identified as poor and vulnerable based on the criteria established by the RGC.

D. Consultation, Participation and Information Disclosure

7. This DRP has been prepared in consultation with the key local and national stakeholders, including the local leaders and their communities, local authorities, and

particularly the AHs living in the Subproject areas. Prior to DMS, two (2) public consultation meetings (PCMs) were conducted on 19 June 2024 with 36 participants out of which 13 or 36.00 were females. This was followed by one-on-one interviews with each AH from 19 June to 30 August 2024 to complete the DMS/SES with 100.00% of the AHs being consulted. The consultations were gender inclusive and special attention was made to ensure the participation of women and the poor and vulnerable group of AHs. All efforts have been made to register the concerns of the AHs and incorporate their suggested mitigating measures into this DRP.

8. Prior to the PCMs and during one-on-one interviews, the public information brochure (PIB), grievance redress mechanism (GRM) guidelines and the DMS questionnaire were made available in Khmer to the AHs, read out, and explained in detail by the IRC-WG and PRSC-WG. The updated PIB included the entitlements, GRM, and the contact details of focal persons of the grievance redress committee (GRC) for AHs to lodge complaints at commune, district, GDR and provincial levels. The AHs were informed that the GRM was established at all levels and was operational to address any issues, concerns and grievances arising from the Subprojects.

9. Upon approval by the Inter-ministerial Resettlement Committee (IRC) and ADB, this DRP will be uploaded on the ADB and Ministry of Public Works and Transport (MPWT) websites. Information disclosure will continue throughout the DRP implementation. The summary of the DRP for the Subprojects and the updated PIB in Khmer, will be sent to provincial authorities, commune and village officials and posted in accessible public places such as pagodas, village halls or commune halls.

E. Grievance Redress Mechanism

10. The GRM was established by the Provincial Governor on 03 June 2024 to ensure that the AHs' grievances and complaints on land acquisition, compensation, and resettlement are addressed in a timely and satisfactory manner. The GRM procedures were included in the updated PIB and were shared with all the AHs, read out and explained in detail during the PCMs and house-to-house DMS/SES. Therefore, all the AHs were made fully aware of their rights, and the detailed procedures for filing grievances. The grievance redress procedure for the Subprojects will be conducted in three steps as outlined in the RGC's Standard Operating Procedures (SOP) for LAR for Externally Financed Projects in Cambodia (February 2018) and the September 2021 approved BRP. There are no fees or charges levied on the AH for the lodgment and processing of the complaints under the First, Second and Third Steps. Handling of the complaint in GRM ends at the Third Step, since the Fourth Step is the last resort for the APs to submit their case to the appropriate court of law in Cambodia for resolution under the judicial system. Such court actions will be at the cost of the APs. The updated PIB included the contact details of the GRC focal persons. The GDR conducted a comprehensive training workshop for the Provincial Grievance Redress Committee (PGRC) and the other local authorities to strengthen the capacity of the members for effective functioning of the GRM on 18 July 2024. The GRM has been operationalized and is fully functional.

F. Legal and Policy Framework

11. This DRP for the Subprojects is prepared in compliance with the Cambodian existing laws and regulations and the ADB's safeguard requirements on IR under the Safeguard Policy Statement (SPS), adhering to the resettlement principles and procedures outlined in the September 2021 approved BRP. The RGC's 2010 Expropriation Law is the main legal framework that governs LAR. The 2010 Expropriation Law has listed the development of public infrastructure as one of its objectives and extended the definition of public infrastructure to any infrastructure "required by the Nation in accordance with the determination made by the Government." Public interest is also understood in a broad manner as "the use of land or property by the public or by public institutions or their agents." The expropriation of the ownership of immovable property and real right to immovable property can be exercised only

if the Expropriation Committee has paid fair and just compensation in advance to the owner and/or holder of real right.

12. Under the Article 3 of the 2010 Expropriation Law that governs the provision for projects financed by development partners in Cambodia, the RGC issued in 2018 the SOP for LAR.⁵ which reflects the RGC's laws and regulations relating to the acquisition of land, the involuntary resettlement of APs and the safeguard policies and procedures of Development Partners as applied to public infrastructure investment projects. Where appropriate, the SOP includes references to good international practices in resettlement planning, implementation, monitoring, and reporting. The SOP has been promulgated under Sub Decree No. 22 ANK/BK on 22 February 2018 and applies to all externally financed projects in the Kingdom of Cambodia. The General Department of Resettlement (GDR) of the Ministry of Economy and Finance (MEF) is responsible for providing guidance and clarification to users of the SOP. Given that the subprojects under the Project are funded by the ADB, the provisions of the SOP will apply to the Bavet Subprojects and therefore should be read together with this DRP.

G. Eligibility, Assistance and Benefits

13. All the AHs will be entitled to compensation based on the entitlement matrix (EM) in September 2021 approved BRP which has been updated in this DRP as applicable based on the results of the DMS. The entitlements comprise (i) loss of unused private agricultural land and residential land; (ii) partial loss of primary structures; (iii) loss of secondary structures; (iv) loss of fruit and non-fruit trees; (v) partial impact on business; (vi) support to vulnerable AHs; (vii) temporary impacts and (viii) unanticipated impacts. The compensation for lost assets is based on the principle of replacement cost as determined by an independent consultant. The Replacement Cost Study (RCS) was conducted by an independent firm from 18 June-28 August 2024, which established the current market rates for affected assets and other resettlement assistance.

14. The cut-off date (COD) for eligibility applied for the subprojects was set at 12 September 2020, the date of the completion of public consultations conducted with AHs, and local authorities during the feasibility study. Any person who settles in the subproject areas or builds new structures or expands existing structures after the COD will not be entitled for compensation and resettlement assistance under the subprojects. The information regarding the COD has been included in the PIB which was distributed to the AHs during the first public consultation meeting at the feasibility study stage. The PIB written in Khmer, with the information on the COD was also posted in the commune and village meeting halls and the office of the community chief, and other accessible public places such as pagodas.

15. An EM and its applications included in this DRP covers the compensation and types of assistance to be provided to the AHs whose affected structures and trees will be impacted. The EM has been developed in line with principles of the SOP and the ADB SPS, and in consultation with and agreed on by the AHs, local authorities, and the MPWT during the BRP and DRP preparations. The affected assets of AHs will be compensated at full replacement cost.

H. Resettlement Budget

16. All resettlement costs, including compensation and allowances, operational and administrative costs, monitoring, and reporting will be financed from the Government's national budget and no financing from the ADB loan will be required. The is estimated at \$287,921.10. This includes: (i) \$214,882.48 as compensation for affected unused private agricultural land, residential land, partially affected primary and secondary structures, affected trees, loss of business income, vulnerable allowance, and transport allowance; (ii) \$19,393.00 for consulting services for RCS; (iii) \$32,223.37 for administrative costs; (iv) \$21,482.25 of

⁵ Accessible at https://www.mef.gov.kh/documents/laws_regulation/LAR-SOP-Final-13032018.pdf

contingency amount. The budget has been estimated based on the results of the DMS, RCS, and approved detailed engineering design (DED).

I. Institutional Arrangements

17. The Subprojects will be implemented by the MPWT as the executing agency through the Project Management Unit (PMU), which will support MPWT in undertaking overall oversight and management of the Project. It will be supported by Design and Construction Supervision Consultants (DCSC) to ensure that procedures are followed, and the implementation schedules are kept on track. However, under the oversight of the IRC, the GDR of the MEF, through its Resettlement Department 3 (RD3), will be the lead agency directly responsible for planning, updating, implementing, monitoring and reporting of LAR activities under the DRP. At the provincial level, the MPWT and IRC Working Group (WG) are assisted by the PGRC, Provincial Resettlement Sub-Committee (PRSC) and PRSC-WG. A Project Implementation Unit (PIU) has been set up within the Provincial Department of Public Works and Transport (PDPWT) has been set up in Svay Rieng Province to work with the IRC-WG and PRSC-WG in guiding, supporting, and endorsing the works under the Bavet Subprojects.

J. Implementation Schedule

18. All resettlement activities under the subprojects will be coordinated with the civil works schedule. The implementation of DRP will commence after the approval of the DRP by the IRC and cleared by ADB, and the resettlement budget approved by the MEF. While the compensation payments have already been paid to the 24 AHs for the land acquired under negotiated settlement arrangements, the compensation payments will be carried out for the remaining 74 AHs, in two (2) months. The MPWT will not allow construction activities at affected sites until all resettlement activities have been satisfactorily completed, compensation to all AHs has been paid, and the site is free of all encumbrances. However, construction that is confined to the COI and where there are no AHs will proceed based on an agreement between MPWT and ADB.

K. Monitoring and Reporting

19. Internal Monitoring: The Department of Internal Monitoring and Data Management (DIMDM) of GDR will undertake regular internal monitoring. The objective of internal monitoring is to (i) measure and report on the progress in the preparation and implementation of the DRP; (ii) identify problems and risks, if any, and the measures to mitigate them; and (iii) assess if the compensation and rehabilitation assistance are in accordance with the provisions under the DRP. A semi-annual resettlement safeguards monitoring report will be prepared by DIMDM and submitted to ADB for review and disclosure on the ADB's website.

20. External Monitoring: The Subprojects are classified Category B for IR as they include IR impacts that are not deemed significant and therefore, no external monitoring is required.

I. Project Description

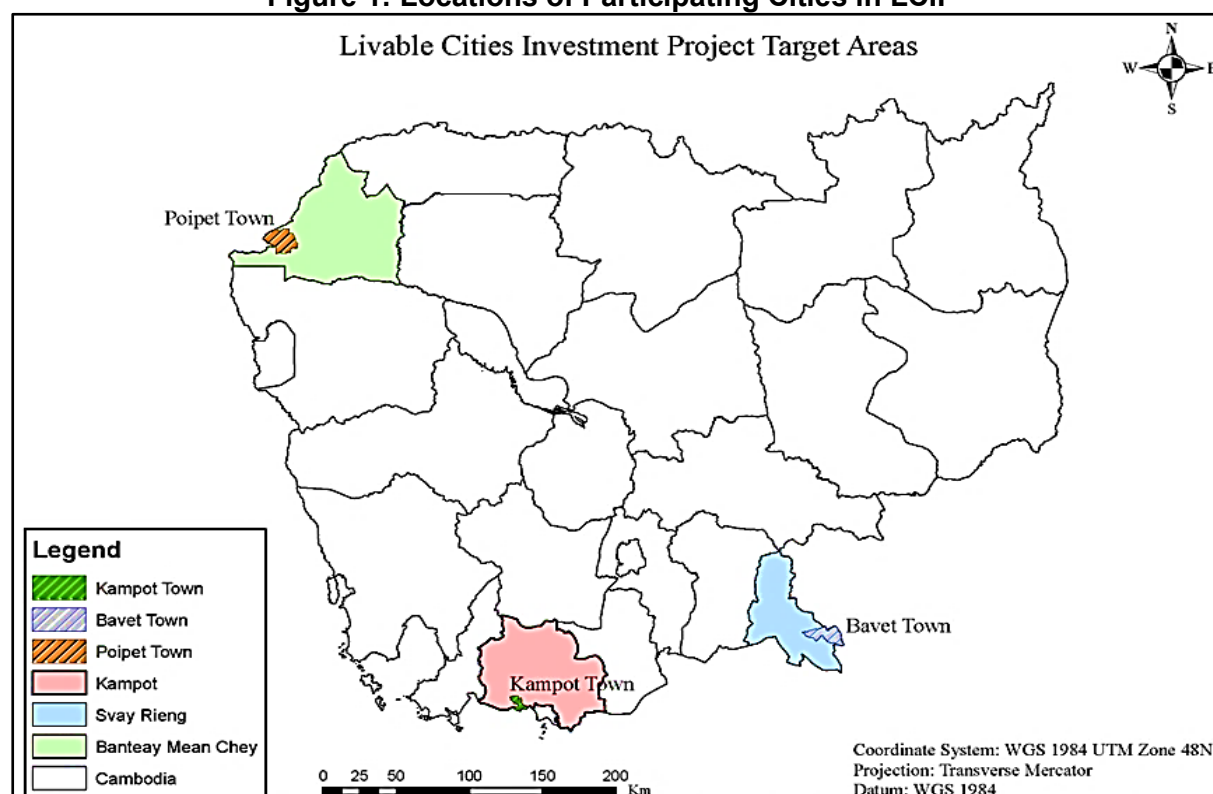
1.1 General Description of the Project

21. The Project: Livable Cities Investment Project (LCIP) is being financed by the Asian Development Bank (ADB) and will assist the Royal Government of Cambodia (RGC) to facilitate long-term sustainable and economic growth through improving the environment of secondary cities in Cambodia. The Project outputs include: (i) Output 1: policy and regulatory environment improved; (ii) Output 2: urban infrastructure improved; and (iii) Output 3: institutional effectiveness, and governance improved. Only activities under Output 2 will result in land acquisition and resettlement (LAR).

22. The Project will support the inclusive and sustainable development of the secondary cities of Bavet, Kampot, and Poipet by providing: (i) 26,850 people with access to improved wastewater services; (ii) 91,130 people with benefits from improved solid waste management services, (iii) 23,960 people with benefits from reduced flooding through improved urban stormwater and drainage systems; and (iv) capacity development to strengthen the institutional capacity of the municipal administration in the operations and maintenance of public services.

23. The Project will improve access to urban infrastructure through (i) construction of a wastewater treatment plant and sewerage network in Bavet and Poipet, and the expansion of the sewerage network in Kampot; (ii) rehabilitation of existing canals and construction of new stormwater drains in Bavet and Poipet; and (iii) construction of landfills, including sorting and composting plants, in Bavet and Poipet. The locations of the 3 participating cities are shown in **Figure 1**.

Figure 1: Locations of Participating Cities in LCIP



Source: DSC Consultants

24. Specifically, the Project will have five civil works (CW) contract packages that will undergo detailed engineering designs (DEDs) and will be subject to updated involuntary resettlement impact screening. The DEDs for (a) CW-BAV-01: Bavet Wastewater Treatment Plant (WWTP) and Conveyance Network and Stormwater Drainage Network Subproject and (b) CW-BAV-02: Bavet Solid Waste Management (SWM) System Subproject have been completed for which this DRP has been prepared. A Basic Resettlement Plan (BRP) for the Bavet Subprojects was prepared during the feasibility stage and approved in September 2021. **Table 3** summarizes the detailed scope of work under the Subprojects.

Table 3: Summary of Detailed Scope of Work Under the Subprojects

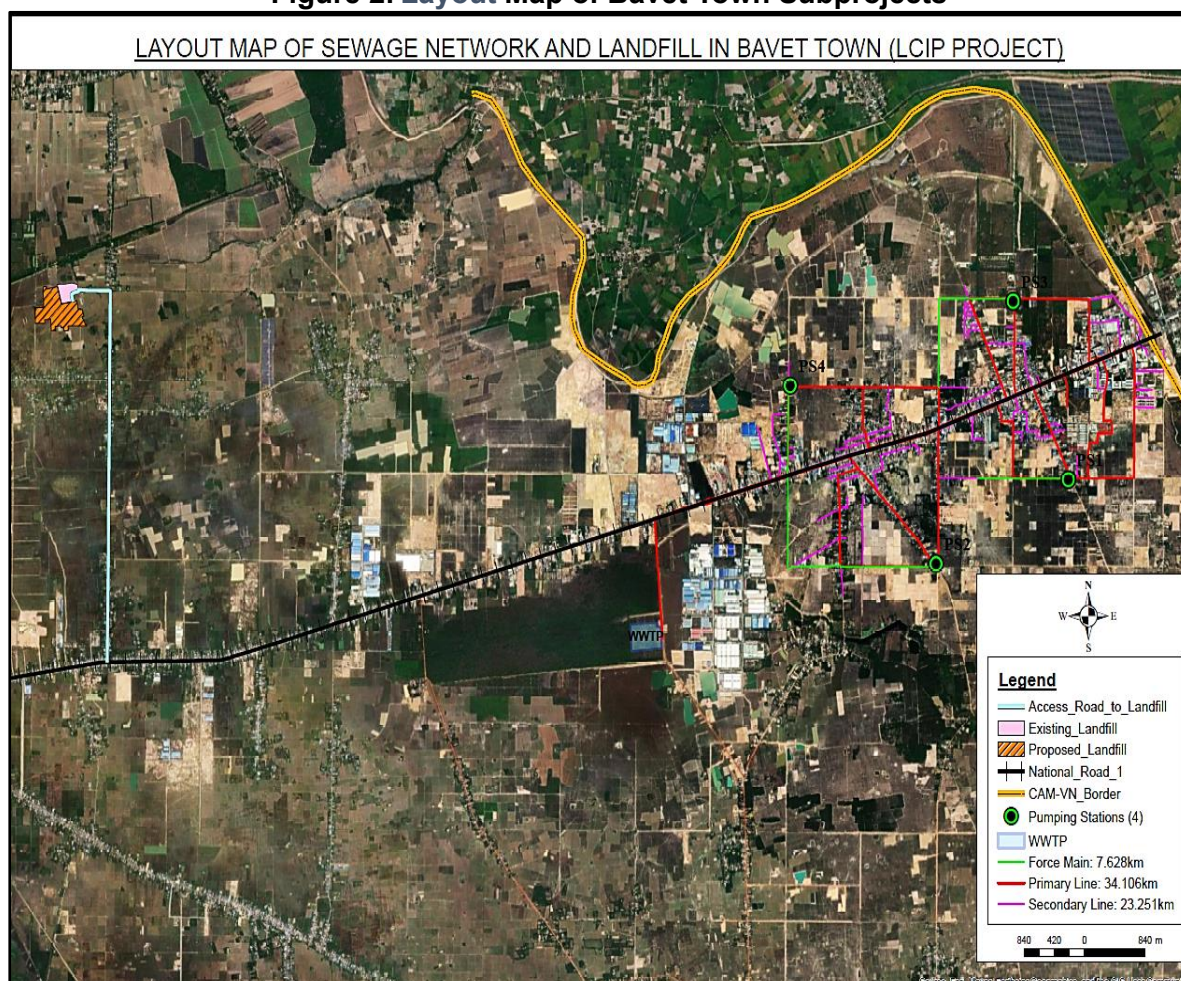
No.	Subproject Name	Component Descriptions
1	CW-BAV-01: Wastewater Treatment Plant and Conveyance Network and Stormwater Drainage Network Subproject	The wastewater component will include the construction of: • Sewerage collection: 34.106km primary lines, 23.251km secondary line, corridor of impact (COI) 2.4 - 3.3 m* • Force main: 7.628km, COI 2.4 - 3.3 m • Pumping stations: 4 stations • Connection to the centralized system (after pre-treatment) for SEZs located in areas served by the sewer network.
		The component will cover villages of Bavet Leu, Bavet Kandal, Chrak Leav, Ta Boeb and Ta Pov in Sangkat Bavet.
		The WWTP component will include the construction of: • WWTP treatment capacity 5,444 m³/day above flood levels using waste stabilization pond treatment (Anaerobic Ponds + Facultative Ponds + Maturation Ponds). Site size: 13.86 ha • Construction of administration building, workshop, generator building and guardhouse • Upgrading of the existing canal for treated effluent discharge
		The WWTP will be located at Thnanh Village, Sangkat Bati, Bavet.
2	Solid Waste Management System Subproject	The stormwater drainage network component will include the construction of: • Open canal: 5.812km, COI 1.6 - 3.3 m** • Box culvert concrete pipelines: 1.397km, COI 6.27 - 11.27 m • U-drains in the not yet built-up area: 1.0 km • Outfalls: 2 (no buffer zones required)
		The stormwater drainage network will cover Sangkat (Bavet)
		The SWM system component will include the construction of: • Sorting plant, composting plant, controlled landfill area (capacity 516,305m³ gas treatment plant, materials recovery facility, internal road network, - Site size: 20.0468 ha) • Construction of administrative and amenity building, service building and shelter, potable water facility. parking area. • Improvement of the door-to-door waste collection system in the urban area • Centralized collection system including eight collection points. • Surfacing of 4.176km of access road
		The SWM System Subproject will be located at Chrok Mtes village, Sangkat Chrok Mtes, Bavet

* COI varies depending on width of pipe to be installed and installation depth, both which directly impact top width of working ditch.

** COI varies depending on design capacity required for storm water flow and possible depth of canal to maintain effective flow velocities. Existing width of open canals varies considerably depending on their current condition. Source: DED Consultants.

25. The outputs for Bavet Subproject are the following; (a) construction of a sewerage network comprising of a WWTP with a capacity of 3,930 m³/day, and 1,522 household connections; (b) 9.6 km of new or rehabilitated drainage network; and (c) sorting and composting plant with a controlled landfill of 516,305 m³ capacity with waste collection vehicles. All these Subproject components are in Bavet Town. The Layout Map of Bavet Town are shown in **Figure 2**.

Figure 2: Layout Map of Bavet Town Subprojects



Source: Draft DED Report, Volume I, February 2024

1.2 Proposed WWTP and Conveyance Network and Stormwater Drainage Network

26. At present, there is no sewerage system in Bavet. Most household wastewater is discharged directly into existing drainage canals or open fields without any treatment. Currently, Manhattan and Tai-Seng economic zones have their own WWTP (stabilization ponds type treatment system). Furthermore, the domestic wastewater network of Manhattan and Tai Seng Special Economic Zones are to be connected to the sewerage network (not to the industrial wastewater flow).

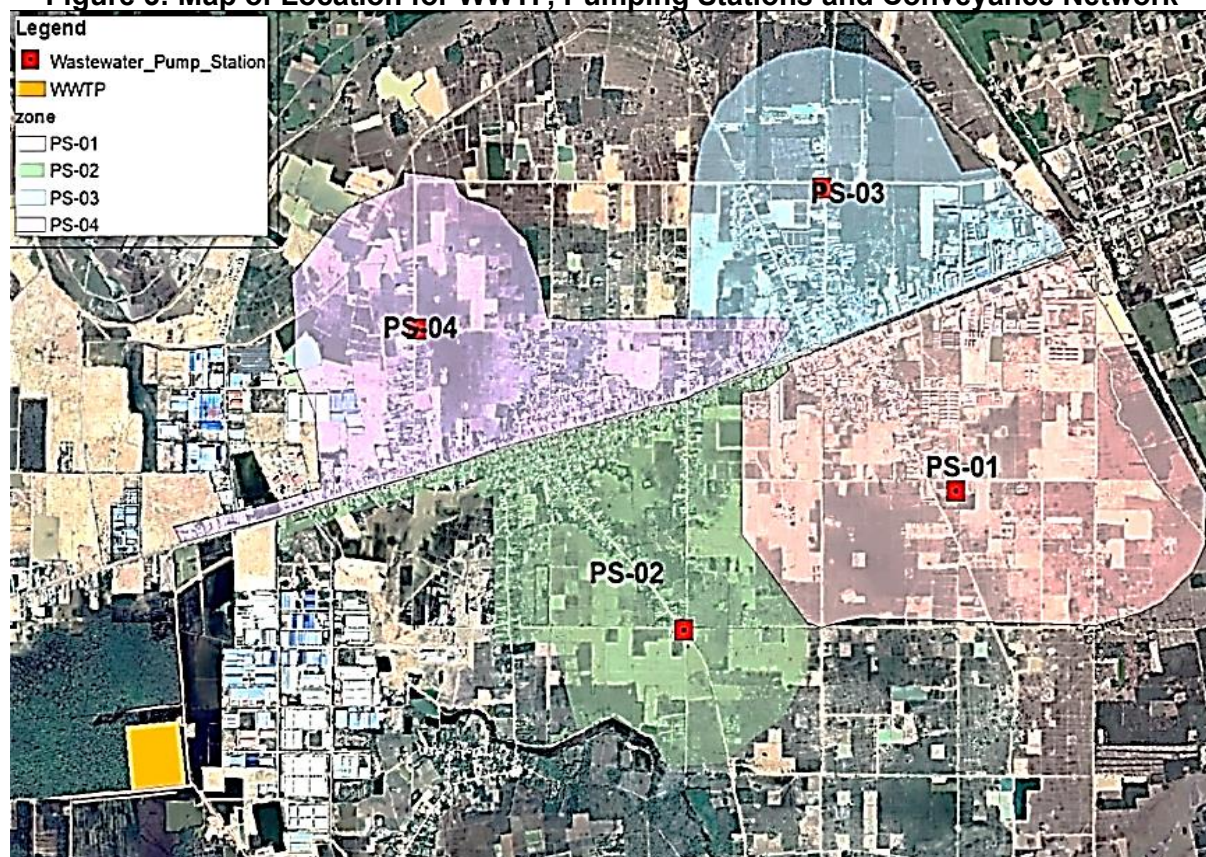
27. The Project builds on stormwater drainage system and material recovery facility (MRF) developed by Greater Mekong Subregion Southern Economic Corridor Towns Development Project by extending the stormwater drainage network, as well as the expansion of the solid waste management service. A 20 ha land for the WWTP site and land for pumping station No. 2 (1,358 m² located in Sangkat Kandal) was acquired under the Greater Mekong Subregion Southern Economic Corridor Towns Development Project (GMS-SECTDP) and the lands were handed over to the Ministry of Public Works and Transport (MPWT) on 04 May 2018

and 31 May 2018, respectively (**Annex 1** and **Annex 2**). However, there is no overlap between the two projects as the implementation of the former project has been completed.

28. The preliminary engineering designs prepared during the feasibility study stage have been optimized and adapted to the client request to prepare the DEDs. Investment works to be implemented under the Project are detailed in Table 3.

29. The proposed WWTP is in Trapeang Phlong Village, Bati Sangkat, and Bavet Municipality, accessible through a 1.5 km road from National Road 1. This existing access road is a newly rehabilitated paved road and is in very good condition. Originally, the handover letter to the Svay Rieng province for the WWTP was 20 ha. However, since the GMS-SECTDP was completed without using the land, when LCIP started, only 13.6 ha is available with the rest of the land already allocated to other uses (see **Annex 3**). **Figure 3** illustrates the Map of the location of the WWTP, Pumping Stations and Conveyance Network.

Figure 3: Map of Location for WWTP, Pumping Stations and Conveyance Network

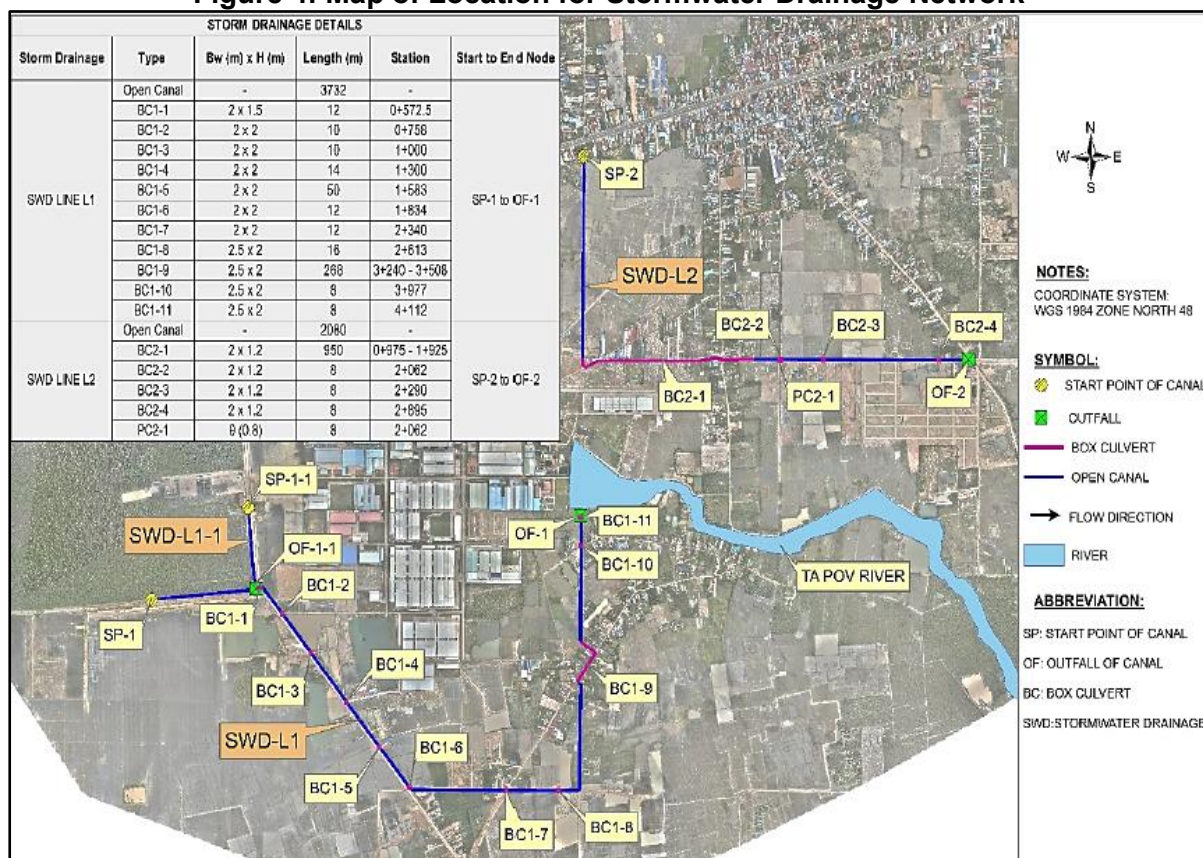


Source: Draft DED Report, Volume I, February 2024

30. The investments work covers the central area of the Bavet commune; however, the DED has incorporated planning aspects for the future expansion to the sewage and stormwater drainage systems and the WWTP.

31. A separate stormwater drainage system toward the Ta Pov River has been designed to complement the stormwater drainage system executed under the GMS-SECTDP, Urban Road Subproject on National Road 1 and other works undertaken by the municipality of Bavet.

Figure 4: Map of Location for Stormwater Drainage Network



Source: Draft Detailed Engineering Design Report, Volume I, February 2024

32. The stormwater drainage system consists of two (2) lines (**Figure 4**): Gravity Primary Drainage Line 1 (indicated in Figure 4 as SWD-L-1) and The effluent from the outfall of WWTP flows from the canal at the east part of the WWTP to an open pond connected to Ta Pov River. The main components of drainage are the earthen trapezoidal canal, reinforced concrete slope protection of transition, box culvert, pipe drain inlet, manhole and outfall structure.

33. Gravity Primary Drainage Line 2 (indicated in Figure 4 as SWF-L-2): The flow collected from National Road 1 and the rainfall surface run off from the surrounding areas are collected to Primary Drainage Line 2 and are then discharged into the outlet (existing main canal) which was constructed in 2023. The main components of drainage are the earthen trapezoidal canal, reinforced concrete protection of transition, box culvert, curb inlet, manhole and outfall structure. In addition, in the area from station 0+000 m to 0+950 m, the force mains will be installed along the canal. This area is flooded during the rainy season. Line 2 will drain this area allowing the operator to access and maintain the force mainly during rainy season.

1.3 Solid Waste Management System Subproject

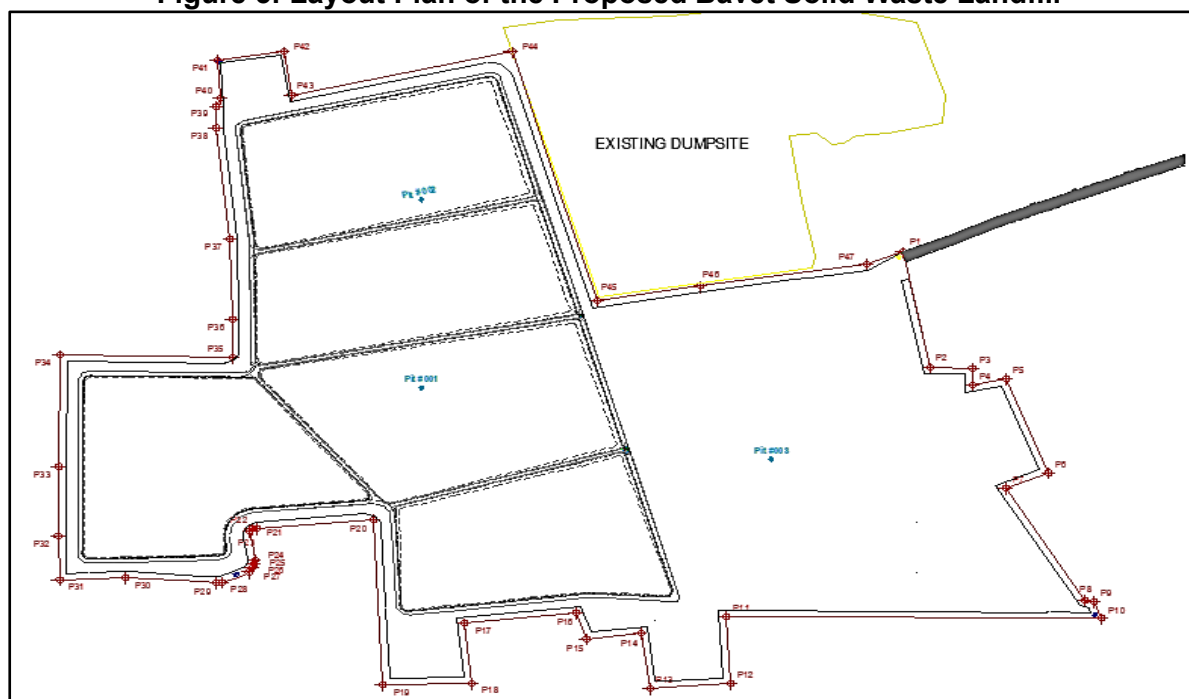
34. For the SWM Landfill, a landfill will be constructed as part of the Bavet Subproject. Under the existing arrangements, the SWM in Bavet Town is inadequate, characterized by low coverage, lack of sanitation awareness, and an open, unsanitary dumpsite. The Subproject will address these problems by expanding the quality and coverage of solid waste collection and treatment services and develop a SWM landfill site. The proposed SWM landfill includes infrastructure allowing simple and future full scale Waste Recovery Facility, combining a MRF and a composting plant for current reduced organic waste treatment.

35. The landfill site is located 15 km from the center of Bavet in the Chrok Mtes commune and is accessible from the south National Road 1 towards north on an existing 4.9 m access road. The landfill includes an area of 20.0468 ha of unused private agricultural land. The site

is relatively remote, 300 m away from the next residential property. The landfill location is surrounded by the existing uncontrolled dumpsite in the north-east and from unproductive agriculture land. The site is bound in the west by an existing field and includes stormwater drains towards the north and northern located canal.

36. The Subproject components include construction and operation of a sanitary landfill, land gas collection and flaring, leachate collection, transfer and storage, construction of support facilities (office, guard house, weighbridge, parking lots, fencing, administrative and service buildings, MRF, composting bay, washing bay), internal access road network, sewerage and stormwater systems.

Figure 5: Layout Plan of the Proposed Bavet Solid Waste Landfill



Source: DED CW-BAV-02, October 2023

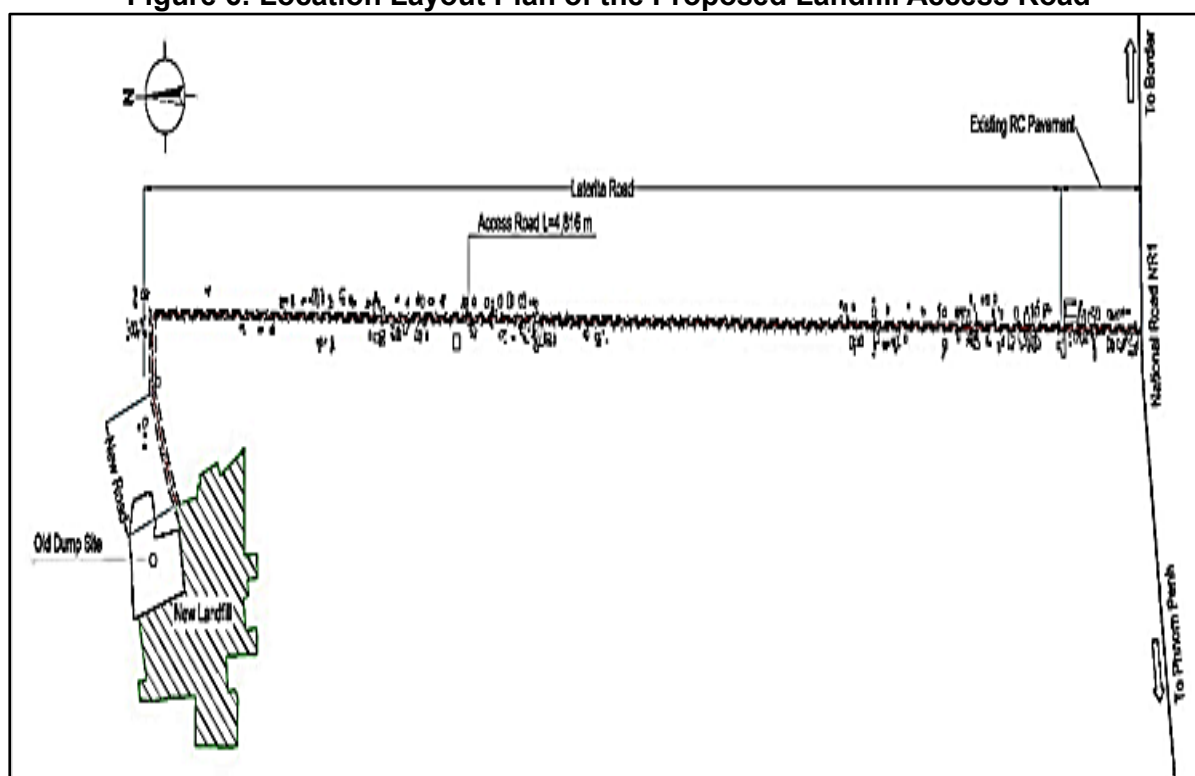
37. Access Road – The access road starts at the junction of National Road 1 and the village road of Chrok Mtes Village, Sangkat Chrok Mtes up to the junction of the existing road going to the proposed landfill with a total length of 4,816 m. The first section of 350 m is village road that has an existing reinforced concrete pavement followed by a 4,176 m laterite road that will be upgraded into a reinforced concrete road. The total length of the village road that will be improved is 4,526 m, which has a right of way (ROW) of 30 m (15 m each side from the centerline).

38. The proposed access road (**Figure 6**) turns right going to the existing dumpsite. Upon turning right, the first 75 m is on an existing access road used by the dumpsite operator which is also part of an irrigation canal ROW of 15 m from the center of the canal. After the first 75 m, the proposed access road veers to the left through private agricultural land or about 215 m until the access road reaches the proposed landfill. The scope of works for the access road are the following:

- Type of pavement reinforcement concrete, Width 5 m, 1 m of shoulder.
- Total length 4,816 m with improvement 350 m of existing concrete pavement; 4,176 m upgrade from laterite road to RC road; and 290 m for new road.
- Provide storm drainage system, pipe culvert Dia.0.80 m, Entrance to household pipe culvert.

- Provide crossing structures: box culvert (1.5 m x 1.75 m), crossing pipe culvert Dia.0.8m and some part with open channel.

Figure 6: Location Layout Plan of the Proposed Landfill Access Road



Source: DED CW-BAV-02, October 2023

1.4 Measures Taken to Minimize Resettlement Impacts

39. The following measures were undertaken by the MPWT/ Project Management Unit (PMU), Design and Construction Supervision Consultant (DCSC), local authorities, and communities to avoid or at least minimize LAR impacts caused by the following components;

- **WWTP and Conveyance Network.** There were six (6) pumping stations proposed for the wastewater conveyance network during the feasibility study. The coverage of some of these pumping stations were reconfigured (pumping station optimization) with the neighboring pumping station resulting into only four (4) pumping stations, thus eliminating the two (2) pumping stations and resulting in the reduction of the resettlement impacts.
- There were several potential sites of the WWTP identified during the feasibility study which were evaluated by the DED team not only for their technical viability but also on the potential involuntary resettlement impacts. The WWTP site is now confirmed in a 13.8 ha site next to the existing MRF owned by the provincial government. The site was previously administered by the Ministry of Agriculture, Forestry and Fisheries but was handed over to the provincial government of Svey Rieng. The site is on public land, thus eliminating the need to acquire around 15 ha of private land identified during the feasibility study.
- The sizes of the diameters of pipes for both the wastewater and stormwater conveyance network were evaluated and reduced without affecting efficiency of the systems. These size adjustments will reduce the temporary corridor of impact (COI) during construction, which includes the actual width of the trench plus the working area.

- **Storm Drainage Network.** The stormwater conveyance network was designed to use as much as possible the existing drainage canals administered by the Ministry of Water Resources and Meteorology. This was one of the considerations on the selection of the WWTP site which is beside an open canal.
- The stormwater conveyance network made use of manholes to change the direction of water instead of curving gradually on narrow corners, to avoid acquiring private lands located in road corners. The use of this technical solution reduced land acquisition of private land.
- **Solid Waste Management System.** The SWM Landfill site was acquired through negotiated settlement based on para. 16 of the BRP, avoiding the expropriation process.
- The original and proposed access road starts from the junction of National Road 1 and continues for around 3,300 m up to the junction going to Chrok Mtes Village. The original road alignment turns right, passing through Chrok Mtes Village and then turns right to the proposed landfill. The proposed access road continues straight for another 1,050 m and then turns left going to the existing dumpsite. The realignment of the access road made the route shorter and reduced the land area to be acquired.

II. Scope of Land Acquisition and Resettlement

2.1 Subproject Impact

40. The objective of involuntary resettlement (IR) is wherever possible to avoid and if unavoidable, minimize LAR impacts by exploring subproject and design alternatives, to enhance, or to at least restore, the livelihoods of all affected persons (APs) to pre-subproject levels and to improve the standards of living of the displaced poor and vulnerable groups. The improvements under the Subprojects will involve private land acquisition and physical work will be carried out in the existing road alignments within the ROW. No affected household (AH) will be physically displaced and relocated to another site, no AH will experience major impacts, and no AH will be eligible for the income restoration program (IRP). The Inventory of Losses (IOL) carried out as part of the Detailed Measurement Survey (DMS) identified loss of state-owned land for widening of the access road for which no measurements were recorded as state owned land is not compensated, loss of unused private agricultural and residential land, loss of some trees, partial loss of primary structures and secondary structures COI. There will be some temporary disruptions to the businesses of the affected shop and fixed stalls during construction and the AHs will also be compensated for loss of income for shifting back the partially affected structures. The DMS data highlights that although the access road improvements and the pumping stations will have some impact on several AHs/APs, the magnitude of impact is minor.

2.2 Cut-off Date

41. The cut-off date (COD) was set at 12 September 2020 which was the date of the first round of public consultations. The COD was also confirmed with a letter from MPWT to Svay Rieng Provincial authorities (**Annex 4**). As per COD letter, the Provincial Officials of Svay Rieng were responsible to ensure strict compliance of the established COD, and that close coordination amongst local offices within the municipality will be undertaken on the monitored and controlled issuance of new building and land use permits within the vicinity of the Subprojects. The information about the COD was disseminated throughout the Subproject areas during DMS/ socio-economic survey (SES).

2.3 Methodology

42. The final DED and COI for the Subprojects were submitted by MPWT to the General Department of Resettlement (GDR) on 10 May 2024. The DMS/SES was conducted from 19 June to 30 August 2024. During the demarcation of the COI and DMS/SES, the scale of the IR impact assessment on land and other physical assets was carried out with the AHs by the Inter-ministerial Resettlement Committee (IRC) Working Group (WG), Provincial Resettlement Sub-Committee (PRSC) WG, Project Implementation Unit (PIU), PMU and DED Consultants, with the assistance of local authorities. The IR impact assessment was completed via a transect walk-through of the entire stretch of the Subprojects demarcated COI and during the measurements of the affected assets, with the AHs and local authorities being informed on the resettlement impacts. Prior to DMS, the updated public information brochure (PIB) that included the entitlements, grievance redress mechanism (GRM) and contact details of the GRM focal persons, DMS questionnaire and a copy of GRM guidelines was made available to the AHs and read out and explained in detail. This was explained to individual AHs again during house-to-house consultations, DMS/SES, and measurement of affected assets. The DMS/SES was conducted with the AHs so that they could confirm the loss of assets and measurements and fully understand the basis on which the compensation will be paid for the lost assets and other entitlements.

43. For the Subprojects, the COI was defined and all assets within COI, such as land (by type), primary and secondary structures, shops, stalls, and other assets such as fruit and non-fruit trees were measured and recorded. The IRC-WG, PRSC-WG and PIU measured the areas of affected land and structures, identified their types of materials, and assessed the

viability of the remaining structures for continued use. They identified the types of trees impacted and their productive ages, and crops. The SES included information on 100.00% of the AHs and was conducted in parallel with the DMS using the DMS questionnaire which contained questions on the demographic and socioeconomic profiles of 74 AHs/286 APs.

2.4 Replacement Cost Study

44. The compensation for lost assets is based on the principles of replacement cost determined by an independent consultant. Under a competitive tendering process, the IRC/GDR engaged an independent local consulting firm qualified and experienced in asset valuation to conduct and complete the replacement cost study (RCS) from 18 June 2024 - 28 August 2024.

2.5 Detailed Resettlement Plan

45. This detailed resettlement plan (DRP) records and covers the affected land and assets under the Subprojects acquired under Expropriation Law. The DRP has been prepared in consultation with the key local and national stakeholders, including the local leaders and their communities, local authorities, and the AHs living in the Subproject areas.

2.6 Impact Assessment

(i) Impact on AHs

46. A total of 74 AHs/286 APs will experience impacts from the Subprojects. No households will face physical displacement, all 74 AHs will be economically displaced, and no households will experience both physical and economic displacement. **Table 4** summarizes the impact on AHs.

Table 4: Summary of Impacts on AHs

Category of Impact	No. of AHs
Physically Displaced	0
Economically Displaced	74
Physically and Economically Displaced	0
Total	74

Source: DMS Data, 19 June to 30 August 2024.

(ii) Impact on Land Type

47. The Subprojects will impact unused private agricultural land, private residential land and public land. A total of 4,569.68 m² of unused private agricultural land of 7 AHs and 528.80 m² of private residential land of 3 AHs will be affected. The remaining areas are viable for continued use. The public land in the ROW will be impacted from the widening of the access road to the SWM Landfill site. The affected public land in the ROW has not been measured and recorded during the DMS as public lands are not compensated. The ROW has been registered by the Cadastral Office. There is no leased, rented or customary land (indigenous people) affected. There is no loss of productive land use on private or public land. **Table 5** summarizes the impact by component and land type.

Table 5: Summary of Impact by Component and Land Type

Subproject Component	Land Type	Total AHs	Total Area of private Land Holdings of AHs (m ²)	Affected Area by Subproject (m ²)	% Remaining for Continued Use
SWM (Access Road)	Used Private Agricultural	-	-	-	-
	Unused Private Agricultural	6	70,201.00	4,169.68	94.06
	Residential	1	1,306.00	6.80	99.48
	Public Land /ROW	-	-	-	-
Subtotal 1		7*	71,507.00	4,176.48	

Stormwater	Used Private Agricultural	-	-	-	-
	Unused Private Agricultural	-	-	-	-
	Residential	-	-	-	-
	Public Land /ROW	-	-	-	-
Subtotal 2		-	-	-	-
WWTP (Pumping Stations)	Used Private Agricultural	-	-	-	-
	Unused Private Agricultural	1	9,418.00	400.00	95.75
	Residential	2	13,537.00	522.00	96.14
	Public Land /ROW	-	-	-	-
Subtotal 3		3	22,955.00	922.00	
Total per Land Type	Used Private Agricultural	-	-	-	-
	Unused Private Agricultural	7	79,619.00	4,569.68	94.26
	Residential	3	14,843.00	528.80	96.44
	Public Land /ROW	-	-	-	-

Source: DMS Data, 19 June to 30 August 2024.

48. A total of 4,569.68 m² of unused private agricultural land will be lost from the construction of the Subprojects. This includes 4,169.68 m² of unused private agricultural land for SWM Landfill (access road) component and 400.00 m² of unused private agricultural land for WWTP (pumping station) component. **Table 6** summarizes loss of unused private agricultural land.

Table 6: Summary of Loss of Unused Private Agricultural Land

Subproject Component	Private Agricultural Land			Agricultural Land used within the ROW			Total of Agricultural Land		
	AHs	APs	m ²	AHs	APs	m ²	AHs	APs	m ²
SWM (Access Road)	6	26	4,169.68				6	26	4,169.68
Stormwater	-	-	-	-	-	-	-	-	-
Wastewater	1	4	400.00	-	-	-	1	4	400.00
Total	7	30	4,569.68	-	-	-	7	30	4,569.68

Source: DMS Data, 19 June to 30 August 2024.

2.7 Impacts on Structures

49. A total of 41.08 m² of primary structures will be partially affected. The Stormwater Subproject will partially impact on a single primary structure (house) of 5.50 m² of 1 AH while the SWM Landfill Subproject (access road) will partially impact on 1 shop and 2 fixed stalls of 35.58 m² of 3 AHs. The partially affected house has sufficient space for continued living and the AH has sufficient land to extend the house. The shop and fixed stalls will shift back from the COI and have land for the reconstruction of their partially affected structures. There will be loss of business income from shifting back and temporary disruptions to their businesses during construction. **Table 7** summarizes the partial impacts on primary structures

Table 7: Summary of Partial Impacts on Primary Structures

Subproject Component	Affected Structure	Unit	Quantity	AHs
Stormwater	Partially affected house	m ²	5.50	1
SWM Landfill	Shops/Stalls	m ²	35.58	3
	Total	m²	41.08	4

Source: DMS Data, 19 June to 30 August 2024

50. The partial impacts on the secondary structures are summarized in **Table 8**. Under the SWM Subproject (access road) the impacts include 410.60 m of concrete posts and various types of fences with different materials for posts of 16 AHs, 220.86 m² extended eaves, brick fences with/out plasters and a retaining wall of 16 AHs and 9 Nos. of spiritual houses of various sizes associated with handrails, statue, retaining wall and stairs made of various types of materials of 9 AHs. Under the Stormwater Subproject, the partial impacts on secondary structures include 241.00 m barbed wires fences with wooden posts of 6 AHs 483.15 m² of storage shelter, kitchen, shelter, extended eaves, brick fences with plaster and normal

pavement of 12 AHs, one water tank of 1 AH. Since all the structures are partially affected, they will shift back on their available private lands adjacent to the ROW. All affected structures will be compensated as per the entitlement matrix (EM).

Table 8: Summary of Partial Impacts on Secondary Structures

Subproject Component	Affected Structure	Unit	Quantity	AHs
SWM Landfill (Access Road)	Concrete Posts (0.4m*0.4m)	m	20.00	2
	Fence, Wooden Post with wooden Bared	m	71.40	4
	Fence, Wooden Post with Bamboo Bared	m	57.00	2
	Fence, Wooden Post with Barbed Wire	m	132.50	4
	Fence, Wooden Post with Mesh Wire	m	55.70	2
	Fence, Concrete Post with Barbed Wire	m	48.00	1
	Fence, Concrete Post with Mesh Wire	m	26.00	1
	Subtotal		410.60	16
	Extended Eaves	m ²	203.26	13
	Fence, Brick 10cm with no plaster	m ²	1.61	1
	Fence, Brick 20cm with plaster on both sides	m ²	0.75	1
	Retaining Wall, Brick 10 with plaster	m ²	15.24	1
	Subtotal		220.86	16
	Wooden Spiritual House	no.	1	1
	Spiritual House with stainless steel handrail, and tile retaining wall	no.	1	1
	Small Spiritual House	no.	2	2
	Big Spiritual House with Lotus statue	no.	1	1
	Big Spiritual House with culvert	no.	3	3
	Spiritual Shrine with steel stairs	no.	1	1
	Subtotal		9	9
Stormwater	Fence, Wooden Post Zinc Barbed	m	5.00	1
	Fence, Wooden Post Barbed Wire	m	236.00	5
	Subtotal		241.00	6
	Storage	m ²	23.40	1
	Kitchen	m ²	12.75	1
	Shelter	m ²	18.00	1
	Extended Eaves	m ²	70.50	5
	Fence, Brick 10 with plaster and mesh wire	m ²	112.50	1
	Fence, Brick 10 with plaster on both sides	m ²	237.00	1
	Fence, Brick 20 with plaster on both sides	m ²	3.80	1
	Concrete pavement without reinforcement	m ²	5.20	1
	Subtotal		483.15	12
	Water Tank (3.5m*2m*2m)	no.	1	1
	Subtotal		1	1
Wastewater (Pumping Station)	Fence, Concrete posts with mesh wire	m	60.50	1
	Subtotal		60.50	1
	Shelter	m ²	18.00	1
	Subtotal		18.00	1
	Water well ø 0.04m, 27m deep	no.	1	1
	Subtotal		1	1

Source: DMS Data, 19 June to 30 August 2024

2.8 Impacts on Crops and Trees

There are no affected crops. 216 trees belonging to 45 AHs will be affected. These include 48 fruit trees of 37 AHs and 168 non-fruit trees of 44 AHs. All of the affected trees planted or grown are not for commercial use and will be compensated as per the EM.

51. **Table 9** summarizes the affected trees and **Table 10** provides the detailed breakdown.

Table 9: Summary of Impacts on Trees

Trees	SWM	Stormwater	Wastewater	Total	AHs
Fruit	30	18	-	48	37
Non-fruit	66	102	-	168	44
Total	96	120	-	216	81*

* Several AHs have more than one type of tree impacted.

Source: DMS Data, 19 June to 30 August 2024

Table 10: Summary of Impacts on Trees by Type

SWM Landfill (Access Road)

No.	Fruit Trees (SWM)	Nos.	AH
1	Bilimbi fruit	1	1
2	Jambolan Plum	1	1
3	Fig Tree	1	1
4	Lemon	1	1
5	Santol Fruit	2	2
6	Jack Fruit	1	1
7	Palm Tree (Full Yield)	1	1
8	Longan	1	1
9	Green olive	1	1
10	Custard apple	1	1
11	Neem Tree	2	1
12	Mango	1	1
13	Jack Fruit	2	2
14	Palm Tree	1	1
15	Guava	3	2
16	Pomegranate	1	1
17	Jambolan Plum	4	2
18	Date Palm	2	1
19	Neem Tree	1	1
20	Tamarind	2	1
Total		30	24*

No.	Non-Fruit Trees	Nos.	AH
1	Bodhi Tree	2	2
2	Flamboyant tree	1	1
3	Bodhi Tree	2	1
4	Cassia fistula	1	1
5	Acacia	37	10
6	Flamboyant tree	1	1
7	Terminalia catappa Tree	2	1
8	Bodhi Tree	7	6
9	Black currant tree	2	1
10	Round Timber Wood	2	1
11	Forest Bamboo	1	1
12	Bamboo	3	3
13	Cannonball tree	1	1
14	Cassia fistula	2	2
15	Smach Tree	1	1
16	Apricot Blossom Yellow	1	1
Total		66	34*

Stormwater

No.	Fruit Trees	Nos.	AH
1	Cashews	2	1
2	Pithecellobium	1	4
3	Palm Tree	7	1
4	Mango	1	1
5	Papaya	1	1
6	Orange	1	1
7	Cashews	1	1
8	Wax Apple	1	1
9	Coconut	2	1
10	Grapefruit	1	1
Total		18	13*

No.	Non-Fruit Trees	Nos.	AH
1	Acacia	101	9
2	Bamboo	1	1
Total		102	10*

* Several AHs have more than one type of tree impacted.

Source: DMS Data, 19 June to 30 August 2024

2.9 Impacts on Community and Public Assets

52. The Subproject will not impact on any community and public assets.

2.10 Impacts on Business and Income

53. The Subprojects will have partial impacts on one shop of 1 AH and 2 fixed stalls of 3 AHs. The shops and fixed stalls will be shifted back onto the AHs' private lands adjacent to

the ROW. There will be loss of business income from shifting back and temporary disruptions to their businesses during construction. The 3 AHs will be compensated as per the EM.

2.11 Temporary Impact During Construction

54. Any temporary or permanent impacts on structures, businesses, pavements driveways etc. during construction arising out of the activities of the contractor is the sole responsibility of the contractor. If cash payment is needed, because the contractor causes an impact that is beyond what was already compensated within the COI, then it should be compensated by the contractors at full replacement cost, and as per the EM. The safeguard-related provisions stipulated in the loan agreement are included in the bid documents and civil works contracts to ensure that contractors appropriately implement the agreed measures.

55. The PMU, contractor and households with affected pavements or structures will prepare a simple Temporary Impact Agreement prior to start of construction. This contract will include a drawing of the extent of temporary impact including measurements as well as pictures of the pavement or structures prior to the start of construction. The civil works contract as well as the environmental management plan will require the contractor to reinstate the temporary structures outside the COI and any impacted structures along the construction works area to their original condition after the road construction is completed. Effective construction supervision and monitoring at all stages of implementation of the Subprojects will ensure minimal temporary impacts.

56. For any temporary site installation or other area, the contractor will have to propose them in a site installation and access plan and obtain approval from the PMU. Where possible, unoccupied and unused public land will be used for temporary land use or storage facilities. If private land/space is required, the contractor shall rent the private space with an agreed rental fee. Both private and public space shall be returned in the same or improved condition compared with pre-subproject situation. Through a transparent and contractual approach, the PMU will provide the contractor with the Subproject's land acquisition and compensation principles to ensure that (i) official compensation rates are applied, (ii) re-instatement of affected assets contractually defined, (iii) consultation takes place, (iv) the grievance mechanism is followed, (v) the Environmental Management Plan is applied, and (vi) other items specified are complied with, in compliance with the ADB's Safeguard Policy Statement (SPS) and RGC's Standard Operating Procedures (SOP).

2.12 Unanticipated Impacts

57. If unanticipated IR impacts are found during Subproject implementation such as changes in the Subprojects' scope or/and location, the executing agency and GDR will conduct a social impact screening and assessment of new impacts and update the DRP or formulate a new DRP covering all applicable requirements specified in the DRP following the ADB SPS and RGC's SOP. Unanticipated impacts will be documented and mitigated based on the principles provided in this DRP. Any new APs that will be identified (i.e., those who will be included among the adversely affected because of changes to the Subprojects' design or alignment prior to or even during construction works) are entitled to the same entitlements as those of the other APs. The new APs will not include any occupant entering the COI or construction area after the COD.

III. Socioeconomic Information and Profile

3.1 Methodology

58. A full census and SES was conducted at the time of the DMS and IOL noting that affected public facilities are not counted as affected households for the purposes of the SES. The SES focused on income earning activities and other socio-economic indicators of all AHs and APs through house-to-house interviews. The necessary data was collected through a DMS questionnaire which was used to establish baseline information on the key socio-economic status including demographic, income, occupational and gender variables.

3.2 Demographic Profile of Affected Households

59. A total of 74 AHs/286 APs will be affected by the Subprojects. The 74 AHs comprise 62 (83.78%) male and 12 (16.22%) female headed households. The 286 APs comprise 140 (48.95%) males and 146 (51.05%) females. **Table 11** summarizes affected household heads (AHHs) and APs by gender

Table 11: Summary of AHHs and APs by Gender

Category	Male	%	Female	%	Total	%
Head of Household	62	83.78	12	16.22	74	100.00
No. of Affected Members	78	36.79	134	63.21	212	100.00
Total Affected Persons	140	48.95	146	51.05	286	100.00

Source: DMS Data, 19 June to 30 August 2024

60. The majority or 30 (40.54%) AHHs comprising 26 males, and 4 females are aged 31-45 years followed by 23 (31.08%) comprising 19 males and 4 females aged 46-60 years, 18 (24.32%) comprising 14 males and 4 females aged 61-80 years, 2 (2.70%) comprising 2 males and no females aged 20-30 years and 1 (1.35%) comprising 1 male and no females aged over 80 years. A total of 66 (89.19%) AHHs comprising 59 males and 7 females are married, 7 (9.46%) comprising 2 males and 5 females are widowed and 1 (1.35%) comprising 1 male and no females is unmarried. All 74 (100.00%) AHHs are Khmer. Regarding educational attainment, 72 (97.30%) AHHs completed some form of education with 27 (36.49%) comprising 19 males and 8 females completing primary school, 41 (55.41%) comprising 38 males and 3 females completing secondary school, 2 (2.70%) comprising 2 males and no females completing high school and 2 (2.70%) comprising 2 males and no females completing a university degree. The remaining 2 (2.70%) comprising 1 male and 1 female reported no formal education. **Table 12** summarizes the demographic profile of the AHHs by gender.

Table 12: Demographic Profile of AHHs by Gender

Category	Male	%	Female	%	Total	%
Age						
20-30 years	2	3.23	-	-	2	2.70
31-45 years	26	41.94	4	33.33	30	40.54
46-60 years	19	30.65	4	33.33	23	31.08
61-80 years	14	22.58	4	33.33	18	24.32
>80 years	1	1.61	-	-	1	1.35
Total	62	100.00	12	100.00	74	100.00
Marital Status						
Not married	1	1.61	-	-	1	1.35
Married	59	95.16	7	58.33	66	89.19
Widowed	2	3.23	5	41.67	7	9.46
Total	62	100.00	12	100.00	74	100.00
Ethnicity						
Khmer	62	100.00	12	100.00	74	100.00
Total	62	100.00	12	100.00	74	100.00

Education						
None	1	1.61	1	8.33	2	2.70
Primary	19	30.65	8	66.67	27	36.49
Secondary	38	61.29	3	25.00	41	55.41
High School	2	3.23	-	-	2	2.70
University	2	3.23	-	-	2	2.70
Total	62	100.00	12	100.00	74	100.00

Source: DMS Data, 19 June to 30 August 2024

61. Of the 286 persons affected by the Subprojects, 18 (6.29%) comprising 8 males and 10 females are under 5 years old, 43 (15.03%) comprising 19 males and 24 females are 5-16 years, 49 (17.13%) comprising 23 males and 26 females are 17-25 years, 102 (35.66%) comprising 51 males and 51 females are 26-45 years, 51 (17.83%) comprising 24 males and 27 females are 46-65 years and 23 (8.04%) comprising 15 males and 8 females are over 65 years. **Table 13** summarizes the APs (including AHHs) by age and gender.

Table 13: Composition of APs by Age and Gender

Gender	<5yrs	5-16yrs	17-25yrs	26-45yrs	46-65yrs	>65yrs	Total	%
Males	8	19	23	51	24	15	140	48.95
Females	10	24	26	51	27	8	146	51.05
Total	18	43	49	102	51	23	286	
%	6.29	15.03	17.13	35.66	17.83	8.04		100.00

Source: DMS Data, 19 June to 30 August 2024

3.3 Livelihood and Household Income

62. The main sources of livelihood reported include income earned by all APs in the household (household heads and family members). The majority or 39 (52.70%) AHs comprising 33 male headed households, and 6 female headed households earn income from the private sector. Main sources of livelihood for the remaining households include 21 (28.38%) AHs comprising 18 male headed households and 3 female headed households earning income from trade/own business, 8 (10.81%) comprising 7 male headed households and 1 female headed household earning income from agriculture, fishing and forestry, 3 (4.05%) male headed households earning income from the government sector, and 2 (2.70%) comprising 1 male headed household and 1 female headed household earning income from daily/casual labor, with 1 (1.35%) female headed household reporting no household income who holds an ID poor card and receives a monthly allowance from the government. **Table 14** summarizes the main sources of livelihood for the AHs by gender.

Table 14: Main Source of Livelihood for AHs by Gender

Livelihood Source	Male	%	Female	%	Total	%
Government	3	4.84	-	-	3	4.05
Private Sector	33	53.23	6	50.00	39	52.70
Services, Tourism, Hospitality	-	-	-	-	-	-
Trade/Own Business	18	29.03	3	25.00	21	28.38
Livestock	-	-	-	-	-	-
Agriculture, Fishing, Forestry	7	11.29	1	8.33	8	10.81
Dail/Casual Labour	1	1.61	1	8.33	2	2.70
Others	-	-	-	-	-	-
No Reply/No Income	-	-	1	8.33	1*	1.35
Total	62	100.00	12	100.00	74	100.00

*1 AH reported no household income and holds and ID Poor Card.

Source: DMS Data, 19 June to 30 August 2024

63. Secondary sources of livelihood reported include income earned by all APs in the household (household heads and family members). Of the 74 AHs interviewed, 49 (66.22%) reported secondary sources of livelihood. The majority or 21 (28.38%) AHs comprising 18 male headed households and 3 female headed households earn income from trade/own business. Secondary sources of livelihood for the remaining households include 14 (18.92%) AHs comprising 12 male headed households and 2 female headed households earning income from agriculture, fishing and forestry, 7 (9.46%) comprising 5 male headed households and 2 female headed household earning income from the private sector, 2 (2.70%) comprising 1 male headed household and 1 female headed household earning income from livestock, 2 (2.70%) male headed households earning income from daily/casual labor, 2 (2.70%) male headed households earning income from other activities, and 1 (1.35%) male headed household earning income from the government sector, with 25 (33.78%) AHs not declaring/having additional income sources. **Table 15** summarizes the secondary sources of livelihood for the AHs by gender.

Table 15: Secondary Sources of Livelihood for AHs by Gender

Livelihood Source	Male	%	Female	%	Total	%
Government	1	1.61	-	-	1	1.35
Private Sector	5	8.06	2	16.67	7	9.46
Services, Tourism, Hospitality	-	-	-	-	-	-
Trade/Own Business	18	29.03	3	25.00	21	28.38
Livestock	1	1.61	1	8.33	2	2.70
Agriculture, Fishing, Forestry	12	19.35	2	16.67	14	18.92
Dail/Casual Labour	2	3.23	-	-	2	2.70
Others	2	3.23	-	-	2	2.70
No Reply/No Income	21	33.87	4	33.33	25	33.78
Total	62	100.00	12	100.00	74	100.00

Source: DMS Data, 19 June to 30 August 2024

64. Annual household income for AHs includes income earned by all APs in the household (household heads and family members). Of the 74 AHs interviewed, 3 (4.05%) AHs comprising 1 male headed household and 2 female headed households declared earning under \$3,000, 12 (16.22%) comprising 11 male headed households and 1 female headed household declared earning \$3000 - \$4,999, 16 (21.62%) comprising 12 male headed households and 4 female headed households declared earning \$5,000 - \$6,999, 22 (29.73%) comprising 19 male headed households and 3 female headed households declared earning \$7,000 - \$9,999 and 21 (28.38%) comprising 19 male headed households and 2 female headed households declared earning \$10,000 or more. **Table 16** provides a summary of the annual household income by gender.

Table 16: Annual Income of AHs by Gender

Annual Income	Male	%	Female	%	Total	%
<\$3000	1	1.61	2	16.67	3	4.05
\$3,000 - \$4,999	11	17.74	1	8.33	12	16.22
\$5,000 - \$6,999	12	19.35	4	33.33	16	21.62
\$7,000 - \$9,999	19	30.65	3	25.00	22	29.73
>\$10,000	19	30.65	2	16.67	21	28.38
Total	62	100.00	12	100.00	74	100.00

Note. Income totals include all sources of livelihood of all APs in the household.

Source: DMS Data, 19 June to 30 August 2024

3.4 Poor and Vulnerable Groups

65. The households that are vulnerable and living below the poverty line are identified based on the criteria established by the RGC. Each household which is assessed by the Government and found to be poor and vulnerable is issued an official ID Poor Card. The AHs

under the Project/Subproject have been categorized as vulnerable and living below the poverty line based on ID Poor registration and holding an ID Poor Card. The self-reported or declared income status by the AHs during DMS/SES is not used for poverty classification. 1 AH/2 APs was identified as poor and vulnerable. **Table 17** summarizes poor and vulnerable households by gender.

Table 17: Poor and Vulnerable Households by Gender

Poverty Level	Male	Female	Total
ID Poor 1	-	1	1
ID Poor 2	-	-	-
Total	-	-	1
APs	-	2	2

Source: SES Data, 19 June to 30 August 2024

3.5 Gender Considerations

66. Gender concerns and issues have been considered in resettlement planning and in this DRP. Gender differentiated benefit-sharing measures are included in the DRP to ensure that the women and men of the households are treated equally. There are no legal or customary/cultural obstacles for women to own land, houses, and other property in their villages. Both men and women in the AHs participate in income-generating activities for their families and are involved in public activities as well as in decision making. During the preparation of the DRP, both women and men were invited to actively participate in the consultation meetings, jointly participate in house-to-house consultations, and participate in the DMS/SES and measurement of affected assets. A separate gender action plan has been prepared for the Project/Subproject and updated. In general, no significant gender issues were found in either Subproject areas or in the AHs during one-on-one interviews with the AHs and consultations with the community. Both men and women in the AHs play the role in their businesses such as selling goods, serving customers, and putting goods into their warehouses. Both men and women are involved in decision making of household issues. However, women are more likely responsible for doing household chores than the men.

3.6 Indigenous Peoples

67. The Project has been categorized for Indigenous Peoples and a combined Indigenous Peoples Due Diligence Report for the three cities has been submitted to ADB and was disclosed on ADB website in October 2024..

IV. Information Disclosure, Consultation, and Participation

4.1 Objectives of Consultation and Participation

68. The objectives of public consultation and participation of local people aim to develop and maintain avenues of communication between the Project/Subprojects, stakeholders, and AHs. To ensure that the views and concerns of the AHs are considered in the Project/Subprojects preparation and implementation, and to reduce or offset adverse impacts and enhance benefits, a strategy of meaningful participation was adopted and implemented for consultation participation and information disclosure. These included: (i) ensuring the participation of AHs and local community into the subproject design process, preparation and making decision of the proposed subproject; (ii) disseminating all the information, and activities related to the AHs; (iii) collecting the concerns, opinions and suggestions of AHs; (iv) ensuring that all the AHs are notified of all the decisions related directly to their income and living standard; and (v) ensuring the transparency of the land acquisition, compensation and resettlement assistance payments. Stakeholders include the AHs, community chief, local authorities of Svay Rieng Province and Bavet Town, and implementing agencies including MPWT, PMU, PIU, PDPWT.

69. All consultations have been presented verbally in Khmer with visual tools such as maps and drawings for all AHs to fully understand and be able to participate. During the DMS/SES consultations, the IRC-WG team explained the Project/Subprojects scope in house-to-house (on a one-to-one basis), distributed and explained the updated PIB. For the illiterate people, the IRC-WG assisted by reading out all the information.

4.2 Meaningful Consultation During the Preparation of the BRP

70. During the preparation of the BRP, the Transact Technical Assistance Consultants together with MPWT worked closely with the local authority and conducted four (4) public consultation meetings (PCMs) with the DPs and local community in the Subproject areas.

71. The first meaningful PCMs were conducted during the feasibility study from 11-12 of September 2020 with the DPs. The PCMs were conducted prior to the commencement of IOL/SES. The PIB, including the subproject details as well as key contact persons were distributed and explained to all attendees. **Table 18** summarizes the PCMs, dates/times, locations and number of participants by gender.

Table 18: Summary of PCMs During BRP Preparation

No.	Date and Time	Location	Topic	Participants
1	Date: 11 Sept 2020 Time: 8:30 am	At the house of the Chief of Crork Leav village	Initial consultation with affected households and beneficiaries. Presentation and details of discussions on:	14 AHs (7 male / 7 female) Local authorities 3 male / 0 female
2	Date: 11 Sept 2020 Time: 14:30 pm	At the Chief of Ta Beub village house	- Project scope, location, Works and schedule - standard procedure on resettlement policies (ADB and RGC)	23 AHs (15 male / 8 female) Local authorities 2 male / 0 female
3	Date: 12 Sept 2020 Time: 8:00 am	At the Chief of Bavet Leu village house	- types of impact - entitlements, eligibility, resettlement allowances - compensation rates, RCS and compensation process	14 AHs (8 male / 6 female) Local authorities 3 male / 0 female
4	Date: 12 Sept 2020 Time: 13:30 pm	At the Chief of Bavet Kandal villager house	- cut-off date - GRM and complaint process - IOL/SES process	18 AHs (2 male / 16 female) Local authorities 1 male / 0 female
Total			69 AHs (32 male and 37 female)	

Source: Bavet BRP, September 2021

4.3 Public Consultation and Participation During DRP Preparation

72. This DRP has been prepared in consultation and participation with the key local and national stakeholders in the subproject areas. Importance was given to consulting with relevant authorities and affected communities, local authorities, and particularly the AHs of affected assets. The purpose of the consultations and participation was to understand their perception towards the subproject/s DED and benefits, their expectations, receive their support for the subprojects, and to create awareness among the affected population. In addition, the consultation focused on providing detailed explanations on the DMS questionnaire, DMS processes and AHs full participation, entitlements, compensation and resettlement assistance payment procedures, and GRM processes for lodging and registering complaints.

73. The PIB was updated in Khmer by the GDR (Annex 5) with information on the entitlements and local GRM, including contact details of GRM focal persons at commune, district, GDR and provincial levels. All consultations and disclosure during implementation will be presented and explained verbally in Khmer for the illiterate to fully understand and be able to participate.

4.4 PCMs on SWM Landfill Access Road, WWTP and Conveyance Network and Stormwater Drainage Network

74. Prior to the DMS, the IRC-WG and PRSC-WG assisted by local authorities conducted two (2) PCMs on 19 June 2024 for the SWM System (Access Road), WWTP and Conveyance Network and Stormwater Drainage Network Subprojects attended by 36 participants out of which 13 or 36.00% were females) at Chrok Mtes and Bati Communes, Bavet City. **Table 19** summarizes the PCMs.

Table 19: Summary of Discussion Topics at the PCMs

No.	Date/Time	Location	Topics Discussed	No. of Participants
1	19 Jun 24 9:00 AM	Prey Top village, Chrokmtes commune, Bavet city	DMS/SES, entitlements, grievance redress mechanism procedures, including the lodging and registration of complaints, the resolution mechanism and the contact persons of the grievance redress committees at commune, district, GDR and provincial levels.	23 (M:11, F: 12)
2	19 Jun 24 3:00 PM	Bati commune, Bavet City		13 (M:12; F:1)
Total				36 (M: 23, F: 13)

75. The updated PIB (**Annex 5**) with entitlements and GRM agreed in the BRP, a copy of GRM guidelines and the DMS questionnaire were made available to the AHs, read out and explained in detail to them during the PCMs.

76. To ensure that all the AHs and APs were fully informed about the Project/Subproject, the updated PIB, DMS questionnaire, GRM guidelines were shared and explained in detail again during house-to-house consultations so that the AHs who could not attend the PCMs fully understood the Project/Subproject, entitlements, compensation, and the GRM processes and procedures. The AHs were informed that they will be provided with ID cards detailing their affected assets, income, and land after the DMS. The DMS was conducted with the individual AHs so the AHs could confirm the loss of affected assets and measurements and fully understand the basis on which the compensation will be paid for their loss of assets and other entitlements. Feedback was also sought from the AHs to avoid any negative impacts from the Subprojects and clarifications were provided during the PCMs. **Table 20** summarizes the

issues/questions raised by participants with responses and the Combined Minutes of the PCM, Attendance List and Photographs taken during the PCMs are in **Annex 6**.

Table 20: Summary of Key Issues/Questions and Responses

No.	Key Issues/Questions	Responses
Chrok Mtes Commune		
1	Will the subproject give compensation when the waste is burnt in the street in front of her house?	Any waste buried in front of the house do not receive compensation.
2	During transportation the waste trash often falls off from the trucks on the road and the sewage flows and creates very unpleasant conditions.	Please register this concern with your village or commune chief for them to address with the garbage collection and disposal company or you can directly address the issue with the garbage collection and disposal company.
Bati Commune		
3	Raised concern to build the canal next to the 4m wide that affects her fence and property	It was explained to her that if the fence and property are affected, they will be measured and compensated at prevailing market price.
4	My land is in dispute, does not have a land title. Will I get compensation for non-ownership of the land?	If the land is affected, the ownership and title status will be discussed with the Cadastral Office and compensation decided. If the land is cultivated, you will receive compensation, you will receive compensation for loss of land use.

4.5 Public Consultation and Participation During DRP Implementation

77. A PCM will be conducted prior to the signing of the agreement/contract for the compensation package and is undertaken jointly by the IRC-WG and PRSC-WG. At this stage, the DMS and the RCS are completed, the compensation package for each AH is known and draft contracts prepared. The consultative meeting is carried out in two parts and advance notice of the meeting is provided to the AHs through the commune/village council offices. In the first part, a public meeting is held at the commune/village level for all AHs and commune/village representatives and the PIB for Compensation Package will be provided and explained to all the AHs. The schedule for the AHs contract signing (with deadlines), and the legal requirements to receive compensation (national ID, evidence of land ownership) will also be explained.

78. The second part commences soon after the completion of the first part and is held on the same day. This will avoid the need for the APs to return on another day. Each AH is provided with the draft contract and the compensation amounts explained to the satisfaction of the AH on a one-to-one basis. The AHs are provided the option to sign the contract there and then or given 3 working days to submit the signed contract to the IRC-WG through the village council office.

79. Another PCM will be conducted when the compensation payments are ready to be disbursed and is undertaken jointly by the IRC-WG and PRSC-WG. The schedule for compensation payments will be informed to AHs at least one week in advance through the commune and village offices.

80. The meeting is held in the commune or village and prior to commencement of the compensation payment, the AHs are informed about the GRM and the procedures to follow in case they have any complaints about the compensation payments. Compensation payments are made on a household-to-household basis and each AH is provided an opportunity to seek clarification about the compensation package prior to receiving the payment.

4.6 Information Disclosure

81. Documents including (i) this DRP endorsed by the IRC and concurred by ADB; (ii) Updated DRP, any corrective action plan prepared during implementation, if any; and (iii) semi-annual resettlement monitoring reports will be disclosed on MPWT and ADB websites. Summary of these documents will also be disclosed to AHs and other stakeholders in the village, commune hall, pagodas, and the office of the commune chief in Khmer. For AHs who are illiterate, the commune chief will summarize and disclose the contents of the document for them. The updated PIB was already disclosed to the AHs during the PCMs.

V. Grievance Redress Mechanism

5.1 General Principle

82. The GRM was established by the Provincial governor for the Subprojects on 03 June 2024. The GRM is designed to ensure that grievances and complaints regarding land acquisition, compensation, and resettlement are addressed within 30 days at each level of the grievance resolution process. Common grievances may include disputes over land valuation and compensation timelines. Vulnerable groups, such as the elderly and disabled, will be given priority access to grievance support staff, who will assist them with submitting complaints and navigating the process. Additionally, all GRM procedures are outlined in the updated PIB, which was shared with all AHs and local authorities during the public PCMs.

83. The GRM for both subprojects were established at the local level following government standards and procedures to resolve grievances and complaints in a timely and satisfactory manner as required under the ADB SPS and the RGC's SOP-LAR. The Expropriation Law of the RGC provides for a Grievance Redress Committee (GRC) to handle complaints with the additional provision for the AHs to seek judicial redress in case they dispute the decision of the GRC. Details of the GRM have been included in the updated PIB and distributed and explained to the AHs in the PCMs prior to consultations and during house-to-house DMS. All AHs have been made fully aware of their rights, and the detailed procedures for filing grievances outlined in the updated PIB was distributed and explained in detail. The AHs grievances on LAR activities will be received and resolved under the grievance procedure provided in this DRP. The GRC will be available to all APs and will be free to act independently and ensure equitable treatment for women and men in all decision making.

84. The GRC would be the authority to ensure proper presentation of grievances, impartial hearings and transparent decisions on any resettlement benefits and issues. At any time, any aggrieved AP can submit a grievance/complaint in written form or verbally to the Commune Office, given the practice that the GRC includes the relevant local Commune or Village Chiefs only. In the case of verbal complaints, the committee on grievance will be responsible for making a written record during the first meeting with the APs. The use of a local non-government organization is allowed only to assist AHs in filing complaints, particularly for those who are illiterate/have language difficulties and do not know how to prepare written complaints. The designated commune officials shall exercise all efforts to settle AH/APs' issues at the commune level through appropriate community consultation. At the time of registering the complaint, a copy will be given to the person making the complaint for their record. For recording of grievances, an Individual Complaints Form, Registration Form and Resolution Letter was included in the updated PIB and was explained in detail to all AHs during the PCMs and house-to-house DMS.

85. The GRC will function at three levels or tiers to handle grievances:

- 1) The first level will be at the district level handled by the concerned District Head;
- 2) The second level will be at the GDR level handled by the Director General, GDR; and
- 3) The third level will be at the Provincial Grievance Redress Committee (PGRC) level handled by PGRC before going to the judicial system.

5.2 GRM Procedure

86. The grievance will be handled thorough a 3-step formal approach detailed below. However, prior to lodging of complaint or grievance, the complainant may informally seek the assistance of the commune chief or a community elder to discuss and find an amicable solution to his/her complaint or grievance with the leader of the PRSC-WG. This is done verbally and informally, and moreover; its aim is to resolve the matter to avoid lodging formal written complaints. Complaints raised at all levels, including at the commune level will be

reflected in the semi-annual monitoring reports submitted to ADB.⁶ Any activities in resolving grievances at this stage (commune-level) will be recorded by the commune authorities and reported in the internal monitoring reports. If the complaint is not resolved to the satisfaction of the aggrieved AH, s/he can seek the formal route for lodging the grievance as explained below.

Stage 1: The complainant can lodge a written complaint to the Head of the District Office where the subproject is located. The AH can bring a community elder or representative to mediate in the matter at the district level. The IRC-WG will appraise the Head of the District Office about the matter. A conciliation meeting must be held, and a decision taken within **15 working days** after the date of registration of the complaint by the District Office. If the complaint is resolved at the District Level to the satisfaction of the AH, the IRC-WG will inform GDR's Department of Internal Monitoring and Data Management (DIMDM), which will review and seek the approval of the Director General, GDR for appropriate remedial action. The AH will be informed in writing by the GDR of the decision and the remedial action that will be taken within **15 working days** from the receipt of the letter from the District Office. If the complaint is rejected at this stage, the District Office will inform the AH in writing and if the AH is not satisfied with the result, s/he can proceed to the next step and lodge a written complaint to the GDR for resolution.

Stage 2: The GDR through the DIMDM will carry out a holistic review of the complaint and submit a report on its findings with the relevant recommendations, if any, to the General Director of GDR for a decision. It may also conduct a field visit to meet the aggrieved AH and the IRC-WG to gather the relevant details. The final report shall be completed **within 30 working days** from the date of receipt of the complaint and submitted to the General Director, GDR for a final decision who shall make the final decisions **within 5 working days**. The GDR will issue a written response and convey the decision to the aggrieved AH. If the subject matter requires a policy level intervention, it will be referred to the IRC for a decision in which case **10 more working days** will be added to the deadline for final decision. If the complaint has been found to have merit, the DIMDM will inform the relevant Department of Resettlement in the GDR to settle the claim **within 15 working days** after the decision is made.

Stage 3: If the GDR does not respond within 35 working days or if the complainant is not satisfied with the response of the GDR, the complainant can submit a written complaint to the PGRC through the Provincial Governor's Office. The AH or a representative will be given an opportunity to present its case during the meeting and the PGRC may consider any compelling and special circumstances of the AH when reaching a decision. The GDR will send a representative, as a non-voting member, to provide an explanation for the rejection of the complaint at the second step by the GDR. The decision of the PGRC must be reached on a consensus basis and will be final and binding except when the matter relates to any policy of the government. Decisions on government policy matters on LAR is decided by the IRC. The PGRC will have **40 working days** from the date of receipt of the complaint to reach a final decision. The decision of the PGRC will be sent to the IRC through the GDR for endorsement before taking any remedial action.

87. The handling of complaints at administrative level ends at Stage 3. There are no charges or fees levied to the AH for the lodgment and processing of complaints under Stages 1, 2, and 3. However, as provided for in the Expropriation Law, the aggrieved AH at any stage can file a suit at the Provincial/Municipal Courts, as applicable, to seek a resolution. At this stage, there is no involvement from the GDR, PRSC or IRC-WG unless there is a judicial order from the competent court. During the litigation of the case, the Government will request from the court that the subproject proceed without disruption while the case is being heard. If any party is dissatisfied with the ruling of the provincial court, that party can elevate the case to a

⁶ Para. 12 of the Aide Memoire of the Safeguard Policy Dialogue Mission 22-23, August 2019.

higher court. The Government shall implement the decision of the court. However, the mechanism should not impede access to the country's jurisdiction or administrative remedies. Such court actions will be at the cost of the AH.

88. In case, complainants do not have the writing skills or being able to express their grievances verbally, it is common practice that complainants are allowed to seek assistance from any recognized local nongovernment organization or other family members, or the community elders to have their complaints or grievances written for them. Complainants will be allowed to have access to the DMS or contract document to ensure that all the details have been recorded accurately, enabling all parties to be treated fairly. Throughout the grievance redress process, the committee responsible will ensure that the complainants are provided with copies of complaints and decisions or resolutions reached.

5.3 Provincial Grievance Redress Committee

89. A PGRC has been established in Svay Rieng Province for the Subprojects prior to commencement of DMS (**Annex 7**). The PGRC is composed of representatives from the relevant provincial authorities and the Ministry of Economy and Finance (MEF). A Civil Society Organization representative has been identified and appointed as a member of the PGRC. This information is included in the updated PIB distributed to AH prior to DMS. Training on GRM was provided by the GDR for the PGRC members including Commune and Village Chiefs prior to the DMS. The PGRC comprises representatives from the relevant provincial authorities, the MEF and a member from civil society or non-government organization. **Table 21** lists the composition of the PGRC.

Table 21: Composition of the Provincial Grievance Redress Committee

No.	Name	Position	Designation
1	H.E. Peng Po Sa	Provincial Governor	Chairman
2	Mr. Sok Ros	Deputy Governor	Vice-Chairman
3	Mr. Chou Sothy,	Director of Provincial Department of Economy and Finance	Vice-Chairman
4	Mr. Menh Sichay	Director of Land Management, Urban Planning and Construction and Provincial Cadastral	Vice-Chairman
5	Mr. Yon Raksmeay	Director of Public Works and Transport Department	Member
6	Mr. Lem Seangheng	Governor of Bavet city	Member
7	Mr. Oum Saphat	Director of Inter-sectoral Office, Provincial Hall	Member
8	Mr. Nhem Uy	Chief of Provincial Development and Construction Office	Member
9	Mr. Sok Samnang	Deputy Chief of Economic and Social Affairs Provincial Hall	Member
10	Mr. Ream Sophon	Cambodia Farmers Economic Development Organization	Member

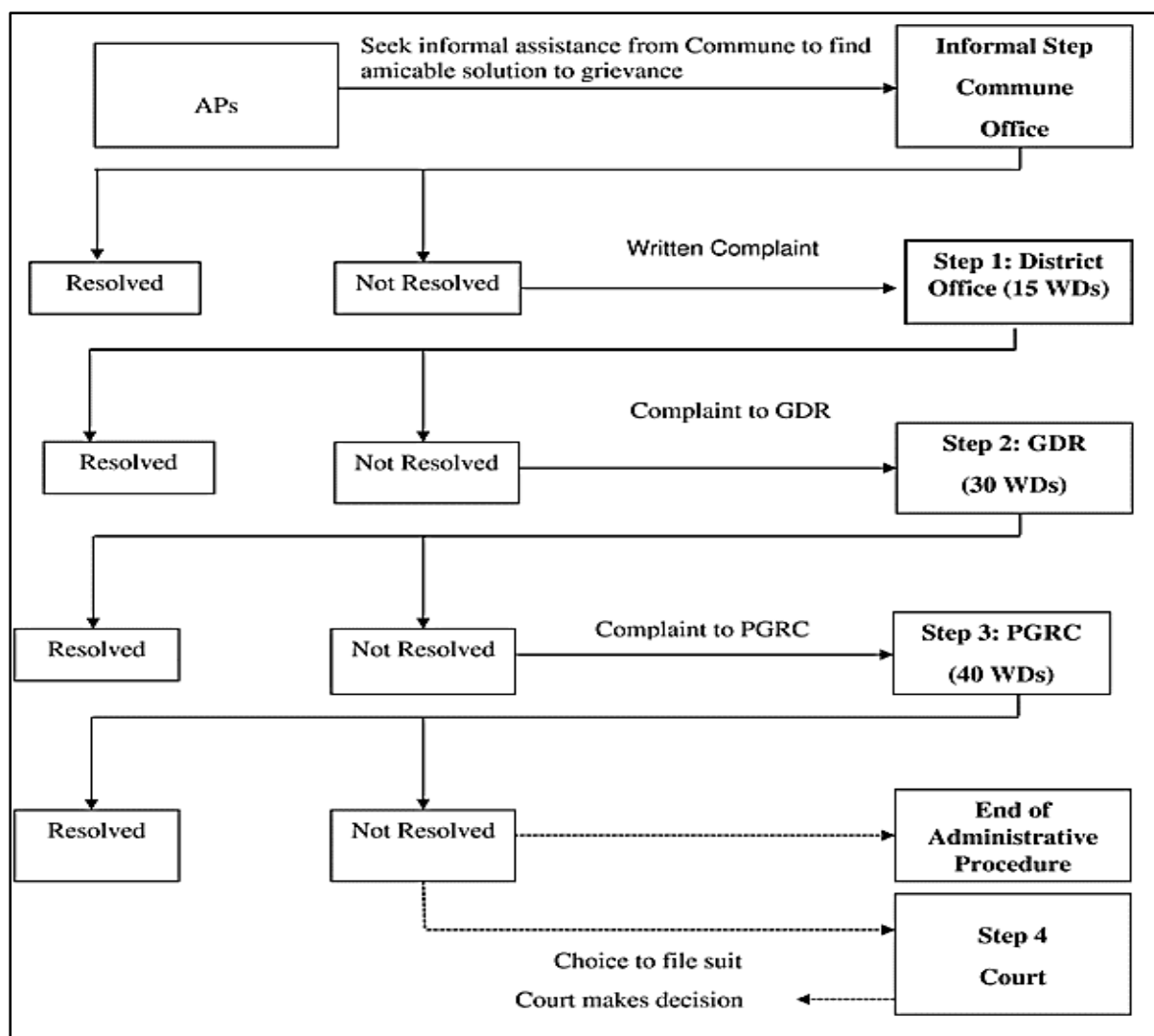
Source: Svay Rieng Adm. Letter No. 076/24 SSR issued on 03 June 2024 (**Annex 7**)

90. A training workshop on GRM on management of complaints, including procedures for recording, registering, and resolving grievances, conducting an initial assessment of grievances, determining the resolution process, making decisions, directing relevant agencies responsible for implementing decisions, was provided by GDR for Svay Rieng GRC members on 18 July 2024.

91. The GRC has established its own recording system and is functioning properly with GRM ledgers to record all incidents and complaints. The residents of affected communities were supplied with GRM information signage installed in strategic locations in Bavet Town. The GRM focal point at the PMU level is receiving budget support for this position. Budget support is currently being arranged to provide support for GRM members at the sub-national level.

92. If an AH is still not satisfied and believes s/he has been harmed due to non-compliance with the ADB policy and s/he has made good faith efforts to solve the problems by working with the ADB Project Team, s/he may submit a complaint to the ADB's Office of Special Project Facilitator or Office of Compliance Review in accordance with ADB's Accountability Mechanism. The information can be found at www.adb.org/site/accountability-mechanism/main. The flow chart proposed GRM is illustrated in **Figure 7**.

Figure 7: Flow Chart of the GRM Process



AP = Affected Person, GDR = General Department of Resettlement, PGRC = Provincial Grievance Redress Committee, WDs = Working Days

Source: BRP, Bavet Subprojects, September 2021

VI. Legal Framework

93. This DRP is prepared based on the applicable legal and policy framework of the RGC and the ADB SPS. It describes the key legal and regulatory documents of the RGC pertinent to LAR as well as the key principles and safeguard requirements of the ADB SPS, analysis and discussions on any gaps and provides clarifications on them as applicable for the subprojects. In case there are any differences between requirements set by Cambodia legal framework and ADB SPS, the latter should take precedence.

6.1 Cambodia Laws and Regulations

94. There are existing laws that govern land acquisition and resettlement in Cambodia. These laws, along with the ADB SPS, shall govern the procedures for LAR for the subprojects. These existing laws include:

- Constitution of Cambodia (1993)
- Land Law (2001)
- Expropriation Law (2010)
- Sub Decree No. 22 ANK/BK (2018) on Standard Operating Procedures (SOP) for Land Acquisition and Involuntary Resettlement (LAR) for Externally Financed Projects in Cambodia
- Sub-Decree on Social Land Concession (2003)

95. The RGC's 2010 Expropriation Law is the main legal document that governs LAR. The 2010 Expropriation Law has listed the development of public infrastructure as one of its objectives and extended the definition of public infrastructure to any infrastructure "required by the Nation in accordance with the determination made by the government." Public interest is also understood in a broad manner as "the use of land or property by the public or by public institutions or their agents." The expropriation of the ownership of immovable property and real right to immovable property can be exercised only if the Expropriation Committee has paid fair and just compensation in advance to the owner and/or holder of real right.

96. Some of the Key Articles of the 2010 Expropriation Law are listed below:

- (i) Article 2: the law has the following purposes: (i) ensure just and fair deprivation of a legal rights to private property; (ii) ensure prior fair and just compensation; (iii) serve the national and public interests; and (iv) development of public physical infrastructure.
- (ii) Article 7: Only the State may carry out an expropriation for use in the public and national interests.
- (iii) Article 8: The State shall accept the purchase of part of the real property left over from an expropriation at a reasonable and just price at the request of the owner of and/or the holder of right in the expropriated real property who is unable to live near the expropriated scheme or to build a residence or conduct any business.
- (iv) Article 12: An Expropriation Committee shall be established and headed by a representative from the MEF and composed of representatives from relevant ministries and institutions. The organization and functioning of the Expropriation Committee shall be determined by a sub-decree [Sub Decree No 22 ANK/BK promulgated on 22 February 2018].
- (v) Article 16: Before proposing an expropriation project, the Expropriation Committee shall publicly conduct a survey with detailed description about the owner and/or rightful owner of the immovable property and other properties which might need compensation; and all other problems shall be recorded as well. In conducting this survey, the Expropriation Committee shall arrange a public consultation with the authorities at provincial, district and commune level, the

commune councils and village representatives or the communities affected by the expropriation to give them clear and specific information and to have all opinions from all concerned parties about the proposed public infrastructure project.

97. Under the Article 3 of the 2010 Expropriation Law that governs the provision for projects financed by development partners in Cambodia, the RGC issued in 2018 the SOP for LAR.⁷ The SOP reflects RGC's laws and regulations relating to the acquisition of land and the involuntary resettlement of AP and the safeguard policies and procedures of Development Partners as applied to public infrastructure investment projects, such as the proposed the Project. Where appropriate, the SOP includes references to good international practices in resettlement planning, implementation, monitoring and reporting. The SOP has been promulgated under Sub-Decree No. 22 ANK/BK on 22 February 2018 and applies to all externally financed projects in the Kingdom of Cambodia. The GDR of the MEF is responsible for providing guidance and clarification to users of the SOP. Given that the Subprojects under the Project are funded by the ADB, the provisions of SOP will apply to the Subprojects and therefore should be read together with this DRP.

6.2 ADB Safeguards Policy Statement

98. For any ADB operation requiring involuntary resettlement, resettlement planning is an integral part of project design, to be dealt with from the earliest stages of the project cycle. The SPS sets guidance and requirements for resettlement planning, as well as the follow-up.

6.2.1 Policy Objectives

99. The objectives of the ADB SPS are to: (i) avoid involuntary resettlement, wherever possible; (ii) minimize involuntary resettlement by exploring project and design alternatives; (iii) enhance or at least restore the livelihoods of all APs in real terms relative to pre-project levels; and (iv) improve the standards of living of the displaced poor and other vulnerable groups.

6.2.2 Scope and Triggers

100. The involuntary resettlement safeguard covers physical displacement (relocation, loss of residential land, or loss of shelter) and economic displacement (loss of land, assets, access to assets, income sources, or means of livelihoods) as a result of: (i) involuntary acquisition of land or (ii) involuntary restrictions on land use or on access to legally designated parks and protected areas. It also covers whether such losses and involuntary restrictions are full or partial, permanent or temporary.

6.2.3 Involuntary Resettlement Policy Principles

101. ADB's Involuntary Resettlement Policy Principles include:

- (i) Screen early to identify involuntary resettlement impacts and risks and determine the scope of resettlement planning through a survey and/or census of APs, including a gender analysis, specifically related to resettlement impacts and risks.
- (ii) Carry out meaningful consultations with APs and affected local communities. Inform all DPs of their entitlements and resettlement options and ensure their participation in planning, implementation, monitoring and evaluation of resettlement and pay attention to the needs of poor and vulnerable groups especially those below the poverty line, the landless, the elderly, women and children, and Indigenous Peoples, and those without legal title to land, and ensure their participation in consultations. Establish a grievance redress mechanism to receive and facilitate resolution of the

⁷ Accessible at https://www.mef.gov.kh/documents/laws_regulation/LAR-SOP-Final-13032018.pdf.

APs' concerns. Support the social and cultural institutions of APs and their host population.

- (iii) Improve, or at least restore, the livelihoods of all APs through (i) land-based resettlement strategies when affected livelihoods are land based where possible or cash compensation at replacement value for land when the loss of land does not undermine livelihoods, (ii) prompt replacement of assets with access to assets of equal or higher value, (iii) prompt compensation at full replacement cost for assets that cannot be restored, and (iv) additional revenues and services through benefit sharing schemes where possible.
- (iv) Provide physically and economically APs with needed assistance, including the following: (i) if there is relocation, secured tenure to relocation land, better housing at resettlement sites with comparable access to employment and production opportunities, integration of resettled persons economically and socially into their host communities, and extension of project benefits to host communities; (ii) transitional support and development assistance, such as land development, credit facilities, training, or employment opportunities; and (iii) civic infrastructure and community services, as required.
- (v) Improve the standards of living of the displaced poor and vulnerable group to at least national minimum standards. In rural areas provide them with legal and affordable access to land and resources, and in urban areas provide them with appropriate income sources and legal and affordable access to adequate housing.
- (vi) Develop procedures in a transparent, consistent, and equitable manner if land acquisition is through negotiated settlement to ensure that those people who enter into negotiated settlements will maintain the same or better income and livelihood status.
- (vii) Ensure that APs without titles to land or any recognizable legal rights to land are eligible for resettlement assistance and compensation for loss of non-land assets.
- (viii) Prepare a DRP elaborating on APs' entitlements, the income and livelihood restoration strategy, institutional arrangements, monitoring and reporting framework, budget, and time-bound implementation schedule.
- (ix) Disclose both the BRP and DRP in a form and language understandable to APs and other stakeholders.
- (x) Conceive and execute involuntary resettlement as part of a development project or program. Include the full costs of resettlement in the presentation of project's costs and benefits. For a project with significant involuntary resettlement impacts, consider implementing the involuntary resettlement component of the project as a stand-alone operation.
- (xi) Pay compensation and provide other resettlement entitlements before physical or economic displacement. Implement the RP under close supervision throughout project implementation.
- (xii) Monitor and assess resettlement outcomes, their impacts on the standards of living of APs, and whether the objectives of the RP have been achieved by considering the baseline conditions and the results of resettlement monitoring and disclose monitoring reports.

6.2.4 ADB's Policy on Indigenous People and Gender

102. Indigenous Peoples. Subprojects involving involuntary resettlement of Indigenous People will not be considered under this Project.⁸

⁸ Indigenous people will be identified in accordance with ADB SPS Safeguards Requirement 3.

103. Gender. Gender concerns and issues will be considered in resettlement planning. Gender differentiated benefit-sharing measures are included in the DRP to ensure that the women and men of the households are treated equally. Moreover, the DRP ensures that gender equity is promoted ensuring that the women participate and that their needs are explicitly addressed in the decision-making process. Therefore, both women and men were invited to actively participate in the PCMs during the preparation of this DRP and the same approach will continue during the implementation of the DRP. In addition, women will be given equal opportunity in getting hired for skilled or unskilled work and receive equal remuneration for the same work by the men under the Subprojects. A separate gender action plan has been prepared for the Project that identifies strategies to address gender concerns and the involvement of women in the design, implementation, and monitoring of the Project/Subprojects and will be updated during Project implementation.

6.3 Comparison of Government Laws and Regulations with ADB Policy

104. In general, the main principles of the RGC's policies on land acquisition, compensation, and resettlement assistance reflect those provided in ADB SPS. However, key gaps analysis between ADB resettlement policy and the RGC's SOP are summarized in **Table 22**.

Table 22: Gap Analysis and Reconciliation of ADB's SPS (2009) and RGC's SOP

No	ADB's SPS Requirements on Involuntary Resettlement (IR) and SR-2	Land Acquisition and Involuntary Resettlement Standard Operating Procedures (SOP), 2018	Gap between ADB SPS and SOP	Clarifications
1	Meaningful Consultations and Disclosure - Carry out Meaningful consultations with APs including vulnerable groups, relevant stakeholders and information disclosure on entitlements and resettlement options. (vulnerable groups include those below poverty line, the landless, the elderly, female headed households, women and children, IPs, and those without legal title to land). - To comply with ADB SPS IR Principles 2, 9, 12 (page 17), para 54 (page 20), para.73 (page 26), Appendix 2, para 18 (page 47), para 26, 27, 28 (page 49).	- The SOP, in its chapter IV and under its key tasks in BRP/DRP preparation, mentions about consultation as one of the tasks which aims at bringing awareness about the Project to the affected communities and inform them about the possible alignment and seek their feedback. - In Chapter V, under key tasks in DRP (updated DRP after detailed design), it mentions about consultation as one of the tasks which aims to inform APs about the overall entitlements and methods of compensation and the GRM procedures; about relocation to Resettlement Sites; and house to house consultation to confirm measurement survey. - Chapter- VIII of SOP describes in detail the need for public consultations, participation and disclosure. In para 126, it mentions that the consultation is undertaken throughout the project cycle.	- The SOP mostly complies with the requirement of the SPS however, it does not specifically mention about disclosing the EM to the people during consultation. However, it mentions that the BRP and the DRP are disclosed at the Commune Offices for disclosure to affected communities. The EM is integral part if these documents and hence are disclosed to the affected communities. This is explained in more detail in Appendix 7. It is clearly pointed out that the EM and the entitlements under the EM is explained to each AH during the household-to-household consultation. - Also, there is no mention of disclosure of monitoring reports. The SOP does not specifically mention about particular attention to women and vulnerable groups for their inclusion during consultation.	Some of the proposed clarification include: - Personal detailed information of the APs and their socio-economic status and other sensitive information compromising their privacy will not be disclosed at any time. - DRPs/updated DRPs/ resettlement monitoring reports contain summary of AP consultations (including vulnerable groups) throughout the project cycle. - DRPs/updated DRPs/ resettlement monitoring reports are disclosed on the ADB, and project websites and Khmer versions left at communes and district levels offices. - SOP para. 120; generic information for the PIB includes the compensation policy (the generic entitlements) as stated in para 119. - Four specific consultation meetings are mentioned in the SOP but as the SOP states consultation will be carried out as an on-going process throughout implementation. - ADB staff may participate in consultation meetings. - Efforts will be made to consult with potentially vulnerable affected people (as defined in para 53-55) and will be done throughout implementation.

No	ADB's SPS Requirements on Involuntary Resettlement (IR) and SR-2	Land Acquisition and Involuntary Resettlement Standard Operating Procedures (SOP), 2018	Gap between ADB SPS and SOP	Clarifications
2.	Grievance Redress Mechanism Establish a GRM that is understandable, readily accessible, transparent procedures, gender responsive and culturally appropriate. <i>To comply with ADB SPS IR Principle 2 (page 17), para 59, 60 (page 22), Appendix 2, para 29 (page 49)</i>	Chapter IX of the SOP deals with GRM The GRM is established as a locally based arrangement at the provincial level for receiving, recording, assessing and facilitating the resolution of complaints and grievances raised by the APs in relation to their compensation and entitlements for the expropriation of land and other immovable property under the Law on Expropriation.		- Status of complaints at the commune level will be included in the periodic monitoring report to ADB. - Appendix 8.2 is the Register of Complaint, however when reporting, the status of complaints will be included.
3.	Compensation and assistance Provide physically and economically APs with compensation and needed assistance. <i>To comply with ADB SPS policy principle 3, 4, 5, 7 (page 17) and Appendix 2, paras 7, 8, 9, 10 (page 45), 11 and 12 (page 46), 16 and 17 (page 47).</i>	- The SOP includes the compensation and transition/ disturbance allowance to the APs in its entitlement. - SOP has provisions for relocation land (for APs with titles or recognized rights to land) and are subject to conditions i.e. availability of government land. This does not apply to illegal squatters or occupiers. - SOP has provisions for loss of livelihoods for all APs (limited to selection of 1 out of 3 predefined programs) SOP has provisions for providing relocation site to eligible APs which is selected factoring in location, the availability of the basic social services and infrastructure development, depending on availability of land at affordable prices and availability of State land near the project area.		- SOP EM 2b transitional allowance to be commensurate with the time taken to relocate the business. - Livelihood restoration will be commensurate with the impact assessed during DMS/SES of the APs. - For vulnerable groups except for illegal squatters, provision of legal and affordable access to adequate housing and income sources. - Valuation rates are valid for a period of one year from the date of endorsement of RCS report by the IRC and thereafter updated. - Affected people with legal rights both with hard and soft titles are treated the same.
4.	Procedures for Negotiated Settlement Develop procedures in a transparent, consistent, and equitable manner if	Chapter-X (Section-B) of the SOP mentions that in the case of acquisition of private land where the seller is willing to sell and the buyer is willing to buy, such land		For the willing buyer willing seller cases (where expropriation will not be used), ADB will have access to all the documentation for on-site verification at GDR. If agreement

No	ADB's SPS Requirements on Involuntary Resettlement (IR) and SR-2	Land Acquisition and Involuntary Resettlement Standard Operating Procedures (SOP), 2018	Gap between ADB SPS and SOP	Clarifications
	land acquisition is through negotiated settlement <i>To comply with ADB SPS IR safeguards policy principle 6 (page 17), para 73, (page 26), Appendix 2, para 25 (page 48-49)</i>	may be acquired under a commercial contract. The price will be negotiated as part of commercial norms.		between the willing buyer and willing seller cannot be reached, alternate site will be selected. - Where negotiated settlement is applied in lieu of compulsory land acquisition based on SR 2 requirements para 25 will be followed, documented and described in the resettlement plan and information of the negotiations included in the monitoring reports. - A negotiated settlement will offer adequate and fair price for land/or other assets. - Ensure that any negotiations with APs openly addresses the risks of asymmetry of information and bargaining power of the parties involved in such transactions. - Negotiated settlement procedures will follow para 25 of Appendix 2 of SPS and agreed with ADB.
5.	AHs (without titles or recognizable rights to land) Ensure that APs without titles to land or any recognizable legal rights to land are eligible for resettlement assistance and compensation for loss of non-land assets <i>To comply with ADB</i>	Chapter-VII: Section B para 104 says: - No compensation for land will be paid for AP occupying land in the ROW. Section C of the SOP states that: - The entitlement to compensation of APs largely depends on the legality of possession or ownership to the land and other assets at the time of the COD. The following types of APs shall be eligible to	Clarification needed for how poor and vulnerable APs are provided legal and affordable access to land.	Social land concession is not an entitlement. However, IRC can just inform the relevant and competent local authorities about the affected poor, landless households who may be eligible to apply for social land concession. Criteria for providing social land concession will be defined by other competent authority. The decision on granting a social land concession will also be made at the sole discretion of the relevant authorities in

No	ADB's SPS Requirements on Involuntary Resettlement (IR) and SR-2	Land Acquisition and Involuntary Resettlement Standard Operating Procedures (SOP), 2018	Gap between ADB SPS and SOP	Clarifications
	<i>SPS IR policy principles 2, 5, 7 (page 17), Appendix 2, paras 9, 11, 12, 16 and 17 (pages 45, 46 and 47.</i>	compensation, but compensation would vary depending on their situation: • Legal owners and holders of title or rights to land, including customary rights. • Tenants and leaseholders, including employees, workers and hawkers. • Those who have no formal title or rights to the land (illegal occupiers) who are engaged in farming or businesses. • Poor and vulnerable groups.		accordance with Cambodia regulations on social land concession. • GDR will provide information if there is any social land concession program available in the Project area in its monitoring report

VII. Entitlement, Assistance and Benefits

7.1 Objectives

105. The resettlement policy of the Subprojects is based on the types, characteristics, and severity of the impacts on assets and living conditions of the affected population, guided by the Constitution of the RGC, the prevailing legal and government procedures and policies, and the ADB SPS. Its primary objective is to ensure that AHs and APs identified in the impacted areas as of the COD are not disadvantaged by the Subproject/s investments. The Subprojects should provide opportunities for the local population to benefit from and participate in its planning and implementation and, through this, generate a sense of ownership.

7.2 COD for Eligibility to Entitlements

106. All three categories of APs are covered for entitlements as per ADB SPS.

- (i) Persons with formal legal rights to land;
- (ii) Persons with no formal legal rights to land but have recognized or recognizable claims under the national law; and
- (iii) Persons who have neither formal legal rights nor recognized or recognizable claims to land.

107. Persons or households under (i) and (ii) above are entitled for compensation for land and affected assets whereas persons or households in (iii) above are still entitled to be compensated for their loss of assets other than land, such as dwellings or other improvements on the land at full replacement cost, if they have occupied/used the land or structures in the affected land prior to the COD.

108. The COD is established by the RGC that determines the eligibility of the AHs/APs to receive compensation and resettlement assistance. The COD for eligibility for the Subprojects was set on 12 September 2020, the date of the completion of public consultations conducted with the AHs and local authorities during the feasibility study. Only those AHs and organizations with fixed assets and sources of income in the COI at the time of the COD will be eligible for receiving compensation and resettlement assistance in accordance with the EM specified in the DRP. The PDPWT and the local authority have the responsibility to manage the site to ensure that no assets will appear after the COD. During DMS, the IRC-WG discussed and sought confirmation with PDPWT and local authority on any expansion of existing assets or new assets by any AH.

109. Any person who encroaches into the Subproject areas after the COD will not be entitled to compensation and other resettlement assistance. Fixed assets such as built structures (new or expansion of existing structures), crops, trees, and other similar assets established after the COD will not be compensated. COD determination has been discussed with the APs and local community during the PCMs in June 2024 and was included in the updated PIB which was distributed to the APs during the meetings. The updated PIB in Khmer with the information on the COD was also posted in the village and commune meeting halls and the office of the commune chief, and other accessible public places such as pagodas.

7.3 Principles of Valuation

110. The DMS confirmed that there will be loss of private land, state-owned land in the ROW, primary and secondary structures, and fruit and non-fruit trees. There will be no impact on the business of 3 AHs as they will be provided with temporary access during construction. Under a competitive tendering process, the IRC/GDR engaged an independent local consulting firm qualified and experienced in asset valuation to conduct RCS from 18 June 2024 to 28 August 2024. The rate of compensation for the acquired structures and other assets will be calculated at full replacement cost. The calculation of full replacement cost will

be based on the following elements: (i) fair market value; (ii) transaction costs; (iii) interest accrued; (iv) transitional and restoration costs; and (v) other applicable payments, if any. The RCS will also collect baseline data on shops, housing, house types, labor, and construction materials. In applying this method of valuation, depreciation of structures and assets will not be considered.

111. Replacement cost is the amount calculated before displacement which is needed to replace an affected asset without deduction for taxes and/or costs of transaction as follows:

- (i) **Productive land** (agricultural and aquaculture) based on actual current market prices that reflect recent land sales in the area, or, in the absence of such recent sales, based on recent sales in comparable locations with comparable attributes, fees and taxes or in the absence of such sales, based on productive value.
- (ii) **Residential land** based on current market prices, which reflect recent land sales at the time of conducting the RCS, or, in the absence of such recent land sales, based on prices of recent sales in comparable locations with comparable attributes and fees and taxes for land.
- (iii) **Primary and secondary structures** valuation is based on actual current market prices, (as per agreed RCS, for materials, transportation and labor without depreciation or deduction for salvaged building materials;
- (iv) **Crops and trees** interviews will be conducted with owners, market vendors and seedling suppliers to determine the current selling farm gate price of fruits or crops in the area and compensated accordingly to the formula as shown in the EM. The RCS consultant will collect data from statistics offices on average yields per type of crop and/or tree identified during the DMS; and
- (v) **Loss of land use** valuation is based on replacement value of productive land improvements and potential loss of income.

112. The Subprojects will follow the involuntary policy principles of ADB SPS. No physical or economical displacement will occur until (i) compensation at full replacement cost has been paid to each AP for project components or sections that are ready to be constructed; (ii) other entitlements listed in the DRP have been provided to APs; and (iii) a comprehensive income restoration and livelihood rehabilitation program supported by an adequate budget, is in place to help APs improve, or at least restore their incomes and livelihoods. The ADB gives no objection to civil works after (i) – (iii) above are complied with. After the payment of compensation and entitlements for respective sections are completed and land is vacated, GDR/IRC will send to MPWT with a copy to ADB a Land Handover Letter for no objection for the commencement of civil works.

113. The entitlements of both Subprojects have been defined in accordance with the various impacts identified based on the results of DMS/SES. Hence all AHs are entitled to various types of entitlements and resettlement assistance for their affected assets. The provision of AHs' compensation in the DRP covers the replacement value for their affected assets and vulnerable allowance, including any unforeseen impacts. An EM was developed considering all possible potential impacts and was included in September 2021 approved BRP. The eligibility on entitlements applies to all AHs impacted and is included in the updated EM. The updated EM is presented in **Table 23** indicating each type of loss and degree of impact with corresponding benefits applicable to the specific condition and impacts on AHs and standards set in September 2021 approved BRP EM are not downgraded.

Table 23: Updated Entitlement Matrix

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
1. Loss of Land					
1a	Loss of Land	Agricultural land	Legal owners and holders of real right of land, including those covered by customary rights, and recognizable/legalizable right holders and non-title holders. (4,569.68m² of unused agricultural land of 7 AHs)	For the affected portion of the private land: cash compensation at full replacement cost. Includes option of compensation at same replacement cost for affected land that remains after acquisition if remaining land becomes unviable or unusable.	In case the remaining land is not viable for continued use the entire plot is acquired on replacement cost. RCS determined the rates. AHs to be notified at least 3 months in advance of the actual date that the land will be acquired by the subproject. AHs will be allowed to harvest their annual and perennial crops and timber products prior to construction, if any. If the head of household is married, compensation will be paid at the presence of both husband and wife. Land title adjustments will be made by MLMUPC to title documents at no cost to the AH.
1b	Loss of Land	Residential land	Legal owners and holders of real right of land, including those covered by customary rights, and recognizable/legalizable right holders and non-title holders. (528.80m² of 3 AHs)	For the affected portion of the private land: cash compensation at full replacement cost. Includes option of compensation at same replacement cost for affected land that remains after acquisition if remaining land becomes unviable or unusable.	In case the remaining land is not viable for continued use the entire plot is acquired on replacement cost. RCS determined the rates. AHs to be notified at least 3 months in advance of the actual date that the land will be acquired by the subproject. If the head of household is married, compensation will be paid at the presence of both husband and wife. Land title adjustments will be made by MLMUPC to title documents at no cost to the AHs.
1c	Loss of Land	Agricultural, residential and	Tenants and Leaseholders. None	No compensation for loss of land as not legal owners of land, but compensation for any improvements made to the land.	

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
1d	Loss of Land	commercial land	Illegal occupiers/squatters without legal titles or rights to land. None	No compensation for loss of land as not legal owners of land, but compensation for any improvements made to the land.	
1e	Loss of land use	Income Restoration	AHs losing productive agricultural land inside ROW or on public land. None	Cash compensation for improvements on the land and loss of income potential.	RCS determined the compensation amounts. Advance notice to harvest at least 3 months before start of civil works, and APs will remove their crops and trees from the subproject areas within 1 month after receiving compensation.
2. Loss of Trees					
2a	Loss of Fruit and Non-fruit Trees	Agricultural land	All AHs regardless of land ownership/tenure status. (216 trees of 45 AHs)	For fruit trees, replacement cost of loss based on the following formula: [(Quantity Harvested per Year) X (Market Price) X (Number of years it will bear fruit)] + cost of seedlings. Timber trees that have a growth period of more than 5 years are classified as follows: - Sapling trees under 1 year: not compensated as it can be replanted. Cost of seedling provided; - Young tree (1 to 3 years): valued at one-third of its full price as it can be replanted plus cost of seedlings; - Young tree (3 to 4 years): valued at two-thirds of its full price plus cost of seedlings; - Mature tree (more than 5 years): valued at full price plus cost of seedlings	RCS determined the rates. Market Price is based on Farm - Gate Price. Advance notice to harvest at least 3 months before commencement of civil works, and APs will remove their trees from the subproject areas within 1 month after receiving compensation.
3. Loss of Structures					

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
3a	Loss of, or damage, to houses and structures	Residential, commercial structures and other assets	All owners of the structures whether or not land is owned; with or without building permit. (41.08m² of 4 AHs and 712.10m, 722.01m² and 11 Nos of 23 AHs, 29 AHs and 11 AHs respectively)	Cash compensation equivalent to replacement value of lost portion of the house/building/structure. If the owner rents or leases, compensation for any improvements/construction carried out by the renter/leaseholder will be deducted from the compensation payment to the owners. In the case of loss of only part of the houses/buildings/structure and the remaining portion is not livable or useable, compensation will be paid for complete structure at same replacement cost.	RCS determined the rates. Viability of the remaining house/structure was determined during DMS by the IRC-WG DMS team. AHs can retain the materials from demolition of their structures at no cost. AHs to get cash compensation at least 1 month ahead of civil works in the locality to provide them sufficient time to gradually re-organize the house and/or shop, thereby avoiding any disruption in the livelihood of the same. If the head of household is married, compensation will be paid at the presence of both husband and wife.
3b	Loss of, or damage, to houses and structures	Residential, commercial structures and other assets	Tenants and Leaseholders. None	Cash compensation at replacement cost for any improvements or construction by the tenants or leaseholders. In the case of no improvements or construction, no compensation is paid. Transfer/Disturbance Allowance equivalent to 1 month of rental or lease amount.	RCS determined replacement cost. Documentary evidence or confirmation by the owner/commune/village, as relevant, is required.
3c	Loss of, or damage, to houses and structures	Residential, commercial structures and other assets	Illegal occupiers/squatters without legal titles or rights to land. None	Cash compensation equivalent to replacement value of loss of structures constructed by illegal occupier/squatters.	RCS determined replacement value.

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
3d	Loss of Houses and Structures (Transport Allowance)	Transport allowance for household and personal goods	AHs (4 AHs)	Fixed Lump Sum allowance per AH based on average cost of transportation to new relocation place. Up to 5 km. More than 5 km.	RCS determined the lump sum amount for the 2 rates.
4. Loss of Livelihood and Income Restoration					
4a	Permanent Loss of Livelihood Source	Income Restoration	AHs who lose their source of livelihood permanently. None	Entitled to participate in any one of the Livelihood Restoration/Support Programs: Land Based Livelihood Restoration for AHs engaged in land-based livelihood. (i) facilitate access to other land-based sources of income, if affordable productive land is available, like vegetable gardening, fruit trees, livestock and other similar land-based income generating sources; (ii) provision of training in farming or livestock; and (iii) lump sum cash grant of \$200 to re-start land based livelihood. In case of unavailability of suitable land, the AHs can opt for either employment or business-based livelihood program. Employment Based Livelihood Restoration for AHs who lose employment permanently. (i) provision of employment skills training; and (ii) lump sum cash grant equivalent to 3 months of income based on official poverty rate to supplement income support during the training period. OR	The program will be based on the choice of the AP. Land Based for AHs who lose land-based livelihood Employment Based lump sum cash grant for AHs who lose employment based livelihood is calculated as: 3 months of income based on poverty rate= (Monthly Poverty Rate X Number of Members in AH X 3).

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
				Business Based Livelihood Restoration for AHs who lose businesses permanently or AHs who opt for this as an alternative livelihood source. (i) provision of business skills; and (ii) a lump sum cash grant of \$200 to assist in starting micro or home-based business. OR \$200 cash assistance and \$300 instead of IRP vocational training.	Business Based for AHs who lose business-based livelihood. This can also be available to AHs who do not want to continue with land or employment-based livelihood at their own choice. AHs will only be eligible for any one of the above three options.
4b			Poor and Vulnerable AHs None	For Poor and Vulnerable AHs. In addition to skills training, (i) above lump sum cash grant will be doubled i.e. from \$200 to \$400 under land-based (and business-based livelihood restoration and lump sum cash grant from 3 months to 6 months of income based on official poverty rate under employment-based livelihood restoration; and (ii) priority in any employment opportunity under the Subprojects.	

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
4c	Loss of Income during Transition Period (Subsistence Allowance)	Business Income Loss	AHs who are engaged in business and have to relocate or temporarily close business during construction. (1 shop of 1 AH and 2 fixed stalls of 2 AHs / 13 APs will shift back on the same site outside of the COI)	Cash compensation equivalent to the daily net income (as reflected in tax receipts or other documentation) multiplied by the days of business disruption. OR For unregistered/business owners who cannot show any tax receipt and cannot otherwise confirm income amount: Lump sum amount equivalent to 3 months of income based on the official monthly poverty rate established by the Government Monthly Poverty Rate X Number of Members in AH X 3 In case AH is classified as poor and vulnerable, the above lump sum amount is doubled.	Details were determined during DMS and RCS. Both registered and unregistered businesses are compensated except when the nature of business is illegal. \$70.58/month/capita poverty line is applied.
4d		Loss of Employment Income	APs who loss income from temporary loss of employment in businesses disrupted None	Cash compensation equivalent to the daily net income (as reflected in tax receipts or other documentation) multiplied by the days of business disruption. OR Lump sum amount equivalent to 3 months of income based on the official monthly poverty rate established by the Government. Monthly Poverty Rate X Number of Members in AH X 3.	Details were determined during DMS and RCS.
5. Special Assistance					

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
5a	Vulnerable Households	Special assistance	All vulnerable AHs/APs 1 AH/2APs	Lump sum amount equivalent to 3 months of income based on the official monthly poverty rate established by RGC. Monthly Poverty Rate X Number of Members in AH X 3.	Based on the DMS data. \$70.58/month/capita poverty line is applied
6. Temporarily affected properties during construction					
6a	Temporarily affected land and non-land assets during construction	Temporary impact on structures	Owner of temporarily affected land and non-land assets, regardless of land ownership status.	The contractor will pay rent for any land/structure required for construction workspace outside the ROW. For identified temporarily impacted assets within the COI, no compensation, but construction contractors will be responsible to restore/rebuild all these temporary impacted assets to pre-subproject condition or better (such as pavement, driveways, signposts, spirit houses and light weight extended eaves). If reinstatement is not an option, then principles of the EM apply and cash compensation at replacement cost to be paid. For assets impacted by contractor outside of COI, then principles of the EM apply and cash compensation at replacement cost to be paid.	As part of the civil works contract, all pavements/walkways/access roads/driveways to properties adjacent to the road will be repaired or replaced including culverts and other facilities, to a condition equal or better than the present. AHs will be notified at least 1 month in advance of the actual date that the land/non-land asset will be temporarily used or affected by the subproject. Contractor will be required by contract and Environmental Management Plan to cover these costs. Construction and maintenance will be carried out to minimize damage and the disruption period will be minimized as much as possible.
7. Unanticipated Impact					
7a	Unanticipated involuntary resettlement Impacts	Any impact not accounted for	Eligible displaced persons.	New displaced persons that will be identified (i.e., those who will be included among the adversely affected because of changes in the Subproject design or alignment prior to or even during construction works) are entitled to the same entitlements as those in this EM.	GDR shall ensure the conduct of a social assessment and update or formulate a new RP or a DRP addendum depending on the extent of the impact changes. Unanticipated impacts will be documented and mitigated based on the principles provided in this DRP.

Source: September 2021 approved BRP

VIII. Relocation of Housing and Resettlement

114. There is no relocation of any AH to another site, or major impact on residential land or primary structures. All affected secondary/auxiliary structures of AHs will be shifted back outside the COL.

IX. Income Restoration and Assistance

115. Permanent Income Loss. The September 2021 approved BRP provides AHs (including heads of household and household members) who will lose their livelihood source permanently, will be entitled to participate in the IRP. According to the DMS/SES results, no AH permanently loses his/her source of livelihood. Hence no AH is entitled to participate in the IRP.

116. Special Package for Poor and Vulnerable Groups. To assist the poor and vulnerable AHs (who will permanently lose their source of livelihoods) to improve their standard of living, additional financial assistance will be provided in comparison with other AHs. The lump sum grant under the livelihood restoration/support programs will be doubled from \$200 to \$400 for land and business-based programs and from 3 months' income to 6 months' income for employment-based programs. They will also be provided with priority for employment opportunities. According to DMS/SES results no vulnerable AH is entitled for special package under the IRP. Since there is no IRP, this special package to the vulnerable AHs will not apply under this DRP.

X. Resettlement Budget and Financing Plan

117. The calculation of the estimate costs for all compensation and resettlement assistance are based on the results of the DMS/SES and RCS. The costs for all resettlement, including affected assets, compensation and allowances, operational and administrative costs, monitoring, and reporting will be financed from the Government's national budget and no financing from the ADB loan will be required.

118. The resettlement budget is estimated at \$287,921.10. This includes: (i) \$214,882.48 as compensation for affected unused private agricultural land, residential land, partially affected primary and secondary structures, affected trees, loss of business income, vulnerable allowance, and transport allowance; (ii) \$19,393.00 for consulting services for RCS; (iii) \$32,223.37 for administrative costs; (iv) \$21,482.25 of contingency amount. **Table 24** summarizes the estimated resettlement budget for the Subprojects.

Table 24: Summary Estimated Resettlement Budget

No	Description of Affected Assets and Allowances	Unit	Quantity	Total (\$)
A	Assets			
	Unused Private Agricultural Land	m ²	4,569.68	86,110.69
	Residential Land	m ²	528.80	80,738.00
	Fruit Trees	Nos.	48.00	2,319.75
	Non-fruit Trees	Nos.	168.00	1,635.00
	Shops & Stalls	m ²	35.58	902.11
	Primary Structures	m ²	5.50	440.00
	Secondary Structures	m m ² Nos.	712.10, 722.01 11	39,300.83
	Total A			211,446.38
B	Income Loss and Allowances			
B1	Income Loss			
1	Income loss during transition period	AH	3/13	2,752.62
	Subtotal B1			2,752.62
B2	Transport Allowance			
1	Primary Structure	Nos.	1	50.00
2	Shops	Nos.	1	50.00
3	Fixed Stalls	Nos.	2	100.00
	Subtotal B2			200.00
B3	Vulnerable Allowance			
1	Vulnerable Allowance	AH/AP	1/2	423.48
	Subtotal B3			423.48
	Total B (B1+B2+B3)			3,376.10
	Total Cost (C) = (A) + (B)			214,822.48
	Replacement Cost Study			19,393.00
	Administration Cost (15% of C)			32,223.37
	Contingency (10% of C)			21,482.25
	Total Estimated Resettlement Cost			287,921.10

Source: RD3 Estimates from the RCS Report.

XI. Institutional Arrangement

119. **Ministry of Public Works and Transport (MPWT).** The subprojects will be implemented by MPWT as the executing agency through the PMU, which will support MPWT in undertaking overall oversight and management of the Project. It will be supported by consultants to ensure that procedures are followed and that the implementation schedules are kept on track. However, it will not be responsible for carrying out the LAR activities which are mandated to the GDR. The MPWT and its PMU will coordinate and work closely with Resettlement Department (RD) 3 of GDR to prepare, update, and implement the DRP including on all matters concerning involuntary resettlement,

120. **Project Management Unit (PMU)** under MPWT. A dedicated PMU has been established in MPWT to carry out the day-to-day tasks in the overall implementation of the Project. However, it is not mandated to carry out resettlement activities but assumes some tasks in coordination with GDR which is the lead agency directly responsible for all LAR activities in the ROW. The PMU designated a focal person on resettlement and tasked to undertake specific PMU responsibilities with regards to LAR and coordinate with GDR, the PRSC and the PIU in all matters concerning LAR planning and implementation. The specific tasks of the PMU related to LAR include the following:

- (i) Conduct social impact assessment of the Project/Subproject;
- (ii) Prepare the draft BRP based on pre-detailed design alignments/demarcation of subproject site/s for GDR's review and endorsement;
- (iii) Set out the demarcation of the land requirement along the final alignment within a month after completion of the DED in coordination with GDR;
- (iv) Provide GDR with the proposed construction schedule identifying the completion schedule of LAR and handover of sites by sections to the contractor before planned contract award date;
- (v) Inform GDR in a timely manner if progress of construction is hampered by LAR issues or any anticipated bottleneck;
- (vi) Assist and cooperate with GDR in seeking solutions to problems encountered during Project/Subproject implementation;
- (vii) Invite GDR to participate in supervision missions and wrap-up meetings with APs and ensure that GDR's comments on LAR issues are incorporated in Aide Memoires, Memorandum of Understanding and Minutes of Discussions; and
- (viii) Ensures that no further encroachment on the ROW after handover by GDR of the land for the Project/Subproject.

121. **The Inter-Ministerial Resettlement Committee (IRC)** is the decision making and oversight body for LAR activities. It has the mandate to review and evaluate the resettlement impact and land acquisition for public physical infrastructure development Projects in the Kingdom of Cambodia. The IRC is a collective entity, permanently chaired and led by the MEF, with members from different line ministries. The IRC carries out its roles through the IRC-WG which is established by MEF for each public investment Project. Key responsibilities of IRC include:

- (i) Provide effective oversight and ensure LAR complies with the laws and implementing rules and regulations;
- (ii) Ensure effective coordination between line ministries, provincial/local authorities and GDR in carrying out the LAR;

- (iii) Review and approve the DRP and endorse DRP prior to submission to ADB for its review and the approval;
- (iv) Initiate the establishment PGRC; and
- (v) Provide overall guidance on implementing rules and regulations for LAR and propose updates as necessary.

122. **The General Department of Resettlement (GDR)** is the permanent technical Secretariat of the IRC and the lead agency for the preparation, implementation, and monitoring and reporting of LAR. The GDR will carry out activities under the Bavet WWTP and sewerage network improvement Subproject through its Resettlement Department 3 (RD3). For this, detailed tasks of RD3 of GDR include:

- (i) Coordinate and collaborate with line ministries, MPWT, and other agencies involved in LAR activities;
- (ii) Conduct public consultations with the APs and vulnerable groups;
- (iii) Prepare the DRP for the subproject/s and submit to ADB for review and acceptance;
- (iv) Develop terms of reference and recruit the replacement cost surveyor;
- (v) Prepare and secure the necessary budget for the implementation of the DRP;
- (vi) Calculate, prepare contracts, and make payments for compensation for each AH based on the EM in the DRP;
- (vii) Implement all LAR activities in compliance with the DRP;
- (viii) Ensure proper functioning of the GRM, including training/refresher training for GRC members, adequate record keeping etc.;
- (ix) Supervise, monitor, and report on implementation progress of the DRP;
- (x) Send Land Handover Letter to MPWT with a copy to ADB;
- (xi) Prepare and submit to ADB semi-annual monitoring reports;
- (xii) Prepare, agree with ADB and implement corrective action plan, if any, during implementation; and submit the corrective action plan implementation report to ADB for concurrence and disclosure;
- (xiii) Conduct awareness workshops for MPWT, line ministries, local authorities, and construction contractor on the implementing rules and regulations as specified in the DRP; and
- (xiv) Serve as the focal knowledge center for resettlement of the Project or Subprojects.

123. In addition, the DIMDM of GDR is responsible for carrying out the internal monitoring of the implementation of the DRP and the verification and validation of the compliance of the entitlements and compensation payments with the provisions of the EM in the DRP. Its role extends to internal verification of all LAR activities for compliance with the provisions under the agreed DRP and reports directly to the Director General, GDR. In addition, it records and reviews all complaints and grievances submitted by APs; investigates them and makes recommendations on compliance to the Director General, GDR. After the payment of compensation and other entitlements is completed, GDR will prepare and submit to MPWT the Land Handover Letter for its “no objection” for civil works. In addition, DIMDM will prepare and submit semi-annual social safeguard monitoring reports on the implementation of DRP to ADB, for review and disclosure.

124. The IRC-WG for both Subproject was established on 21 May 2024. It is the technical arm of IRC to plan and carry out the day-to-day LAR activities which is led by the Deputy Director/Chief of the RD3 of GDR and comprises technical PMU staff of the executing agency, staff of the RD3 and staff of the Ministry of Land Management, Urban Planning and Construction (MLMUPC). The IRC-WG is responsible for all the fieldwork under the supervision of the Director of the RD3 and

overall guidance and direction of the Director General, GDR. The composition of the IRC – WG is shown in **Table 25**.

Table 25: Composition of the IRC-WG

o.	Name	Title	Position
1	Mr. Hiv Panhaseth	Deputy Director of Resettlement Department 3, GDR	Team Leader
2	Mr. Bun Seng	Deputy Director of Resettlement Department 3, GDR	Deputy Team Leader
3	Mr. Yuk Bunheng	Chief of Bureau, Resettlement Department 3, GDR	Deputy Team Leader
Data Encoder			
1	Mr. Sim Sensomphy	Officer, DIMDM, GDR/MEF	Member
2	Mr. Sek Phanith	Officer, DIMDM, GDR/MEF	Member
Interviewer/ Measurement Team			
1	Mr. Thach Sophanith	Chief of Bureau, Resettlement Department 3, GDR	Member
2	Mr. Eth Vannak	Deputy Chief of Bureau, Resettlement Department 3, GDR	Member
3	Mr. Cheab Sor	Deputy Chief of Bureau, Resettlement Department 3, GDR	Member
3	Mr. Vong Rada	Chief of Bureau of General Department of Sewerage Wastewater Management, MPWT	Member
4	Mr. Heng Sophea	Deputy Chief of Bureau, MLMUPC	Member
5	Mr. Thok Chomreun	Officer of Resettlement Department 3, GDR	Member
6	Mr. Nob Robert	Senior Officer of General Department of Sewerage Wastewater Management, MPWT	Member
7	Mr. Chai Villa	Senior Officer of General Department of Sewerage and Wastewater Treatment, MPWT	Member

Source: RD3 General Department of Resettlement dated 21 May 2024

125. **The Provincial Resettlement Sub-Committee (PRSC)** was established by the Provincial Governor at the request of the IRC on 12 April 2024 and readjusted on 03 June 2024 (**Annex 8**) and comprises of (i) the Provincial Governor or the Deputy Provincial Governor as the Head and (ii) Provincial Department Directors of the Line Ministries represented in the IRC and (iii) the respective chiefs of the Districts and Communes of the locations affected by the project as Members. The composition of the PRSC is shown in **Table 26**. The key roles of the PRSC are as follows:

- (i) Provide the coordination and supporting role to the GDR, IRC and IRC-WG for the preparation, implementation and monitoring of the DRP the field and at the local level;
- (ii) Ensure all relevant provincial and local government authorities provide the necessary support for LAR;
- (iii) Manage the PCMs at Provincial Level;
- (iv) Oversee and monitor the work of the PRSC-WG;
- (v) Responsible and accountable for the disbursements of the compensation payments at the provincial level; and
- (vi) Assist the IRC-WG in developing measures to assist vulnerable households.

Table 26: Composition of the Provincial Resettlement Sub-Committee

No.	Name	Title	Position Assigned
1	Mr. Sok Ros	Deputy Provincial Governor	Chairman

2	Mr. Chou Sothy	Director of Economy and Finance Department	Vice Chair
3	Mr. Yon Raksmeay	Director of Public Works and Transport Department	Vice Chair
4	Mr. Phe Kong	Deputy Director of Provincial Administration	Member
5	Mr. B.G. Pich Vireak	Provincial Police Commissioner	Member
6	Mr. B.G. Sokha Raneath	Provincial Commander of the Gendarmerie	Member
7	Mr. Lem Seangheng	Governor of Bavet city	Member
8	Mr. Menh Sichay	Director of Land Management, Urban Planning and Construction Department	Member
9	Mr. Koert Savoeun	Director of Environment Department	Member
10	Mr. Oum Saphat	Director of Provincial Inter-sectoral Department	Member

Source: Provincial Governor Letter No. 077/24 SSR issued on 03 June 2024 (**Annex 8**).

126. **The Provincial Resettlement Sub-Committee Working Group (PRSC-WG)** was established by the Svay Rieng Provincial Governor on 12 April 2024 and readjusted on 03 June 2024 (**Annex 8**) and is mainly responsible for technical functions of the PRSC and works with the IRC-WG in carrying out the LAR activities at the provincial level. The composition of the PRSC-WG is shown in **Table 27**. The PRSC has the following specific functions:

- (i) Facilitate public information campaign, ensuring that the public, especially the AHs, are updated on any developments regarding the subproject/s and resettlement activities;
- (ii) Participate in the DMS and updating of the census of AHs, including the updating of the entitlements
- (iii) Spearhead the selection, acquisition, and preparation of replacement plots, including the preparation of a coordinated schedule of delivery of compensation and other entitlements, the relocation of people, harvesting of standing crops, and the start of civil works in a particular section of the project road sections;
- (iv) Spearhead the delivery of compensation and other entitlements to the AHs;
- (v) Receive and act on the complaints and grievances of AHs in accordance with the Project resettlement policy; and
- (vi) Maintain a record of all public meetings, grievances, and actions taken to address complaints and grievances.

Table 27: Composition of the PRSC-WG

No.	Name	Title	Position Assigned
1	Mr. Phe Kong	Deputy Director of Provincial Administration	Chairman
2	Mr. Yon Reaksmeay	Director of Public Works and Transport Department	Vice Chair
3	Mr. B.G. Ouk Someang	Deputy Provincial Police Commissioner	Member
4	Mr. B.G. Lek Chomreun	Deputy Provincial Commander of the Gendarmerie	Member
5	Mr. Kem Samith	Deputy Director of Economy and Finance Department	Member
6	Mr. Ou Sopheakdey	Deputy Director of Land Management, Urban Planning and Construction Department	Member
7	Mr. Oum Saphat	Director of Provincial Inter-sectoral Department	Member
8	Mr. Bun Saborn	Deputy Director of Provincial Inter-sectoral Department	Member
9	Mr. Nhem Uy	Chief of Provincial Development and Construction Office	Member
10	Mr. Mom Chenda	Chief of Land Management, Urban Planning and Construction Office	Member

Source: Provincial Governor Letter No. 077/24 SSR issued on 03 June 2024 (**Annex 8**)

127. **The Cadastral Administration Office** under the MLMUPC is responsible for issuing titling documents, including the certificate of land use rights, hard titles and social land concession as part of securing tenure for landless and issuing title documents for the land plots acquired in favor of MPWT.

11.8 Svay Rieng Provincial Administration

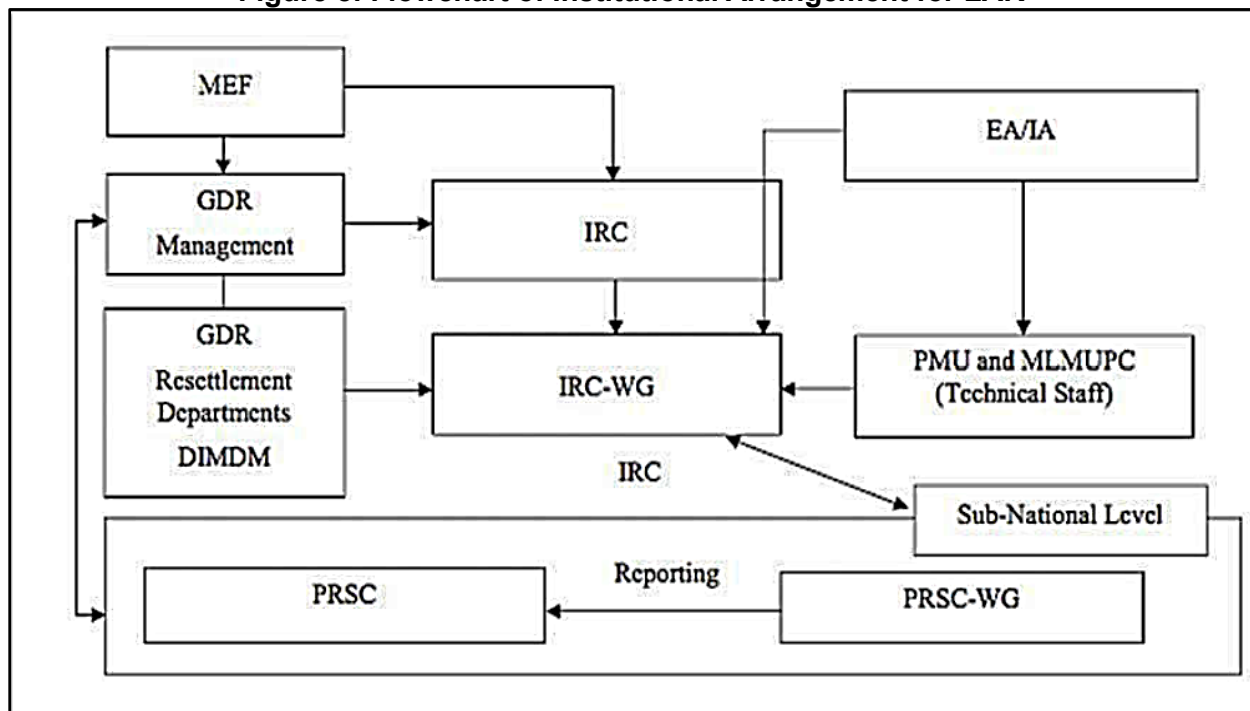
128. The **Head of Provincial Administration** leads the PRSC to undertake the tasks described under the PRSC and makes the decision to allow the AHs with affected shops and fixed stalls to move their assets back to the land behind the COI and grants the extension of land use to the AHs who have been using the land area.

129. The **concerned Local Administrative Authorities** that include districts, communes, and villages where the Subprojects are located will coordinate and work closely with the PRSC-WG and IRC on the DRP preparation and implementation. Their roles and responsibilities include:

- Identify and coordinate the venue for the PCMs and invite AHs to participate in the consultation activities, such as DMS, SES, RCS and other resettlement related activities;
- Assist the IRC-WG, PRSC-WG, and GDR in developing suitable measures to assist the vulnerable AHs; and
- Assist in resolving of grievances /complaints lodged by the AHs.

130. **Design and Construction Supervision Consultants (DCSC).** An international and a national social safeguards specialist are engaged to support the RD3 of GDR in preparing this DRP. The RD3 of GDR will implement the DRP assisted by the IRC-WG and PRSC-WG. The MPWT, PMU and DCSC will play a supportive role, as requested by GDR, and is mostly related to the compilation of the reporting requirements for the Project/Subprojects and reporting to GDR of any bottlenecks posed by resettlement during the construction phase. The resettlement experts, if any, in the DCSC, will work directly under the instructions and guidance of the RD3 of GDR. **Figure 8** illustrates the institutional arrangements for LAR.

Figure 8: Flowchart of Institutional Arrangement for LAR



DIMDM = Department of Internal Monitoring and Data Management, EA = executing agency, GDR = General Department of Resettlement, IA = implementing agency, IRC = Inter-Ministerial Resettlement Committee, IRC- WG = Inter-Ministerial Resettlement Committee Working Group, MEF = Ministry of Economy and Finance, MLMUPC =

Ministry of Land Management, Urban Planning and Construction, PMU = project management unit, PRSC = Provincial Resettlement Sub-Committee, PRSC-WG = Provincial Resettlement Sub-Committee Working Group.



XII. Implementation Schedule

131. 127. All resettlement activities will be coordinated with the civil works schedule of the Subprojects. The DRP will be implemented after it is approved by IRC, cleared by ADB and the budget approved by MEF. Civil works cannot commence until compensation and other assistance are paid in full to all the AHs. It is expected that the compensation payments will be completed within a period of two (2) months and the COI will be free without any encumbrances. Thereafter, MPWT can issue a notice of possession of the specific sites to the contractor for construction. However, construction can proceed on sections free from encumbrances, based on an agreement between the MPWT and ADB. The tentative implementation schedule for resettlement actions is summarized in **Table 28**.

Table 28: Tentative Implementation Schedule of Resettlement Activities

Activities	Schedule
A. DRP Preparation	
Preparation of Draft DRP	September-October 2024
Submission of Draft DRP for ADB review and comments	October 2024
Approval of the DRP by IRC and clearance by ADB	November 2024
Disclosure of the approved DRP	November 2024
B. DRP Implementation	
Budget approval	December 2024
Consultation and Contract Signing	January 2025
Compensation Payment	January 2025-February 2025
Land Handover Letter	March 2025
Submit Semi-Annual Monitoring Report to ADB ^a	End of every six months starting from DRP approval to completion until Subproject completion.

^a Denotes reports will cease to be submitted after the completion of the Subproject.

Source: RD3 Schedule

XIII. Monitoring and Reporting

132. While the MPWT (PMU and DCSC) will be responsible for monitoring the overall implementation of the Project and Subprojects, the DIMDM of GDR will be directly responsible for the monitoring and reporting of the implementation of the DRP of the Subprojects.

13.1 Internal Monitoring

133. All internal monitoring and reporting on the implementation of the DRP will be carried out by the GDR in accordance with the principles agreed in this DRP and the internal monitoring indicators in **Annex 9**. The DIMDM of GDR will be directly responsible for monitoring and reporting the implementation of the DRP. The objective of internal monitoring is to (i) measure and report of the progress in the preparation and implementation of the DRP; (ii) identify problems and risks, if any and the measures to mitigate them; and (iii) assess if the compensation and rehabilitation assistance are in accordance with the provisions under the DRP. Internal monitoring with results will be reported to the IRC on a quarterly basis. The IRC-WG and PRSC-WG will collect data and information on the progress of LAR activities in the field and prepare monthly reports and submit to RD3 of GDR. RD3 will compile the field reports and prepare a consolidated report for the Subprojects every month. The reports will be submitted to DIMDM of GDR which will (i) review the monthly progress reports, including fielding its own mission to verify the progress and the validity of the data and information, if deemed necessary; and (ii) compile quarterly monitoring reports for submission to the Director General, GDR. The DIMDM will also validate that (i) the entitlements and the corresponding compensation are paid in accordance with the EM in the approved DRP; and (ii) the GRM is functioning as per the guidelines. During subsequent monitoring periods, the DIMDM will look into whether or not corrective actions agreed to address LAR issues in the past monitoring period (i.e., outstanding resettlement issues) have been resolved.

134. In cases where a serious problem is encountered at any time during the preparation or implementation of the DRP, the DIMDM will field a special mission to assess the situation and prepare a special report for remedial action and submit to the Director General, GDR for endorsement. After the approval of the DRP, the DIMDM will also prepare the semi-annual social safeguard monitoring reports and submit to Director General, GDR. After the semi-annual monitoring reports are endorsed by Director General, GDR, they will be submitted to ADB for review and disclosure on its website. The contents of the reports include the status of the following:

- (i) Set up of Institutional Arrangements
- (ii) Compensation Payments for Entitlements
- (iii) Development of Resettlement Sites and Relocation, if any
- (iv) Grievance Redress
- (v) Public Consultations
- (vi) Budget Expenditures
- (vii) Livelihood Support Program, where applicable
- (viii) Overall Progress against agreed Implementation Schedule
- (ix) Major Problems and Issues
- (x) Proposed remedial actions

135. The preparation and submission of semi-annual social safeguard monitoring reports begins upon commencement of resettlement implementation activities after the DRP approval by IRC and cleared by ADB. The report covering January to June will be submitted to ADB no later than 31 of July, and the covering July-December to be submitted no later than 31 January. The

DIMDM of GDR will prepare the semi-annual social safeguard monitoring reports and submit them to the Director General, GDR for approval and onward submission to ADB for review and disclosure on ADB website.

136. In addition to the internal monitoring conducted by the implementing agencies mentioned above, the construction activities will be monitored by people in the Subproject areas and the contractor will ensure the impacts on surrounding lands and assets of households are avoided.

13.2 External Monitoring

137. The Subprojects are classified as Category B for IR and therefore, no external monitoring will be required.

Annex 1: Land Handover Letter for the Bavet WWTP Site under Southern Economic Corridor Towns Development Project

ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ

ខេត្តស្វាយរៀង
រដ្ឋបាលក្រុងបាវិត
លេខ.១១១៧.បេត

ថ្ងៃសុក្រ ៩រោច ខែពិសាខ ឆ្នាំច សំរឹទ្ធស័ក ព.ស ២៥៦២
បាវិត, ថ្ងៃទី០៨ ខែឧសភា ឆ្នាំ២០១៨

សូមគោរពជូន
ឯកឧត្តម ប៊ុន ពិសិដ្ឋ អគ្គនាយករង នៃអគ្គនាយកដ្ឋានសាធារណការ
និងជា នាយក គម្រោងអភិវឌ្ឍន៍សេដ្ឋកិច្ចក្រុងរៀងខាងត្បូង
នៃក្រសួងសាធារណការ

កម្មវត្ថុ៖ ករណីដី ២០ ហិកតា សម្រាប់គម្រោងអភិវឌ្ឍន៍សេដ្ឋកិច្ចក្រុងរៀងខាងត្បូង ស្ថិតនៅភូមិត្រពាំងផ្លុង សង្កាត់បាទី ក្រុងបាវិត ។

តាមកម្មវត្ថុខាងលើ ខ្ញុំសូមគោរពជូន **ឯកឧត្តម** នាយកគម្រោង មេត្តាជ្រាបថា ចំពោះដីទំហំ២០ហិកតា សម្រាប់ផ្តល់ជូនក្នុងការអភិវឌ្ឍន៍គម្រោងអភិវឌ្ឍន៍សេដ្ឋកិច្ចក្រុងរៀងខាងត្បូង របស់ក្រុងបាវិត សម្រាប់កន្លែងទីតាំងប្រតិបត្តិការ និង កន្លែងធ្វើអាងប្រតិបត្តិការស្តុកស្តុកស្ថិតនៅភូមិត្រពាំងផ្លុង សង្កាត់បាទី ក្រុងបាវិត ខេត្តស្វាយរៀង ពិតជាដីរបស់រដ្ឋប្រគល់ឲ្យខេត្ត សម្រាប់អនុវត្តគម្រោងកន្លែងទីតាំងប្រតិបត្តិការ និង កន្លែងធ្វើអាងប្រតិបត្តិការស្តុកស្តុកស្ថិត ។

សេចក្តីជូនបានគោរពជូនខាងលើ សូម **ឯកឧត្តម** នាយកគម្រោង មេត្តាជ្រាបដឹងខ្ពង់ខ្ពស់ ។

សូម **ឯកឧត្តម** ទទួលនូវការគោរពរាប់អានដ៏ស្មោះអំពីខ្ញុំ ។


លីម សៀងហេង

→ ¶

Kingdom of Cambodia¶

Nation Religion King¶

¶

Svay Rieng Province¶

Administration of Bayet Municipality¶

No: 013¶

Bayet Municipality: Date 04 May 2018¶

¶

To H.E Vong Piseth, Deputy General Director of General Department of Public Works and Director of Southern Economic Corridor Town Development Project of MPWT¶

¶

Objective: Case of 20 hectares of land for the Southern Economic Corridor Town Development Project in Trapeang Phlong village, Baty Sangkat, Bayet Municipality.¶

¶

¶

In response to the above objective, I would like to inform His Excellency the Director of the Southern Economic Corridor Town Development project that the 20 hectares of land to be provided for the development of MRF and WWTP in the Trapeang Phlong village, Baty Sangkat, Bayet Municipality, Svay Rieng Province, Indeed, the government has given the land to the province to implement the project.¶

¶

Please be informed accordingly.¶

Please accept, Excellency, the assurances of my highest consideration.¶

Governor of Bayet Municipality¶

Deputy Governor¶

Lim Seang Heng¶

¶

¶

¶

¶

Annex 2: Land Hand Over Letter for Pumping Station No.2 of WWTP (CW-BAV-01)



ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ

ក្រសួងសេដ្ឋកិច្ច និង ហិរញ្ញវត្ថុ
លេខ ៤៧៧ ប.ជ. សហវ. ២០១៨

ព្រះរាជាណាចក្រកម្ពុជា ជាតិ សាសនា ព្រះមហាក្សត្រ
រាជធានីភ្នំពេញ ថ្ងៃទី ៣០ ខែ កញ្ញា ឆ្នាំ ២០១៨

សូមសាងសង់

ឯកទ្វីបសេដ្ឋកិច្ច រដ្ឋមន្ត្រីក្រសួងសាធារណការ និងដឹកជញ្ជូន

កម្មវត្ថុ៖ ការប្រគល់ទីតាំងដីដែលគណៈកម្មការអន្តរក្រសួងបានធ្វើលទ្ធកម្ម សម្រាប់គម្រោងអភិវឌ្ឍន៍ក្រុងរបៀង
ខាងត្បូងដែលបានទទួលហិរញ្ញប្បទានសហប្រតិបត្តិការពីធនាគារអភិវឌ្ឍន៍អាស៊ី (ADB)។

យោង៖ លិខិតលេខ ១៨៧៩ សស/អក ពុះថ្ងៃទី ២៨ ខែ ឧសភា ឆ្នាំ ២០១៥ របស់ក្រសួងសាធារណការ និងដឹកជញ្ជូន
- លិខិតលេខ ២០៤២ សក ពុះថ្ងៃទី ១០ ខែ មិថុនា ឆ្នាំ ២០១៣ របស់ក្រសួងសាធារណការ និងដឹកជញ្ជូន។

សេចក្តីដូចមានចែងក្នុងកម្មវត្ថុ និងយោងខាងលើ ខ្ញុំសូមគោរពជម្រាបជូនឧត្តមនាយកដ្ឋាន មេត្តាជ្រាបដ៏
ខ្ពង់ខ្ពស់ថា៖ តាមសំណើរបស់ក្រសួងសាធារណការ និងដឹកជញ្ជូន គណៈកម្មការអន្តរក្រសួងដោះស្រាយជម្លោះប៉ះពាល់
សហការជាមួយក្រសួងសាធារណការ និងដឹកជញ្ជូន និងអនុគណៈកម្មការខេត្តស្វាយរៀង ខេត្តបាត់ដំបង និងខេត្ត
បន្ទាយមានជ័យ បានពុះពិនិត្យ ពិគ្រោះយោបល់ និងធ្វើលទ្ធកម្មដីសម្រាប់សាងសង់អាងប្រព្រឹត្តិកម្ម និងស្ថានីយបូមប្រោះ
សម្រាប់ទឹកភ្នំពេញ នៃគម្រោងខាងលើរួចរាល់ហើយ។

ហេតុដូច្នេះ គណៈកម្មការអន្តរក្រសួងដោះស្រាយជម្លោះប៉ះពាល់ សូមប្រគល់ទីតាំងដីដែលបានធ្វើលទ្ធកម្ម
ជូនក្រសួងសាធារណការ និងដឹកជញ្ជូន ដើម្បីរៀបចំលទ្ធភាពឱ្យក្រុមហ៊ុនសាងសង់ដំណើរការការងារវិស្វកម្មតាមផែនការ
និងបន្តគ្រប់គ្រងទីតាំងដីទាំងនេះស្របតាមច្បាប់ និងលិខិតបទដ្ឋានគតិយុត្តជាធរមាន តាមកិច្ចប្រគល់-
ទទួលឯកសារនេះតទៅ។

ទីតាំងដីដែលបានធ្វើលទ្ធកម្ម រួមមានដូចខាងក្រោម៖

ល.រ	ខេត្ត/ក្រុង	ហិរញ្ញប្បទាន	ទំហំដី	ទីតាំងភូមិសាស្ត្រ	លិខិតផ្ទេរសិទ្ធិកាន់កាប់ប្រើប្រាស់ ដី និងបញ្ជីសម្គាល់សិទ្ធិកាន់ កាប់អចលនវត្ថុ
១	ខេត្តបាត់ដំបង	អាងប្រព្រឹត្តិកម្ម	១០១ ៨៦៩ ម ^២	- ឃុំទួល ស្រុកសង្កែ - ឃុំទួល ស្រុកសង្កែ - ឃុំទួល ស្រុកសង្កែ - ឃុំទួល ស្រុកសង្កែ	- ក្បាលដីលេខ÷Bx 0074 - ក្បាលដីលេខ÷Bx 0075 - ក្បាលដីលេខ÷Bx 0108 - ក្បាលដីលេខ÷Bx 0110 - ពុះថ្ងៃទី ១២-ឧសភា-២០១៥

ឯកសារភ្ជាប់

ថ្នាក់ដឹកនាំ ឯកសារភ្ជាប់ ដើម្បីប្រើប្រាស់ ដោយលិខិតស្នើសុំ កម្ពុជា
No 92, Sangkat Wat Phnom, Khan Daun Penh, Phnom Penh, CAMBODIA.

ថ្នាក់ដឹកនាំ ឯកសារភ្ជាប់ ដើម្បីប្រើប្រាស់ ដោយលិខិតស្នើសុំ កម្ពុជា
Phone : 855-23-438 225 / Fax : 855-23-438 799

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២			១ ៧៤០ ម ^២	- ភូមិយេង, ឃុំអង្គវិល, ស្រុកសង្កែ	- ក្បាលដីលេខ÷០០៦ យអវ ពុះថ្ងៃទី ០៤-មករា-២០១៧
៣	ទេត្តបាត់ដំបង	ស្ថានីយបូមប្រោះទឹកកខ្វក់	២ ៤៦៦ ម ^២	- ភូមិរំពេក២, សង្កាត់ ពេន, ក្រុងបាត់ដំបង	- ក្បាលដីលេខ÷ 541 ពុះថ្ងៃទី ២៦-កុម្ភៈ-២០១៦
៤	ក្រុងសៀមរាប	អាងប្រព្រឹត្តិកម្ម	១០០ ០៦០ ម ^២	- ភូមិក្រុងដំរី, សង្កាត់ទឹកថ្លា, ក្រុងសៀមរាប	- ក្បាលដីលេខ÷៤៣២ កបប ពុះថ្ងៃទី ១១-មីនា-២០១៤
៥		ស្ថានីយបូមប្រោះទឹកកខ្វក់	១ ៣៨៨ ម ^២	- សង្កាត់ផ្សារកណ្តាល, ក្រុងសៀមរាប	- ក្បាលដីលេខ÷ 1 0682 ពុះថ្ងៃទី ២៨-កក្កដា-២០១៧
៦	ក្រុងឆាយ៉ា	ស្ថានីយបូមប្រោះទឹកកខ្វក់	១ ៤៨៦ ម ^២	- ភូមិត្រពាំង, សង្កាត់បាវិត	- ក្បាលដីលេខ÷០៨៨/១៧ ពុះថ្ងៃទី ១៧-កុម្ភៈ-២០១៧

អាស្រ័យដ្ឋានបានគោរពជម្រាបជូនខាងលើ សូមឯកឧត្តមទេសរដ្ឋមន្ត្រី មេត្តាជ្រាប និងចាត់ចែង តាមការគួរ។
សូមឯកឧត្តមទេសរដ្ឋមន្ត្រី មេត្តាទទួលខ្ញុំការគោរពដ៏ខ្ពង់ខ្ពស់ ពិធី។

អនុរដ្ឋលេខាធិការក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
និងជាប្រធានគណៈកម្មការក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
រាជធានីភ្នំពេញ

ព្យាណ ល្បុង

ធម្មច្បាប់

- អគ្គនាយកដ្ឋានគ្រួសាររដ្ឋបាល និង
- ចំណូលពន្ធដារសាធារណៈ កសិកម្ម
- ឯកសារ- គណនេយ្យ

ទំព័រទី៣/៣

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Kingdom of Cambodia

Nation Religion King

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Ministry of Economic and Finance

No. 4755

Phnom Penh, 31 May 2018

To H.E. Senior Minister and Minister of MPWT

¶

Objective: Hand over of land that IRC has already procured for the Southern Economic Corridor Town Development Project fund by ADB.

¶

Reference:

- → Letter No. 1879 dated 28 May 2015 of the Ministry of Public Works and Transport
- → Letter No. 2042 dated 10 June 2013 of the Ministry of Public Works and Transport

¶

I would like to inform His Excellency the Senior Minister that, at the request of the MPWT, the IRC in cooperation with the MPWT and the Sub-Committees of Svay Rieng, Battambang and Banteay Meanchey Consulted and procured land for the construction of WWTP of the above project already.

¶

Therefore, the IRC would like to hand over the land that has been procured to the MPWT to enable the construction company to proceed with the construction process as planned and continue to manage and use these land locations in accordance with the laws and regulations in force from the date of handing over the documents.

¶

Location of land that has been procured as following:

¶

No.	Province/City	Sub-project	Land Size	Location	Certificate of title to immovable property
1	BTE	WWTP	101,569m ²	Norea Commune, Sang-Kae District	Plot No: Bx0074 (Date: 12-May-2015)
				¶	Plot No: Bx-0075 (Date: 12-May-2015)
				¶	Plot No: Bx-0108 (Date: 12-May-2015)
				¶	Plot No: Bx-0110 (Date: 12-May-2015)

2			1,740m ²	Ben village, Anlong veal Commune, Sangkat-Kae District	Plot No.: 008 (Date: 04-January-2017)
3			2,466m ²	Romchek-2 village, Sangkat-Ratanak	Plot No.: 541 (Date: 26-February-2016)
4	Poipet	WWTP	100,060m ²	Koundamrei village, Sangkat-Nimit	Plot No.: 932 (Date: 11-March-2014)
5			1,358m ²	Sangkat Phsarkandal	Plot No.: 1-0682 (Date-27-July-2017)
6		WWTP	1,456m ²	Chrak Leav village, Sangkat-Bayet	Plot No.: 088/17 (Date-17-February- 2017)

¶

As mentioned above, His Excellency the Senior Minister, please be informed and act accordingly. ¶

Please accept, Excellency, the assurances of my highest consideration. ¶

¶

Under Secretary of State of MEF and Chief of IRC ¶

Nhean Leng ¶

¶

Note: Location of Pumping No. 2 was conducted the land acquisition and handover to MPWT in item No. 6 of the letter, ¶

Plot No.: 088/17 (Date-17-February-2017) at Chrak Leav village, Sangkat Bayet of the total land area 1,456m² ¶

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Annex 3: Reduction of WWTP Land Area from 20 ha to 13.6 ha.

Dear H.E. Vong Pisith,

These materials are prepared based on your voice message on the Telegram 27 Oct, 2023 requesting our team to make clarification on the size of the WWTP at Bavet.

The size of the WWTP in Bavet is designed to provide services to population of **75,500** people in the year 2040, that including domestic population of 25, 500 and number of migrant worker (non-domestic) of 50,000 people. The capacity was designed is 5,444m³/day which is almost twice the capacity designed in Feasibility Study.

Table Below table shows the number of populations served and the year of horizon.

Item	Description	Unit	2025	2030	2040
1	Domestic population	Inhab.	19 125	21 116	25 500
3	Worker population (non-domestic)	Inhab.	46 000	48 000	50 000
10	Total wastewater flow generated	m ³ /d	4 472	4 807	5 444

In addition, the design team also based their design on the availability of the land 20 ha through the handed over letter dated 04 May 2018 by the municipal governor.

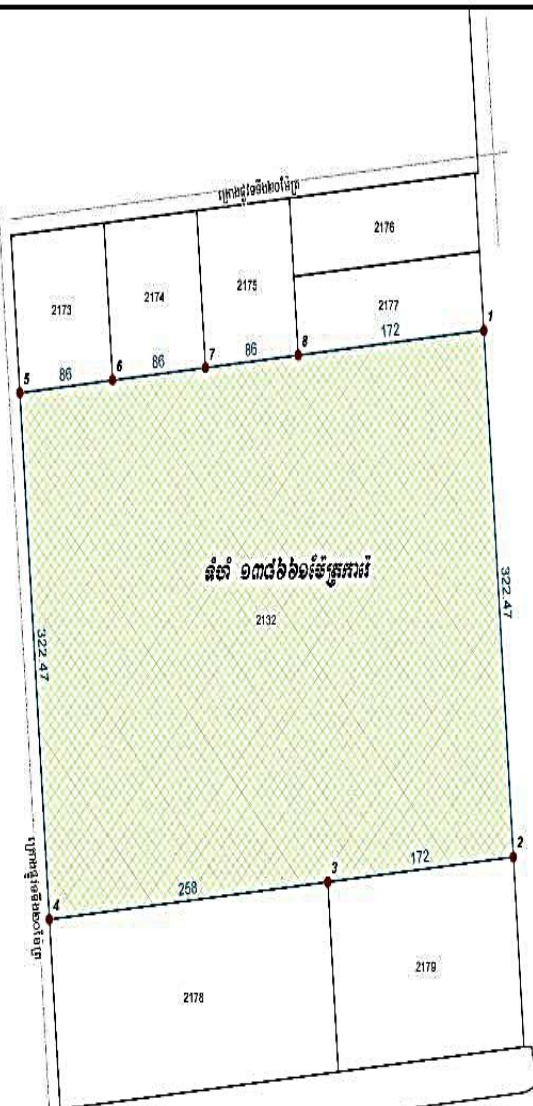
Through various discussion, the remain land available of 13 ha for the WWTP, the initial evaluation as follow:

- it is possible to designed the lagoon system but need to add the disinfection equipment in order to guarantee acceptable levels of pathogens from the outfall;
- There will be a requirement to modify the design method and layout which may need additional man-months (around 20 experts' months) to conduct the design change and;
- The delay of the submission of DED around two months.

Please find the enclosed files for the letter of the landed over and the design of the WWTP lagoon system.

Encl:

- 1- Letter of handed over the land of 20ha;
- 2- DED of the Layout of the WWTP



ចំណុចនិយាមការព្រឹទ្ធិ

ID	X	Y
1	621207.596	1221294.159
2	621234.884	1220972.846
3	621063.565	1220957.554
4	620806.587	1220934.615
5	620779.299	1221255.928
6	620864.618	1221263.574
7	620950.957	1221271.22
8	621036.277	1221278.867





[illegible]

ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
អគ្គនាយកដ្ឋានពន្ធដារ
នាយកដ្ឋានពន្ធដារ

លេខៈ ០១/២០១៩
ចុះថ្ងៃទី ០១ ខែ មិថុនា ឆ្នាំ ២០១៩
អំពីការអនុម័ត ក្នុងឈ្មោះ អគ្គនាយកដ្ឋានពន្ធដារ
អំពីការអនុម័ត ក្នុងឈ្មោះ អគ្គនាយកដ្ឋានពន្ធដារ
អំពីការអនុម័ត ក្នុងឈ្មោះ អគ្គនាយកដ្ឋានពន្ធដារ

យោងតាម ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
នាយកដ្ឋានពន្ធដារ

នាយកដ្ឋានពន្ធដារ

លេខៈ ០១/២០១៩
ចុះថ្ងៃទី ០១ ខែ មិថុនា ឆ្នាំ ២០១៩
អំពីការអនុម័ត ក្នុងឈ្មោះ អគ្គនាយកដ្ឋានពន្ធដារ
អំពីការអនុម័ត ក្នុងឈ្មោះ អគ្គនាយកដ្ឋានពន្ធដារ
អំពីការអនុម័ត ក្នុងឈ្មោះ អគ្គនាយកដ្ឋានពន្ធដារ



លេខ ០១

Kingdom of Cambodia
Nation Religion King

Svay Rieng Province Administrative
No. 472/20 LL

Svay Rieng on October
26, 2020

To
Bavet city mayor

Objective: Case of request for cut-off-date for solid waste management, drainage and sewerage and wastewater treatment plant in Bavet city for Livable City Investment Project.

Reference: Letter No. 3365 dated September 25, 2020, of the Ministry of Public Works and Transports.

In response to the above objectives and references, the city mayor, please be informed that the Ministry of Public Works and Transport held a public consultation meeting on September 12, 2020, at Bavet City hall to prepare a resettlement plan proposed Livable City Investment Project. This is part of the Asian Development Bank (ADB) requirement and the General Department of Impact Management of the Ministry of Economic and Finance (GDR) to approve the LCIP regarding the resettlement safety document.

Public consultation on September 12, 2020, at Bavet City Hall provided the preparation, notification, and approval of the Proclamation of the Date (COD) that defines the right to compensation from the project. Therefore, COD is approved on September 12, 2020, to receive compensation from the project.

The purpose and benefits of announcing a deadline for project eligibility are:

- 1 - Prevent the influx of people into the project site
- 2- Prevent illegal encroachment on state public land
- 3- Determining the property in the Right-of-Way (ROW) to get legal compensation from the project
- 4- Inform the local people and relevant authorities to keep the vacant land for road construction to be no encroachment or construction.

Therefore, the municipal administration must take action to inform the construction owners, landowners who will be affected, as well as the relevant authorities that any new compensation or additional construction or proposed construction or new trees and planting areas after September 12, 2020, must not no compensation, was provided from the project. The municipal administration must monitor and prevent new construction and land use permits in the area around the project site.

The municipal administration must also prevent any activities such as resettlement, relocation, reallocation of land or land use for affected families during the project development period to be re-introduced by the Ministry of Public Works and Transport.

As mentioned above, please the mayor to implement effectively.

Sincerely Yours

Deputy Governor of Svay Rieng Province
Seng Seila

Copy:
Ministry of Public Works and Transport

Annex 5: Updated Public Information Brochure

Livable Cities Investment Project (LCIP)

The purpose of this Public Information Brochure is to provide **Livable Cities Investment Project (LCIP)** related information to persons and households at the LCIP subproject sites, who may be physically (relocation, loss of residential land or loss of shelter) or economically (loss of land, assets, access to assets, income sources or means of livelihood) affected by land acquisition and involuntary resettlement.

A. PROJECT BACKGROUND

1. What is Proposed Livable Cities Investment Project?

The Asian Development Bank (ADB) is supporting the Royal Government of Cambodia (RGC) to facilitate long-term sustainable and economic growth. The LCIP will concentrate on secondary cities of Bavet, Poipet, and Kampot, due to their economic potential and location at key trade and tourism zones. The loan for LCIP was approved on 18 November 2021. The Ministry of Public Works and Transport (MPWT) is the Executing Agency for the LCIP.

2. What is the objective of the proposed LCIP

The objective of the LCIP is to improve (i) the regulatory environment; (ii) the institution and governance arrangements pertaining to the infrastructure sector; and (iii) the urban infrastructure (with a focus on water supply, sanitation, solid waste management and stormwater drainage sectors).

3. What are LCIP Outputs

There are three outputs of LCIP: (i) policy and regulatory environment improved, (ii) urban infrastructure improved, and (iii) institutional effectiveness and governance improved.

4. What are the LCIP subprojects in Bavet City?

The LCIP subprojects for Bavet city are: (i) Solid Waste Management System Subproject, (ii) Wastewater Treatment Plan and Conveyance Network and Stormwater Drainage Network Subproject. The map showing the location of the two subprojects are in **Appendix 1** of this PIB.

5. What is the scope of land acquisition and resettlement and likely impacts?

There will be impacts on land and non-land assets by the subproject components. After the detailed engineering design (DED), the project management unit (PMU) in MPWT and design consultants will place demarcation pegs on the ground before the detailed measurement survey starts. Resettlement planning will be done in parallel to the subproject design, and all compensation will be paid prior to start of the construction.

6. What is the Right of Way (ROW) and Corridor of Impact (COI) of the subprojects

The ROW is the state or government-owned land allocated for future widening or construction of public infrastructure, such as roads, drainage and sewer lines. The COI area of land that will be directly impacted where the works are to be carried out.

The exact COI dimensions are subject to adjustment after the DED is completed. Further consultations will be conducted with the AHs at the commune or village level after the completion of the DED to inform them of the DED and any adjustments to the COI.

7. What is the cut-off date for eligibility?

The cut-off date (COD) is the date established by RGC that establishes the eligibility of the affected households/affected persons (AH/AP) to receive compensation and resettlement assistance under the subprojects. The COD was set as **12 September 2020**. Only those AHs who are in the COI or lose their assets before the COD will be eligible for compensation. Any person who occupies land after the COD will be ineligible for receiving compensation. However, any new construction of new structures or expansion to existing structure within the COI is

considered illegal and is neither eligible nor entitled for compensation. The AHs/APs will have to vacate the COI after the payment of compensation to allow the civil works to start.



8. What is the detailed measurement survey, and when will they be conducted?

The detailed measurement survey (DMS) is a detailed survey and measurement of all affected assets including land, houses and structures, shops, crops, and trees of all the AHs. It will be conducted for each AH to record and agree on all the AH's losses of assets. The survey will also collect information and data on socioeconomic status, sources of livelihood, income, education levels of AH heads and APs, vulnerability etc. This is carried out in the presence of the AH and witnessed by a commune or village official. The DMS will be the basis for the calculation of the compensation package for each AH. The DMS will be conducted after the DED is completed. The affected people and the local authorities will be informed in advance of this activity.

9. What will be the compensation and entitlements?

The entitlement matrix is in **Appendix 2 of this PIB**. Households/People affected by the Project are entitled to receive compensation for affected assets under the following key compensation principles:

- Provisions of fair and just compensation in advance.
- Full compensation paid before expropriation or clearance.
- Compensation is based on the replacement costs of lost assets at market prices that will be determined by an independent consultant through replacement cost study (RCS) without any deductions made for depreciation, salvage materials and transaction costs.

(a) Will I be compensated for lost land?

The ROW is state land and AHs who occupy land on the ROW will not be compensated for the land. However, they will be compensated for any loss resulting from using the land like for example, for structures, operating a stall or planting crops or fruit trees.

In case, after the completion of DED, it becomes necessary to acquire private land for new alignments or land on which the AH has a legal right that falls **outside of the ROW**, then compensation will be paid at the replacement cost of the land to be acquired.

(b) Will I be compensated for affected house and structures that I own?

Yes. Private houses and structures that are affected by the subproject will be compensated at replacement cost. No amount from the replacement cost will be deducted for depreciation, salvage materials or transactions costs. Structures include fences, wells, latrines, concrete pavements, gates and other similar structures for which the AH can show ownership. If the house or structure is partially affected, then the compensation will be paid for the affected portion unless it can be shown that the remaining portion can no longer be useful after the removal of the affected portion. In such cases, compensation will be paid for the whole structure.

(c) Will I be compensated for my crops and trees?

Yes. For annual crops that are produced on annual seasonal basis like rice will be compensated for **Net Annual Income for One Year**. In addition, sufficient notice will be provided to the AHs so that they can harvest the crops in time. No compensation is paid for crops in this case. For standing crops that are ripening but cannot be harvested by the time the land is required, the AHs will be compensated for the lost crop on replacement cost basis.

For perennial crops (trees that produce fruits for multiple years like mango tree), the AHs will be compensated for the loss of fruit which will take into account the loss of potential income and the time required to re-establish the perennial trees.

(d) If I have to relocate my house or shop, is there any relocation assistance?

Yes. All efforts will be made during the detail design stage of the subprojects to avoid any physical displacement of AHs. For any physical relocation of houses or similar residential structures from the COI will be provided transition allowance, relocation assistance and option to relocate at relocation site. There may be some relocation of stalls where they will be required to self-relocate or move back outside of the ROW. Apart from the compensation for the structures at replacement cost, transitional allowances will be paid as follows: (i) fixed lump sum transportation allowance for moving the assets; and (ii) loss of business income in case of stalls carrying out business. In case, the AHs are classified as poor and vulnerable, the allowances in (ii) above will be **doubled**.

(e) In case my livelihood is affected, how will I be compensated?

The DMS will take note of the livelihoods of the AHs and whether there is any impact on them. Under the subproject, for AHs whose livelihood is impacted they will be provided with income loss or restoration support:

- (i) Loss of income during the transitional period where physical relocation is required. This will cover loss of income during the period of self-relocation.
- (ii) When main source of livelihood source is **permanently** lost, a livelihood restoration/support program will be provided to assist the AHs/APS to rebuild/restore their livelihood.

In case the AHs are classified as poor and vulnerable, these cash grant under the chosen livelihood restoration/support will be doubled. In addition, the subproject will seek to provide work opportunities during the construction period.

10. How will the replacement cost be decided, and compensation calculated?

The payment for compensation will be made based on the market value or full replacement cost of the lost assets without deduction being made for salvage materials, depreciation, or transaction costs. A Replacement Cost Study (RCS) will be carried out by a local qualified independent consultant with the necessary experience in asset valuation to determine the prevailing market rates. This will be done immediately after the DMS. The RCS consultant will carry out a detailed analysis of the market rates for all types of assets prevailing in the subproject or subproject area and prepare the unit rates for each category of the loss asset. These will be used to calculate the replacement value. The General Department of Resettlement (GDR) of the Ministry and Economy and Finance will select the RCS consultant before the commencement of the DMS.

11. Do I have right to complain about disagreements, compensation issues, resettlement or other related issues, if yes how?

Yes, you have right to lodge your complaint to Grievance Redress Committee (GRC) if you are unclear or unhappy with resettlement activities during implementation of the subproject. The members of GRC at all time are ready to assist you. The attempt to redress your grievance will commence at village level through the Village Chief. However, you can lodge your verbal complaint to any member of the GRC (i.e. at village, commune or resettlement working group). The GRC will record and document your complaint and advise you of the resolution. The GRM processes and relevant complaint and registration forms are in Appendix 3 of this PIB.

12. Who do I contact in case I need clarifications or have a problem/complaint?

At this stage of the preparation of the LCIP, the contact persons and their mobile numbers are provided in the box below who can provide you with clarifications on the subproject related technical issues. At this point in time, the eligibility, loss of assets, the DMS and the compensation packages have not been decided and hence any complaints relating to them will not be entertained.

Given that the LCIP is approved by the ADB, the Inter-Ministerial Resettlement Committee of the Ministry of Economy and Finance has established a Grievance Redress Mechanism (GRM) under which GRCs will be established at the local District, GDR and Provincial levels. These Committees will be set up and made operational before the commencement of the DMS. Any complaints or grievances on any aspects of the compensation package will need to be sent to these Committees for resolution.

If you have further queries and suggestions, please contact us at:

Contacts Persons Related to Land Acquisition and Resettlement

Mr. Hiv Panhaseth, Deputy Director, General Department of Resettlement, Ministry of Economy and Finance, Phnom Penh.

Tel: 078678888

Mr. Vong Daputhea, Project Manager, Project Management Unit, Ministry of Public Works and Transport, Phnom Penh

Tel: 092 465 060

Mr. Sok Sophal, Project Implementation Unit, Department of Public Works Bavet Province

Tel: 097 751 6364

Figure 1: Map Location for Solid Waste Management System Subproject

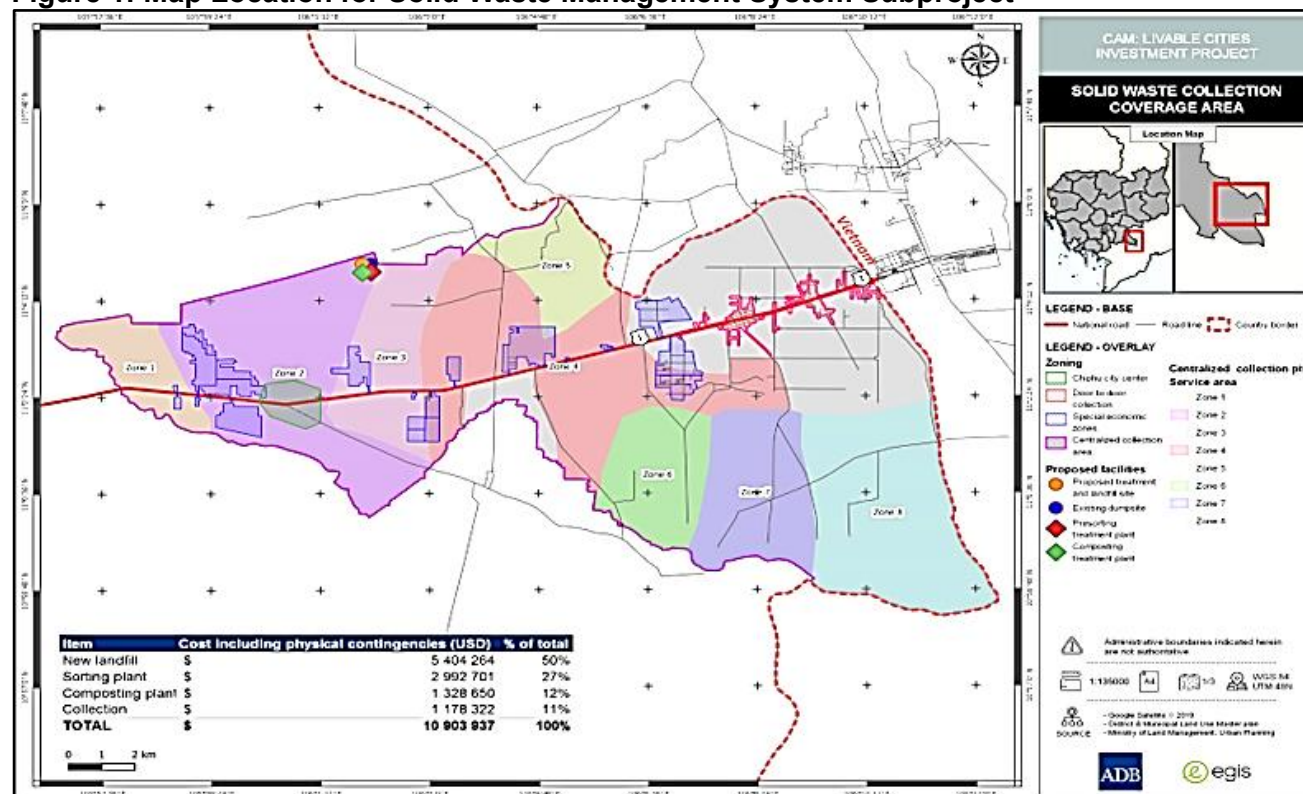


Figure 2: Mp Location of Wastewater Treatment Plant and Conveyance Network Subproject

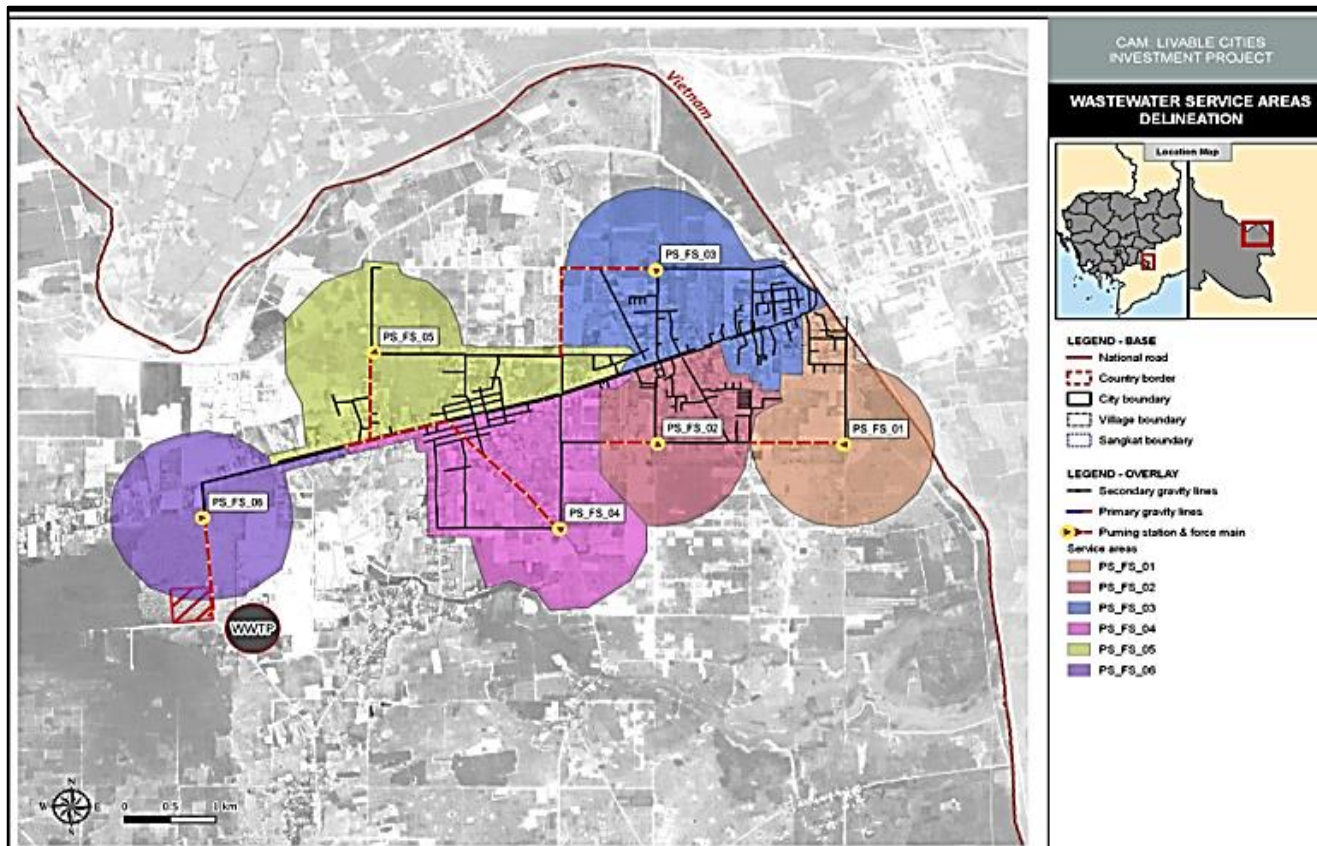
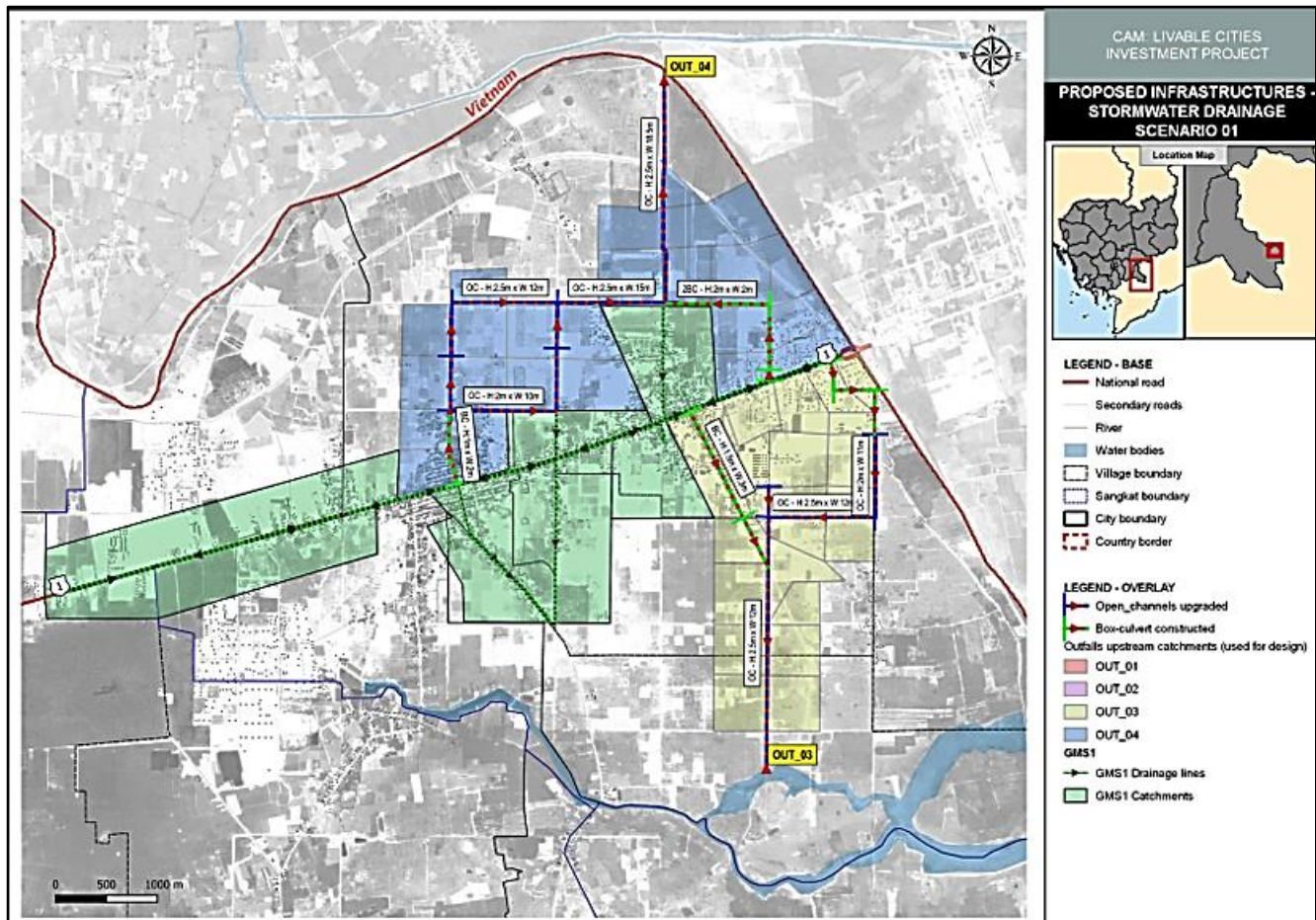


Figure 3: Location Map of Stormwater Drainage Network Subproject



Entitlement Matrix

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
1. Loss of Land					
1a	Loss of Land	Agricultural land	Legal owners and holders of real right of land, including those covered by customary rights, and recognizable/legalizable right holders and non-title holders	For the affected portion of the private land: cash compensation at full replacement cost Includes option of compensation at same replacement cost for affected land that remains after acquisition if remaining land becomes unviable or unusable.	In case the remaining land is not viable for continued use (to be determined during DMS by GDR DMS team), the entire plot is acquired on replacement cost. RCS will determine the rates. AHs to be notified at least 3 months in advance of the actual date that the land will be acquired by the subproject. AHs will be allowed to harvest their annual and perennial crops and timber products prior to construction, if any. If the head of household is married, compensation will be paid at the presence of both husband and wife. Land title adjustments will be made by MLMUPC to title documents.
1b	Loss of Land	Residential land	Legal owners and holders of real right of land, including those covered by customary rights, and recognizable/legalizable right holders and non-title holders	For the affected portion of the private land: cash compensation at full replacement cost Includes option of compensation at same replacement cost for affected land that remains after acquisition if remaining land becomes unviable or unusable.	In case the remaining land is not viable for continued use (to be determined during DMS by GDR DMS team), the entire plot is acquired on replacement cost. RCS will determine the rates. AHs to be notified at least 3 months in advance of the actual date that the land will

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
					be acquired by the subprojects. If the head of household is married, compensation will be paid at the presence of both husband and wife. Land title adjustments will be made by MLMUPC to title documents.
1c	Loss of Land	Agricultural, residential and commercial land	Tenants and Leaseholders	No compensation for loss of land as not legal owners of land, but compensation for any improvements made to the land.	
1d	Loss of Land		Illegal occupiers/squatters without legal titles or rights to land	No compensation for loss of land as not legal owners of land, but compensation for any improvements made to the land.	
1e	Loss of land use	Income Restoration	AHs losing productive agricultural land inside ROW or on public land	Cash compensation for improvements on the land and loss of income potential.	RCS will determine the compensation amounts. Advance notice to harvest at least three months before start of civil work, and APs will remove their crops and trees from the Subproject areas within one month after receiving compensation.
2. Loss of Trees					
2a	Loss of Fruit and Timber Trees	Agricultural land	All AHs regardless of land ownership/tenure status.	For fruit trees, replacement cost of loss based on the following formula: [(Quantity Harvested per Year) X (Market Price) X (Number of years it will bear fruit)] + cost of seedlings. - Timber trees that have a growth period of more than 5 years are classified as follows: - Sapling trees under 1 year: not	RCS will determine the rates. Market Price is based on Farm- Gate Price. Advance notice to harvest at least three months before commencement of civil work, and APs will remove their trees from the Subproject areas within one

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
				compensated as it can be replanted. Cost of seedling provided; - Young tree (1 to 3 years): valued at one-third of its full price as it can be replanted plus cost of seedlings; - Young tree (3 to 4 years): valued at two-thirds of its full price plus cost of seedlings; - Mature tree (more than 5 years): valued at full price plus cost of seedlings	month after receiving compensation.
3. Loss of Structures					
3a	Loss of, or damage, to houses and structures	Residential, commercial structures and other assets	All owners of the structures whether or not land is owned; with or without building permit	Cash compensation equivalent to replacement value of lost portion of the house/building/structure. If the owner rents or leases, compensation for any improvements/construction carried out by the renter/leaseholder will be deducted from the compensation payment to the owners. In the case of loss of only part of the houses/buildings/structure and the remaining portion is not livable or useable, compensation will be paid for complete structure at same replacement cost.	RCS will determine the rates. Viability of the remaining house/structure to be determined during DMS by DMS team. AH can retain the materials from demolition of their structures at no cost. AHs to get cash compensation at least one month ahead of civil works in the locality to provide them sufficient time to gradually re-organize the house and/or shop, thereby avoiding any disruption in the livelihood of the same. If the head of household is married, compensation will be paid at the presence of both husband and wife.
3b	Loss of, or damage, to houses and structures	Residential, commercial structures and other assets	Tenants and Leaseholders No AHs/APs	Cash compensation at replacement cost for any improvements or construction by the tenants or leaseholders. In the case of no improvements or	RCS will determine replacement cost. Documentary evidence or confirmation by the

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
				construction, no compensation is paid. Transfer/Disturbance Allowance equivalent to 1 month of rental or lease amount.	owner/commune/village, as relevant, is required.
3c	Loss of, or damage, to houses and structures	Residential, commercial structures and other assets	Illegal occupiers/squatters without legal titles or rights to land	Cash compensation equivalent to replacement value of loss of structures constructed by illegal occupier/squatters	RCS will determine replacement value.
3d	Loss of Houses and Structures (Transport Allowance)	Transport allowance for household and personal goods	AHs	Fixed Lump Sum allowance per AH based on average cost of transportation to new relocation place. Up to 5 km. More than 5 km.	RCS will determine the lump sum amount for the 2 rates.
4. Loss of Livelihood and Income Restoration					
4a	Permanent Loss of Livelihood Source	Income Restoration	AHs who lose their source of livelihood permanently	Entitled to participate in any one of the Livelihood Restoration/Support Programs: Land Based Livelihood Restoration for AHs engaged in land-based livelihood. (i) facilitate access to other land-based sources of income, if affordable productive land is available, like vegetable gardening, fruit tree, livestock and other similar land-based income generating sources; (ii) provision of training in farming or livestock; and (iii) lump sum cash grant of \$200 to re-start land based livelihood. In case of unavailability of suitable land, the AHs can opt for either employment or business-based livelihood program. Employment Based Livelihood Restoration for AHs who lose employment permanently.	The program will be based on the choice of the AP. Land Based for AHs who lose land-based livelihood Employment Based lump sum cash grant for AHs who lose employment -

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
				(i) provision of employment skills training; and (ii) lump sum cash grant equivalent to 3 months of income based on official poverty rate to supplement income support during the training period. OR Business Based Livelihood Restoration for AHs who lose businesses permanently or AHs who opt for this as an alternative livelihood source. (i) provision of business skills; and (ii) a lump sum cash grant of \$200 to assist in starting micro or home-based business. OR \$200 cash assistance and \$300 instead of IRP vocational training	based livelihood is calculated as: 3 months of income based on poverty rate= (Monthly Poverty Rate X Number of Members in DH X 3). Business Based for AHs who lose business-based livelihood. This can also be available to AHs who do not want to continue with land or employment-based livelihood at their own choice. AHs will only be eligible for any one of the above three options.
4b			Poor and Vulnerable AHs No AHs/APs	For Poor and Vulnerable AHs. In addition to skills training, (i) above lump sum cash grant will be doubled i.e. from \$200 to \$400 under land-based (and business-based livelihood restoration and lump sum cash grant from 3 months to 6 months of income based on official poverty rate under employment-based livelihood restoration; and (ii) priority in any employment opportunity under the Subprojects.	
4c					

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
	Loss of Income during Transition Period (Subsistence Allowance)	Business Income Loss	AHs who are engaged in business and have to relocate or temporarily close business during construction.	Cash compensation equivalent to the daily net income (as reflected in tax receipts or other documentation) multiplied by the days of business disruption. OR For unregistered/business owners who cannot show any tax receipt and cannot otherwise confirm income amount: Lump sum amount equivalent to 3 months of income based on the official monthly poverty rate established by the Government Monthly Poverty Rate X Number of Members in AH X 3 In case AH is classified as poor and vulnerable, the above lump sum amount is doubled.	Details to be determined during DMS and RCS. Both registered and unregistered businesses are compensated except when the nature of business is illegal. For this BRP \$33/month/capita poverty line is applied. If at the DRP preparation or implementation/contract offer stage for compensation payments, an updated poverty line is available, the latest poverty line applies.
4d		Loss of Employment Income	APs who loss income from temporary loss of employment in businesses disrupted	Cash compensation equivalent to the daily net income (as reflected in tax receipts or other documentation) multiplied by the days of business disruption. OR Lump sum amount equivalent to 3 months of income based on the official monthly poverty rate established by the Government. Monthly Poverty Rate X Number of Members in AH X 3.	
5. Special Assistance					

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
5a	Vulnerable Households	Income Restoration	All vulnerable AHs/APs	Lump sum amount equivalent to 3 months of income based on the official monthly poverty rate established by RGC. Monthly Poverty Rate X Number of Members in AH X 3	Vulnerable households to be verified during the DMS. In case vulnerable are identified, provisions of the EM will apply to them. At the DRP stage, the latest poverty line will be applied, and vulnerability status reconfirmed based on the latest poverty line as provided by MOP.
6. Temporarily affected properties during construction					
6a	Temporarily affected land and non-land assets during construction	Temporary impact on structures	Owner of temporarily affected land and non-land assets, regardless of land ownership status.	The contractor will pay rent for any land/structure required for construction workspace outside the ROW. For identified temporarily impacted assets within the Corridor of Impact (COI), no compensation, but construction contractor will be responsible to restore/rebuild all these temporary impacted assets to pre-subproject condition or better (such as pavement, driveways, signposts, spirit houses and light weight extended eaves). If reinstatement is not an option, then principles of the EM apply and cash compensation at replacement cost to be paid. For assets impacted by contractor outside of COI, then principles of the EM apply and cash compensation at replacement cost to be paid.	As part of the civil works contract, all pavements/walkways/access roads/driveways to properties adjacent to the road will be repaired or replaced including culverts and other facilities, to a condition equal or better than the present. AHs will be notified at least one month in advance of the actual date that the land/non-land asset will be temporarily used or affected by the Subproject. Contractor will be required by contract and EMP to cover these costs. Construction and maintenance will be carried out so as to minimize damage and the disruption period will be minimized as much as possible.
7. Unanticipated Impact					
7a	Unanticipated involuntary resettlement Impacts	Any impact not accounted for	Eligible displaced persons	New displaced persons that will be identified (i.e., those who will be included among the adversely affected because of changes in the Subproject design or alignment prior	GDR shall ensure the conduct of a social assessment and update or formulate a new RP or a DRP addendum depending on the extent of the impact changes. Unanticipated

No	Type of Loss	Application	Category of AH	Entitlements	Clarification / Implementation
				to or even during construction works) are entitled to the same entitlements as those in this EM.	impacts will be documented and mitigated based on the principles provided in this DRP.

Source: BRP, Bavet Subproject, September 2021



GRIEVANCE REDRESS MECHANISM (GRM)

If any AP is not clear about, or not satisfied, with the compensation offered for losses or, if for any reason, the compensation has not been paid according to the agreed schedule, the AP has the right to lodge a complaint (see form attached).

The GRM consists of a three-stage process managed by the Provincial Grievance Redress Committee (PGRC) as follows:

First stage: The aggrieved AP can lodge a written complaint to the Head of the District Office where the subproject is located. The AP can bring a community elder or representative to mediate in the matter at the District level. The IRC-WG will apprise the Head of the District Office about the matter. A conciliation meeting must be held, and a decision taken within 15 working days after the date of registration of the complaint by the District Office. If the complaint is resolved at the District Level to the satisfaction of the AP, the IRC-WG will inform GDR's Department of Internal Monitoring and Data Management (DIMDM), which will review and seek the approval of the Director General, GDR for appropriate remedial action. The AP will be informed in writing by the GDR of the decision and the remedial action that will be taken within 15 working days from the receipt of the letter from the District Office. If the complaint is rejected at this stage, the District Office will inform the AP in writing and if the AP is not satisfied with the result, s/he can proceed to the next step and lodge a written complaint to the GDR for resolution.

Second stage: The GDR through its DIMDM will carry out a holistic review of the complaint and submit a report on its findings with the relevant recommendations, if any, to the Director General, GDR for a decision. It may also conduct a field visit to meet the aggrieved AP and the IRC-WG to gather the relevant details. The final report must be completed within 30 working days from the date of receipt of the complaint and submitted to the Director General, GDR for a final decision within 5 working days of receipt of the final report. In the event that the subject matter requires a policy level intervention, it will be referred to the IRC for a decision in which case 10 more working days will be added to the deadline for final decision.

Third stage: The AP will submit a written complaint with the PGRC through the Provincial Governor's Office. The AP or a representative will be given an opportunity to present its case during the meeting and the PGRC may consider any compelling and special circumstances of the AP when reaching a decision. The GDR will send a representative, as a non-voting member, to provide explanation for the rejection of the complaint at the second step by the GDR. The decision of the PGRC must be reached on a consensus basis and will be final and binding except when the matter relates to any policy of the Government. Decisions on Government policy matters on LAR are decided by the IRC. The PGRC will have 40 working days from the date of receipt of the complaint to reach a final decision. The decision of the PGRC will be sent to the IRC through the GDR for endorsement before taking any remedial action.

Court stage: The handling of the complaint at the administrative ends at the Third Step. There are no fees or charges levied on the AP for lodging and processing of the complaints under the First, Second and Third Steps. The aggrieved AP can file a suit at the Provincial/Municipal Courts, as applicable, to seek a resolution. Such actions will be at the cost of the AP. At this stage, there is no involvement of the GDR, PRSC or IRC-WG unless there is a judicial order from the competent court.

Complaints can be made both in writing or verbally. Verbal complaints will be recorded by grievance redress officer at each stage. Copies of the complaints and decisions will be provided to the concerned persons. Monitoring and decisions will be recorded (see attachments).

The contact details of each level of GRM are:

- (i) Commune Grievance Redress Committee

Commune Name:

Name: Mr. Sao Sokhon

Position: Chief of Bavet Sangkat

Tel: 088 63 45 777

(ii) District Grievance Redress Committee

Name: Mr. Kham Rithy

Position: Chief of City Hall Administration

Tel: 097 48 11 801

(iii) GDR Grievance Redress Committee

Name: Mr. Sok Sopheak

Position: Chief of Bureau, DIMDM, GDR

Tel: 012 923 607

(iv) Provincial Grievance Redress Committee

Name: Mr. Oum Sapahat

Position: Director of Provincial Inter-sectoral Department

Tel: 097 76 12 567



Individual Complaint Form
Livable Cities Investment Project

Date of Complaint		DMS No.
Name of Complainant		
ID Number		
Family Book		
Contact (Mobile No)		
Address		
Summary of Complaint		
List of Supporting Documents/Evidence		

Name:

(Head of Household)

Sign/Thump Print:

Date:

Register of Complaint
Livable Cities Investment Project

Municipality-District-Kahn: _____

Capital-Province: _____

Date of Receipt of Complaint	Case No.	Name and ID of Complaint		Main Points of Complaint
		Name	ID Number / Family Book	



Royal Government of Cambodia

Nation Religion King

Letter from Head of District-Khan

Municipality-District-Kahn: _____

Capital-Province: _____

Individual Complaint		
Case No.		
Name of Complainant		
Date of Complaint		
Summary of Complaints <i>(Same as in Individual Complaint Register Form)</i>		
GRC Meeting Held		
Date:	Time:	Location:
Participants		
Summary of Discussion		
Date of Field Inspection (if any)		
Result of the Meeting / Decision		
☐ Reject-No basis as per Entitlement Matrix		
☐ Has Merit - Complaint forwarded to Resettlement Department for necessary action		

Name:

Position:

Sign/Thump Print:

Date:

ខិត្តប័ណ្ណផ្សព្វផ្សាយព័ត៌មានសាធារណៈ

គម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP)

គោលបំណងនៃខិត្តប័ណ្ណផ្សព្វផ្សាយព័ត៌មានសាធារណៈនេះ គឺដើម្បីផ្តល់ព័ត៌មានគម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP) ទាក់ទងនឹងព័ត៌មានបុគ្គល និងគ្រួសារដែលស្ថិតនៅក្នុងទីតាំងនៃអនុគម្រោង ដែលប្រហែលជាអនុវត្តផលប៉ះពាល់ (ការផ្លាស់ប្តូរទីតាំង ការបាត់បង់នូវដីលំនៅដ្ឋាន ឬការបាត់បង់ទីជម្រក) ឬផលប៉ះពាល់ទៅលើផ្នែកសេដ្ឋកិច្ច (ការបាត់បង់នូវដីដែលកំពុងតែប្រើប្រាស់ ទ្រព្យសម្បត្តិ ការប្រើប្រាស់លើទ្រព្យសម្បត្តិ ប្រភពប្រាក់ចំណូល ឬការប្រកបរបរចិញ្ចឹមជីវិត) គ្រួសារដែលរងផលប៉ះពាល់ដោយការធ្វើលទ្ធកម្មដី និងការងារដោះស្រាយដោយផលប៉ះពាល់ដោយមិនស្ម័គ្រចិត្ត។

A. ព័ត៌មានអំពីគម្រោង

១. តើអ្វីទៅជាគម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ?

ធនាគារអភិវឌ្ឍន៍អាស៊ី (ADB) កំពុងគាំទ្រដល់រាជរដ្ឋាភិបាលកម្ពុជា (RGC) ដើម្បីសម្រួលដល់កំណើនសេដ្ឋកិច្ចប្រកបដោយចីរភាព។ គម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP) នឹងផ្តោតសំខាន់ទៅលើក្រុងបាវិត ក្រុងប៉ោយប៉ែត និងក្រុងកំពត ដោយសារតែខេត្តទាំងនេះ មានសក្តានុពលនៃសេដ្ឋកិច្ច ហើយក៏ជាទីតាំងពាណិជ្ជកម្ម និងជាតំបន់ទេសចរណ៍នៃក្រុងខាងលើនេះ។ ប្រាក់កម្ចីសម្រាប់គម្រោងអភិវឌ្ឍន៍ ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP) ត្រូវបានអនុម័តនៅថ្ងៃទី១៨ ខែវិច្ឆិកា ឆ្នាំ២០២១។ ក្រសួងសាធារណការ និងដឹកជញ្ជូន (MPWT) ជាភ្នាក់ងារប្រតិបត្តិសម្រាប់គម្រោងនេះ។

២. តើអ្វីទៅជាគោលបំណងនៃគម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP) ?

គោលបំណងនៃគម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP) គឺដើម្បីធ្វើឱ្យប្រសើរឡើងនូវ៖ (i) បទដ្ឋានគតិយុត្តបរិស្ថាន (ii) ការរៀបចំស្ថាប័ន និងអភិបាលកិច្ចទាក់ទងនឹងវិស័យហេដ្ឋារចនាសម្ព័ន្ធ និង (iii) ហេដ្ឋារចនាសម្ព័ន្ធទីក្រុង (ដោយផ្តោតការយកចិត្តទុកដាក់លើការផ្គត់ផ្គង់ទឹកស្អាត អនាម័យ ការគ្រប់គ្រងកាកសំណល់រឹង និងបណ្តាញលូបង្ហូរទឹកភ្លៀង)។

៣. តើអ្វីទៅជាធាតុចូលនៃគម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP) ?

ធាតុចូលរបស់គម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP) មានចំនួន៣ ដូចជា៖ (i) ភាពប្រសើរឡើងនៃគោលនយោបាយ និងបទប្បញ្ញត្តិបរិស្ថាន (ii) ភាពប្រសើរឡើងនៃហេដ្ឋារចនាសម្ព័ន្ធទីក្រុង និង (iii) ភាពប្រសើរឡើងនៃប្រសិទ្ធភាពរបស់ស្ថាប័ន និងអភិបាលកិច្ច។

៤. តើអនុគម្រោងនៃគម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ មានអ្វីខ្លះ?



អនុគម្រោងនៃគម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ សម្រាប់ក្រុងបាវិត មានដូចជា៖ (i) អនុគម្រោងប្រព័ន្ធគ្រប់គ្រងការកាត់សំណល់រឹងនៅក្រុងបាវិត និង (ii) អនុគម្រោងស្ថានីយ៍ប្រព្រឹត្តកម្មទឹកកខ្វក់ បណ្តាញលូបង្ហូរទឹកភ្លៀងក្រុងបាវិត។ ផែនទី នៃទីតាំងអនុគម្រោងទាំងពីរមានភ្ជាប់នៅ **ឧបសម្ព័ន្ធទី១** ។

៥. តើវិធានការធ្វើលទ្ធកម្មដី និងការងារដោះស្រាយផលប៉ះពាល់ អាចមានផលប៉ះពាល់អ្វីខ្លះ?

ការធ្វើលទ្ធកម្មដី និងការងារដោះស្រាយផលប៉ះពាល់ អាចនឹងមានផលប៉ះពាល់ទៅលើដីធ្លី ឬផលប៉ះពាល់ដល់ទ្រព្យសម្បត្តិផ្សេងទៀត ដោយសារសមាសភាគនៃអនុគម្រោង។ បន្ទាប់ពីការសិក្សាលើគំនូសប្លង់បច្ចេកទេសលម្អិត (DED) អង្គភាពគ្រប់គ្រងគម្រោង (PMU) នៃក្រសួងសាធារណការ និងដឹកជញ្ជូន (MPWT) និងទីប្រឹក្សាបច្ចេកទេស នឹងបោះបង្គោលនិយាមការនៅទីតាំងដែលរងផលប៉ះពាល់ មុនពេលចាប់ផ្តើមការអង្កេតវាស់វែងលម្អិត។ ផែនការដោះស្រាយផលប៉ះពាល់នឹងត្រូវបញ្ចប់ទន្ទឹមគ្នាជាមួយនឹងគំនូសប្លង់នៃអនុគម្រោង ហើយសំណង់ទាំងអស់នឹងត្រូវទូទាត់ មុនការចាប់ផ្តើមការងារសាងសង់។

៦. តើអ្វីនៅជាដីចំណីដូន (ROW) និងរបៀបផលប៉ះពាល់ (COI) នៃអនុគម្រោង?

ដីចំណីដូន គឺជាដីកម្មសិទ្ធិរបស់រដ្ឋ ដែលបម្រុងទុកសម្រាប់ការពង្រីក ឬក៏សាងសង់ហេដ្ឋារចនាសម្ព័ន្ធសាធារណៈនាពេលអនាគត មានដូចជា៖ ផ្លូវថ្នល់ បណ្តាញលូបង្ហូរទឹកភ្លៀង និងបណ្តាញលូទឹកកខ្វក់ជាដើម។ តំបន់ដែលជារបៀងនៃផលប៉ះពាល់ នឹងត្រូវប៉ះពាល់ដោយផ្ទាល់នៅពេលដែលការងារសាងសង់ចាប់ផ្តើមអនុវត្ត។

ទំហំនៃរបៀងផលប៉ះពាល់ពិតប្រាកដ អាចនឹងមានការផ្លាស់ប្តូរបន្ទាប់ពីការបញ្ចប់នៃគំនូសប្លង់បច្ចេកទេសលម្អិត។ កិច្ចប្រជុំប្រឹក្សាយោបល់ផ្សេងទៀត នឹងធ្វើជាមួយគ្រួសាររងផលប៉ះពាល់នៅថ្នាក់ឃុំ ឬភូមិ បន្ទាប់ពីការបញ្ចប់នៃគំនូសប្លង់បច្ចេកទេសលម្អិត ដើម្បីបញ្ជាក់ជូនពួកគេអោយដឹងអំពីគំនូសប្លង់បច្ចេកទេសលម្អិត និងការផ្លាស់ប្តូរអំពីរបៀងនៃផលប៉ះពាល់។

៧. តើអ្វីនៅជាការប្រកាសទូទៅថ្ងៃឯកសារសម្រាប់អ្នកដែលមានសិទ្ធិទទួលបានព័ត៌មានអ្វីខ្លះ?

ការប្រកាសថ្ងៃឯកសារវាទ (COD) គឺជាថ្ងៃកំណត់ដោយរាជរដ្ឋាភិបាលកម្ពុជា (RGC) ដែលប្រកាសអំពីអានុភាពនៃសិទ្ធិរបស់គ្រួសាររងផលប៉ះពាល់/ប្រជាពលរដ្ឋរងផលប៉ះពាល់ (AH/AP) ដើម្បីទទួលបានសំណង និងជំនួយក្នុងការដោះស្រាយផលប៉ះពាល់នៃអនុគម្រោង។ ការប្រកាសថ្ងៃឯកសារវាទបានធ្វើឡើងនៅថ្ងៃទី១២ ខែកញ្ញា ឆ្នាំ២០២០។ មានតែគ្រួសាររងផលប៉ះពាល់ដែលស្ថិតក្នុងរបៀងនៃផលប៉ះពាល់ ឬគ្រួសារដែលបានបាត់បង់នូវទ្រព្យសម្បត្តិមុនពេលនៃថ្ងៃប្រកាសឯកសារវាទតែប៉ុណ្ណោះដែលនឹងទទួលបាននូវការទូទាត់សំណង។ រាល់បុគ្គលដែលកាន់កាប់ដីក្រោយថ្ងៃប្រកាសឯកសារវាទ នឹងមិនមានសិទ្ធិទទួលបានការទូទាត់សំណងនោះទេ។ លើសពីនេះទៅទៀត គ្រប់សំណងថ្មីៗ ឬការពង្រីកសំណងថ្មីបន្ថែមក្នុងរបៀងនៃផលប៉ះពាល់ ត្រូវបានចាត់ទុកថាមិនស្របច្បាប់ ហើយមិនមានសិទ្ធិលើការទូទាត់សំណងផងដែរ។ គ្រួសាររងផលប៉ះពាល់/ប្រជាពលរដ្ឋរងផលប៉ះពាល់ ត្រូវរុះរើចេញពីរបៀងនៃផលប៉ះពាល់ ក្រោយពេលដែលពួកគេទទួលបានការទូទាត់សំណង ដើម្បីអនុញ្ញាតអោយការដ្ឋានសាងសង់ចាប់ផ្តើមការងារ។

៨. តើអ្វីទៅជា ការអង្កេតវាស់វែងលម្អិត (DMS) ហើយថាតើគេនឹងចាប់ផ្តើមអនុវត្តនៅពេលណា?

ការអង្កេតវាស់វែងលម្អិត គឺជាការអង្កេត និងវាស់វែងដោយលម្អិតចំពោះការប៉ះពាល់លើទ្រព្យសម្បត្តិ មានដូចជា ដីធ្លី ផ្ទះសម្បែង និងសំណង់អគារ តូបហាង ដំណាំ និងដើមឈើរបស់គ្រួសាររងផលប៉ះពាល់។ ការអង្កេតនេះ នឹងធ្វើឡើងចំពោះគ្រួសាររងផលប៉ះពាល់នីមួយៗ ដើម្បីកត់ត្រាទុក និងការយល់ព្រមទៅលើទ្រព្យសម្បត្តិដែលរងផលប៉ះពាល់។ ការអង្កេតនេះ នឹងប្រមូលព័ត៌មាន និងទិន្នន័យ ទៅលើស្ថានភាពសេដ្ឋកិច្ចសង្គម ប្រភពនៃការចិញ្ចឹមជីវិត ប្រាក់ចំណូល កម្រិតនៃការអប់រំរបស់គ្រួសាររងផលប៉ះពាល់និងប្រជាពលរដ្ឋរងផលប៉ះពាល់ និងជនងាយរងគ្រោះជាដើម។ សកម្មភាពខាងលើនេះ នឹងមានវត្តមានគ្រួសាររងផលប៉ះពាល់ ហើយមានសាក្សីពីអាជ្ញាធរនៃឃុំ និងភូមិផងដែរ។ ការអង្កេតវាស់វែងលម្អិត គឺជាមូលដ្ឋាននៃការគណនាទៅលើកញ្ចប់ថវិកាសំណងសម្រាប់គ្រួសាររងផលប៉ះពាល់នីមួយៗ។ ការអង្កេតវាស់វែងលម្អិត នឹងត្រូវបានអនុវត្តក្រោយពេលដែលគំនូសប្លង់បច្ចេកទេសលម្អិតនិងឬការបោះបង្គោលកំណត់ទីតាំងដីដែលរងផលប៉ះពាល់ត្រូវបានបញ្ចប់។ ប្រជាពលរដ្ឋរងផលប៉ះពាល់ និងអាជ្ញាធរមូលដ្ឋាន នឹងត្រូវបានជូនដំណឹងជាមុនអំពីសកម្មភាពទាំងនេះ។

៩. តើសិទ្ធិ និងការទូទាត់សំណងមានអ្វីខ្លះ?

តារាងទទួលបានសំណង មាននៅក្នុង**ឧបសម្ព័ន្ធទី២**។ គ្រួសារ/ប្រជាពលរដ្ឋរងផលប៉ះពាល់ដោយសារគម្រោង មានសិទ្ធិទទួលបាននូវការទូទាត់សំណងសម្រាប់ទ្រព្យសម្បត្តិដែលរងផលប៉ះពាល់ ក្រោមគោលការណ៍ទូទាត់សំណងដូចខាងក្រោម៖

- គោលការណ៍ផ្តល់សំណងជាមុនដោយសមរម្យ និងយុត្តិធម៌
- គោលការណ៍ទទួលបានសំណងពេញលេញមុនអស្សាមិករណ៍ ឬការសម្អាតទីតាំងដី
- គោលការណ៍ថ្លៃជំនួស គឺជាការទូទាត់សំណងដោយពឹងផ្អែកទៅលើតម្លៃជំនួស នៃទ្រព្យសម្បត្តិដែលបាត់បង់ស្របតាមតម្លៃទីផ្សារ ហើយកំណត់ដោយទីប្រឹក្សាឯករាជ្យតាមរយៈការសិក្សាថ្លៃជំនួស (RCS) ដោយមិនមានការកាត់រំលស់ ថ្លៃសម្ភារៈ និងថ្លៃប្រតិបត្តិការឡើយ។

(ក) តើខ្ញុំនឹងទទួលបានសំណងសម្រាប់ដីដែលបាត់បង់ដែរឬទេ?

ដីចំណីផ្លូវគឺជាកម្មសិទ្ធិរបស់រដ្ឋ ហើយគ្រួសាររងផលប៉ះពាល់ដែលប្រើប្រាស់និងកាន់កាប់ចំពោះដីចំណីផ្លូវ គឺមិនត្រូវបានទូទាត់សំណងទេ។ ប៉ុន្តែពួកគេអាចនឹងទទួលបាននូវសំណងលើការបាត់បង់នៃការប្រើប្រាស់ដីទាំងនោះ មានដូចជា សំណង់អគារ ការបង្កើតតូបលក់ដូរ ការដាំដំណាំ ឬដើមឈើហូបផ្លែជាដើម។

ក្នុងករណី ក្រោយពីបញ្ចប់គំនូសប្លង់បច្ចេកទេសលម្អិត វានឹងក្លាយជាភាពចាំបាច់ដើម្បីធ្វើលទ្ធកម្មដីឯកជន សម្រាប់គំនូសប្លង់ថ្មី ឬដីកម្មសិទ្ធិរបស់គ្រួសាររងផលប៉ះពាល់ដែល**ស្ថិតនៅក្រៅដីចំណីផ្លូវ** បន្ទាប់មកការទូទាត់សំណងនឹងត្រូវទូទាត់ស្របតាមថ្លៃជំនួសចំពោះដីដែលបានធ្វើលទ្ធកម្ម។

(ខ) តើខ្ញុំនឹងទទួលបានសំណងសម្រាប់ផ្ទះ និងសំណង់ដែលរងផលប៉ះពាល់ជាកម្មសិទ្ធិរបស់ខ្ញុំដែរឬទេ?



បាន។ ផ្ទះ និងសំណង់ឯកជន ដែលប៉ះពាល់ដោយសារអនុគមន៍ នឹងត្រូវទូទាត់សំណងស្របតាមថ្លៃជំនួស។ គ្មានចំនួនទឹកប្រាក់ណាមួយពីអត្រាថ្លៃជំនួស នឹងត្រូវកាត់រំលស់ ថ្លៃសម្ភារៈសាងសង់ ឬថ្លៃប្រតិបត្តិការឡើយ។ សំណងរួមមាន រង ជញ្ជាំង បន្ទប់ទឹកឬបង្គន់ សាបមុខផ្ទះ ក្លោងទ្វារ និងសំណង់ដទៃទៀតជាមូលដ្ឋានសម្រាប់ស្រួលរងផលប៉ះពាល់។ ប្រសិនបើផ្ទះ ឬសំណង់ ដែលប៉ះពាល់តែមួយផ្នែក ដូច្នេះការទូទាត់សំណងក៏នឹងធ្វើការទូទាត់ជូនផ្នែកណាមួយដែលប៉ះពាល់នោះដែរ លើកលែងតែការសិក្សាបានបង្ហាញថា ផ្នែកដែលនៅសេសសល់ គឺមិនអាចប្រើប្រាស់បានបន្ទាប់ពីរុះរើផ្នែកដែលប៉ះពាល់តែមួយនោះចេញ។ ក្នុងករណីនេះ ការទូទាត់សំណងនឹងត្រូវទូទាត់ជូនសម្រាប់សំណងទាំងមូលតែម្តង។

(គ) តើខ្ញុំនឹងទទួលបានសំណងសម្រាប់ដំណាំ និងដើមឈើរបស់ខ្ញុំដែរឬទេ ?

បាន។ សម្រាប់ដំណាំប្រចាំឆ្នាំ ដែលបានដាំដុះជាប្រចាំឆ្នាំតាមរដូវដូចជា ស្រូវ នឹងត្រូវទូទាត់ជាសំណងសម្រាប់ ប្រាក់ចំណូលសុទ្ធមួយឆ្នាំ។ បន្ថែមពីនេះទៅទៀត ការកាត់សម្គាល់ និងការជូនដំណឹងជាពិសេស នឹងត្រូវបានផ្តល់ជូន ទៅដល់គ្រួសាររងផលប៉ះពាល់ ដូច្នេះពួកគាត់អាចធ្វើការច្រូតកាត់ប្រមូលផលដំណាំទាន់ពេលវេលា។ ករណីខាងលើនេះ ការទូទាត់សំណងមិនត្រូវបានផ្តល់ជូនទេ។ សម្រាប់ដំណាំស្រូវដែលកំពុងតែទុំ ហើយមិនអាចច្រូតកាត់ប្រមូលផលតាមពេលវេលាដោយសារតែតម្រូវការនៃដី គ្រួសាររងផលប៉ះពាល់នឹងទទួលបានការទូទាត់សំណងទៅលើការបាត់បង់ដំណាំ ដោយមានអត្រានៃថ្លៃជំនួសជាមូលដ្ឋាន។

សម្រាប់ដើមឈើហូបផ្លែវិញ (ដើមឈើអាស្រ័យផលជាផ្លែច្រើនឆ្នាំដូចជា ដើមស្វាយ) គ្រួសាររងផលប៉ះពាល់នឹងទទួលបានសំណងសម្រាប់ការបាត់បង់ដើមឈើទាំងនោះ ដោយផ្អែកលើការបាត់បង់ប្រាក់ចំណូល និងរយៈពេលក្នុងការដាំដុះឡើងវិញនៃដើមឈើទាំងនោះ។

(ឃ) ប្រសិនបើខ្ញុំត្រូវផ្លាស់ទីតាំងផ្ទះ ឬហាងរបស់ខ្ញុំ តើមានជំនួយឧបត្ថម្ភសម្រាប់ការផ្លាស់ប្តូរទីតាំងដែរឬទេ?

មាន។ កិច្ចខិតខំប្រឹងប្រែងទាំងអស់នឹងត្រូវធ្វើឡើងក្នុងដំណាក់កាលសិក្សាប្តូរលម្អិតរបស់អនុគមន៍ ដើម្បីជៀសវាងនូវការផ្លាស់ប្តូរទៅកាន់ទីតាំងថ្មីរបស់គ្រួសាររងផលប៉ះពាល់។ សម្រាប់ការផ្លាស់ប្តូរទីតាំងផ្នែករូបវន្ត ឬផ្ទះសម្បែង ឬសំណង់ប្រហាក់ប្រហែលនឹងលំនៅដ្ឋាន ចេញពីរបៀបនៃផលប៉ះពាល់ នឹងត្រូវបានផ្តល់ជូននូវប្រាក់ឧបត្ថម្ភ ជំនួយឧបត្ថម្ភសម្រាប់ការផ្លាស់ប្តូរទីតាំង និងជម្រើសសម្រាប់ផ្លាស់ប្តូរទីតាំងនៃទីតាំងដែលត្រូវផ្លាស់ប្តូរចេញ។ ប្រហែលជាមានការផ្លាស់ប្តូរទីតាំងនូវតូបមួយចំនួន ពេលដែលពួកគាត់តម្រូវឱ្យរុះរើចេញពីដីចំណីផ្លូវដោយខ្លួនឯង។ ផ្នែកខ្លះនៃការទូទាត់ទៅលើសំណង់អគារ គឺអាស្រ័យលើថ្លៃជំនួស ប្រាក់ឧបត្ថម្ភផ្សេងៗដែលត្រូវទូទាត់ជូនដូចជា៖ (i) ប្រាក់ឧបត្ថម្ភសរុបសម្រាប់ការដឹកជញ្ជូនទ្រព្យសម្បត្តិ និង(ii) ការបាត់បង់នូវប្រាក់ចំណូលពីមុខរបរ ក្នុងករណីដែលតូបទាំងនោះកំពុងដំណើរការអាជីវកម្ម។ ក្នុងករណី ដែលគ្រួសាររងផលប៉ះពាល់បានបញ្ជាក់ថាជាគ្រួសារក្រីក្រ និងងាយរងគ្រោះ ប្រាក់ឧបត្ថម្ភបន្ថែមក្នុងចំណុចទី (ii) ខាងលើនឹងត្រូវបន្ថែមទៀតផង។

ង) តើមានការប៉ះពាល់ដល់ការរស់នៅរបស់ខ្ញុំ តើខ្ញុំនឹងទទួលបានសំណងយ៉ាងដូចម្តេចដែរ?

ការអង្កេតវាស់វែងលម្អិត នឹងកំណត់សម្គាល់អំពីជីវភាពរស់នៅប្រចាំថ្ងៃរបស់គ្រួសាររងផលប៉ះពាល់ ហើយថាតើមានផលប៉ះពាល់អ្វីខ្លះទៅដល់ពួកគេ។ សម្រាប់គ្រួសាររងផលប៉ះពាល់ដល់ជីវភាព នៅក្នុងអនុគម្រោង ពួកគេនឹងត្រូវបានផ្តល់ជូន លើការបាត់បង់ប្រាក់ចំណូល ឬការគំរាមការស្តារចំណូលបន្ថែមដោយ÷

- (i) ការបាត់បង់ប្រាក់ចំណូលក្នុងកំឡុងពេលអន្តរកាលដែលការតម្រូវឱ្យមានការផ្លាស់ប្តូរទីតាំងផ្ទះក្នុងប្រទេស។ ករណីនេះ ការផ្តល់ជូននឹងគ្របដណ្តប់លើការបាត់បង់ប្រាក់ចំណូលក្នុងកំឡុងពេលផ្លាស់ប្តូរទីតាំងដោយខ្លួនឯង។
- (ii) នៅពេលដែលចំណូល ជាប្រភពចម្បងសម្រាប់ជីវភាពរស់នៅបានបាត់បង់ជាអចិន្ត្រៃយ៍ កម្មវិធីគាំទ្រ ឬស្ថាប័នទ្វេភាពចិញ្ចឹមជីវិតនឹងត្រូវផ្តល់ជូនជាជំនួយដល់គ្រួសារ/ប្រជាពលរដ្ឋរងផលប៉ះពាល់ ដើម្បីបង្កើត/ស្តារជីវភាពរស់នៅឱ្យប្រសើរឡើងវិញ។

ក្នុងករណីដែលគ្រួសាររងផលប៉ះពាល់ត្រូវបានចាត់ទុកថាជាគ្រួសារក្រីក្រ និងងាយរងគ្រោះ ទឹកប្រាក់ឧបត្ថម្ភក្រោមកម្មវិធីគាំទ្រ ឬស្ថាប័នទ្វេភាពចិញ្ចឹមជីវិត នឹងត្រូវបានផ្តល់បន្ថែមទៀត។ លើសពីនេះទៅទៀត អនុគម្រោងនឹងព្យាយាមផ្តល់ឱកាសការងារក្នុងកំឡុងពេលនៃការសាងសង់។

១០. តើការសម្រេចថ្លៃដ៏ទាប និងការគណនាថ្លៃសំណងនឹងប្រព្រឹត្តទៅយ៉ាងដូចម្តេច?

ការទូទាត់សំណងនឹងត្រូវធ្វើឡើងដោយផ្អែកលើតម្លៃទីផ្សារ ឬការសិក្សាតម្លៃជំនួសនៃទ្រព្យសម្បត្តិដែលបានបាត់បង់ដោយមិនមានការកាត់រំលស់លើថ្លៃសម្ភារៈ ឬថ្លៃប្រតិបត្តិការឡើយ។ ការសិក្សាថ្លៃជំនួស នឹងសិក្សាដោយទីប្រឹក្សាការកាត់បន្ថយក្នុងស្រុកដែលមានលក្ខណៈសម្បត្តិគ្រប់គ្រាន់ ជាមួយនឹងបទពិសោធន៍ក្នុងការវាយតម្លៃលើទ្រព្យសម្បត្តិដោយស្របតាមអត្រាទីផ្សារបច្ចុប្បន្ន។ ការសិក្សានេះ នឹងត្រូវបញ្ចប់ក្រោយពេលដែលការអង្កេតវាស់វែងលម្អិតត្រូវបានបញ្ចប់។ ទីប្រឹក្សានៃការសិក្សាថ្លៃជំនួស នឹងអនុវត្តការងារយ៉ាងលម្អិតដោយវិភាគលើអត្រាតម្លៃទីផ្សារសម្រាប់វាយតម្លៃ លើប្រភេទនៃទ្រព្យសម្បត្តិទាំងអស់ដែលរងផលប៉ះពាល់ក្នុងអនុគម្រោង ឬតំបន់នៃអនុគម្រោង ហើយរៀបចំទៅតាមប្រភេទតម្លៃ និងទ្រព្យសម្បត្តិដែលរងផលប៉ះពាល់។ ការសិក្សាទាំងនេះនឹងត្រូវបានប្រើប្រាស់ដើម្បីគណនាទៅលើតម្លៃជំនួស។ អគ្គនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ (GDR) នៃក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ នឹងជ្រើសរើសទីប្រឹក្សាដើម្បីធ្វើការសិក្សាថ្លៃជំនួស មុនពេលចាប់ផ្តើមធ្វើការចុះអង្កេតវាស់វែងលម្អិត។

១១. តើមានសិទ្ធិម្ចាស់ដីកាអំពីការមិនចុះសម្រុងគ្នា បញ្ហាសំណង ការដោះស្រាយផលប៉ះពាល់ ឬបញ្ហាផ្សេងទៀតនៃប្រសិទ្ធភាព តើត្រូវធ្វើដូចម្តេច?

ត្រូវហើយ អ្នកមានសិទ្ធិដាក់ពាក្យបណ្តឹងរបស់អ្នកទៅកាន់គណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ា (GRC) ប្រសិនបើអ្នកមិនច្បាស់ឬមិនសប្បាយចិត្តនឹងការដោះស្រាយផលប៉ះពាល់។ សមាជិក នៃគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ា (GRC) នឹងត្រៀមខ្លួនគ្រប់ពេលវេលាដើម្បីជួយអ្នក។ ការជួយដោះស្រាយបណ្តឹងតវ៉ារបស់អ្នក នឹងចាប់ផ្តើមនៅថ្នាក់ភូមិភាគរយមេភូមិ។ ទោះយ៉ាងណាក៏ដោយ អ្នកអាចដាក់ពាក្យបណ្តឹងពាក្យសំដីទៅកាន់សមាជិក ណាមួយ នៃ GRC (ឧទាហរណ៍នៅភូមិ ឬក្រុមការងារដោះស្រាយ

ផលប៉ះពាល់) ។ GRC នឹងកត់ត្រានិងចងក្រងពាក្យបណ្តឹងរបស់អ្នកហើយណែនាំអ្នកអំពីដំណោះស្រាយ។ ដំណើរការ GRM និងទម្រង់ចុះបញ្ជីពាក្យបណ្តឹងតវ៉ា មាននៅក្នុងឧបសម្ព័ន្ធទី៣។

១២. តើខ្ញុំអាចទាក់ទងយ៉ាងដូចម្តេច ក្នុងករណីដែលខ្ញុំត្រូវការបញ្ជាក់ ឬមានបញ្ហា/បណ្តឹង?

នៅដំណាក់កាលនៃការរៀបចំគម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP) អ្នកដែលត្រូវទំនាក់ទំនង និងលេខទូរសព្ទរបស់ពួកគាត់ និងត្រូវបានផ្តល់ជូនក្នុងប្រអប់ខាងក្រោម ដែលអាចផ្តល់ជូនឱ្យលោកអ្នកនូវការបំភ្លឺអំពីបញ្ហាបច្ចេកទេសដែលទាក់ទងនឹងអនុគម្រោង។ ក្នុងចំណុចនេះ អានុភាពនៃការបាត់បង់ទ្រព្យសម្បត្តិ ការអង្កេតវាស់វែងលម្អិត និងកញ្ចប់ថវិកាទូទាត់សំណងមិនទាន់សម្រេចនៅឡើយទេ ដូច្នេះហើយរាល់បណ្តឹងទាក់ទងនឹងបញ្ហាខាងលើក៏មិនទាន់មានចំណាត់ការផងដែរ។

ដោយហេតុថា គម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP) ត្រូវបានអនុម័តដោយធនាគារអភិវឌ្ឍន៍អាស៊ី (ADB) ហើយគណៈកម្មការអន្តរក្រសួងដោះស្រាយផលប៉ះពាល់នៃក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ នឹងបង្កើតនូវយន្តការដោះស្រាយបណ្តឹងតវ៉ា (GRM) ដែលគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ា (GRCs) នឹងត្រូវបានបង្កើតឡើងនៅថ្នាក់ស្រុក ឬក្រុង, អគ្គនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ និងនៅថ្នាក់ខេត្ត។ គណៈកម្មការទាំងនេះ នឹងត្រូវបានបង្កើតឡើង ដើម្បីអនុវត្តមុនពេលចាប់ផ្តើមការអង្កេតវាស់វែងលម្អិត។ រាល់បណ្តឹងតវ៉ា ឬការតវ៉ាអំពីផ្នែកណាមួយនៃកញ្ចប់សំណង នឹងត្រូវបានបញ្ជូនទៅគណៈកម្មការទាំងនេះដើម្បីស្វែងរកដំណោះស្រាយ។

ប្រសិនបើអ្នកមានសំណួរ និងយោបល់អ្វីបន្ថែម សូមទាក់ទងមកយើងខ្ញុំ តាមរយៈលេខទូរសព្ទ÷

លេខទំនាក់ទំនង ក្នុងការអនុវត្តការងារដោះស្រាយផលប៉ះពាល់

លោក ហ៊ុន បញ្ញាសិទ្ធិ ប្រធានក្រុមការងារ, អនុប្រធាននាយកដ្ឋាន នៃអគ្គនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ នៃក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ ភ្នំពេញ ទូរសព្ទលេខ: ០៨៦ ៤៥៨ ៥៦៤

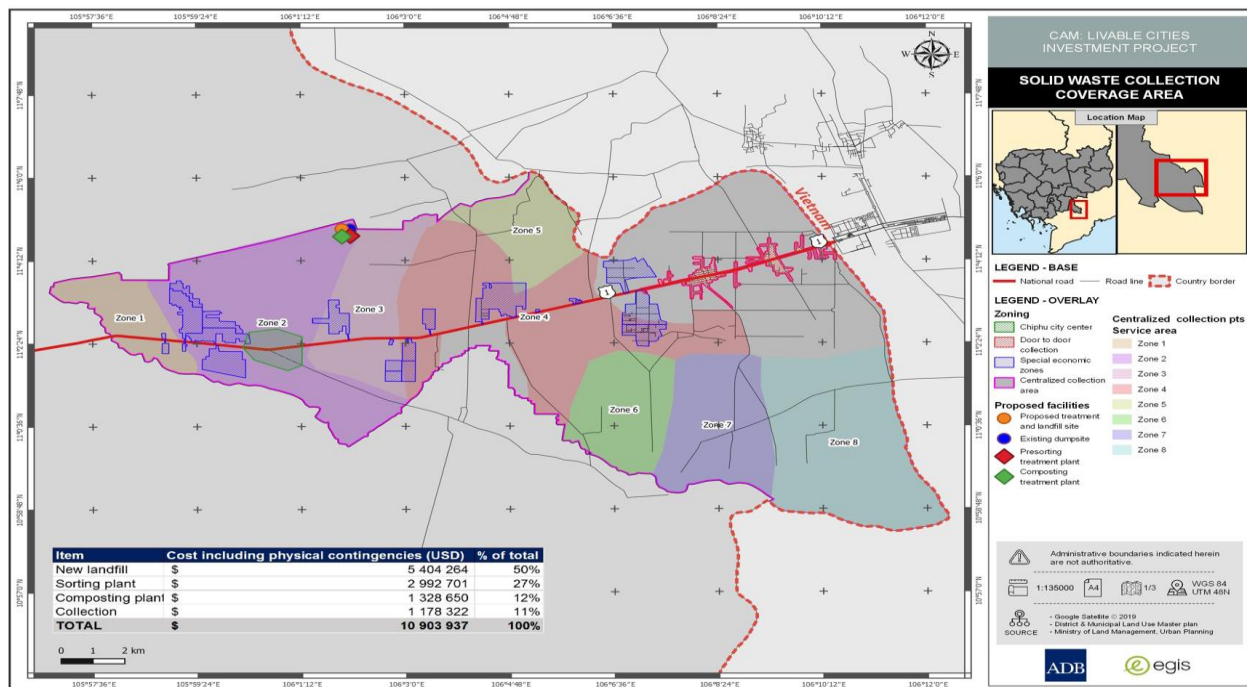
លោក វង្ស ជាតុន្នា អ្នកគ្រប់គ្រងគម្រោង អង្គភាពគ្រប់គ្រងគម្រោង នៃក្រសួងសាធារណការ និងដឹកជញ្ជូន ភ្នំពេញ ទូរសព្ទលេខ: ០៩២ ៤៦៥ ០៦០

លោក សុខ សុផល ភ្នាក់ងារអនុវត្តគម្រោង នៃមន្ទីរសាធារណការ និងដឹកជញ្ជូនខេត្តស្វាយរៀង (ក្រុងបាវិត) ទូរសព្ទលេខ: ០៩៧ ៧៥១ ៦៣៦៤

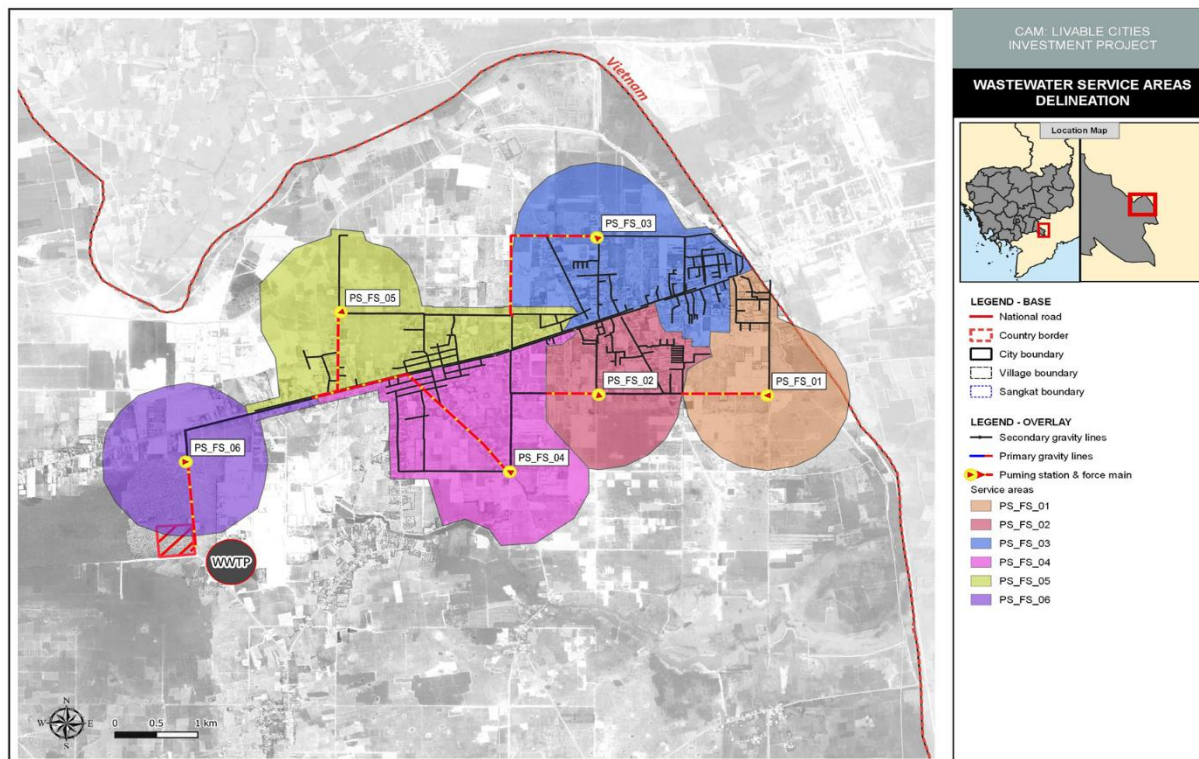


ឧបសម្ព័ន្ធទី១

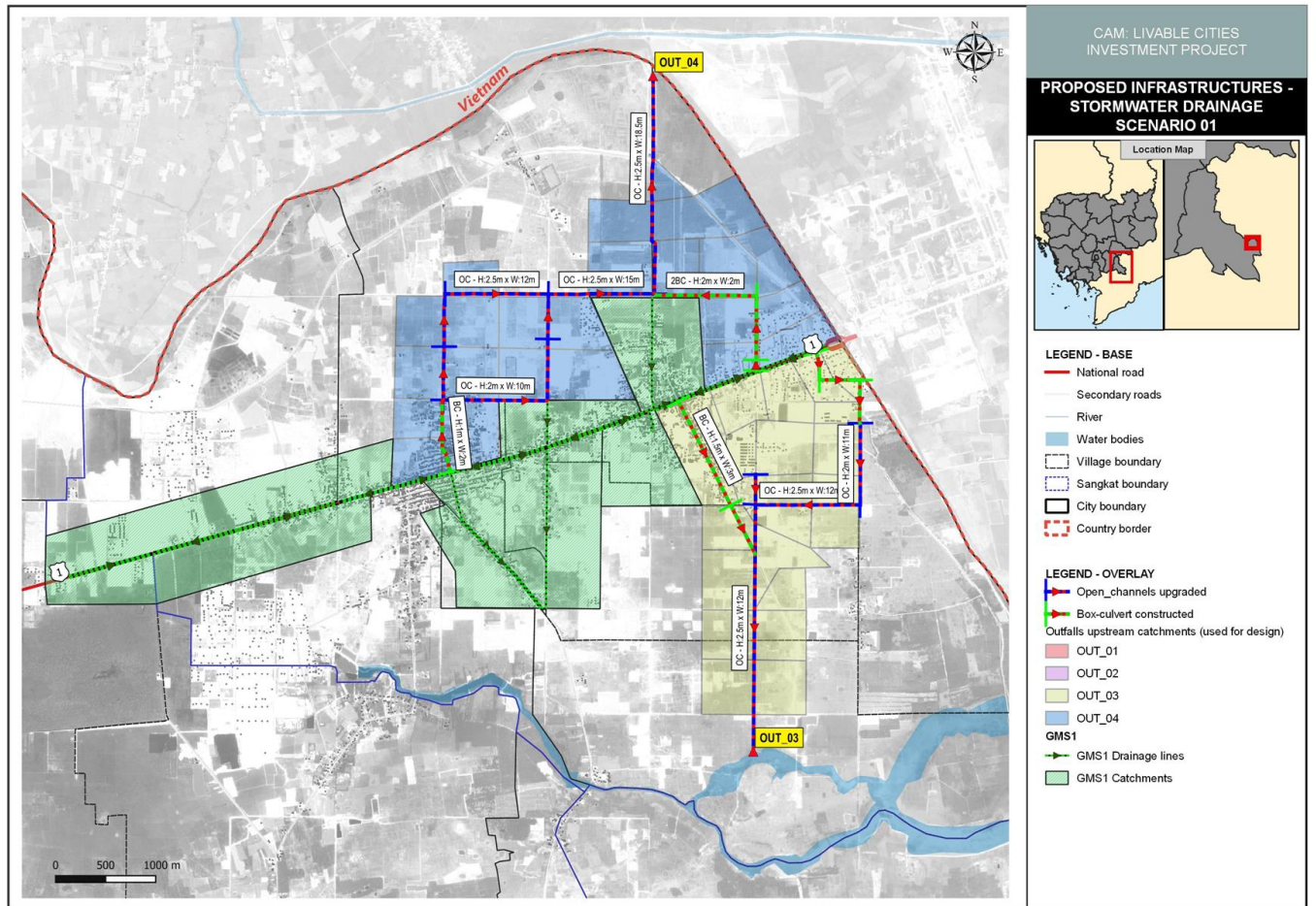
រូបភាពទី១ : ផែនទី នៃអនុគម្រោងប្រព័ន្ធគ្រប់គ្រងកាកសំណល់រឹងនៅក្រុងបាវិត



រូបភាពទី២ : ផែនទី នៃអនុគម្រោងស្ថានីយប្រព្រឹត្តកម្មទឹកកខ្វក់នៅក្រុងបាវិត



រូបភាពទី៣ : ផែនទី នៃបណ្តាញលូបង្ហូរទឹកភ្លៀងនៅក្រុងបាត់ដំបង



ឧបសម្ព័ន្ធ ២

តារាងសិទ្ធិទទួលបានសំណងបឋម

លរ	ប្រភេទនៃការ ខូចខាត	អនុវត្តចំពោះ	ប្រភេទនៃគ្រួសាររង ផលប៉ះពាល់	សិទ្ធិទទួលបាន	សេចក្តីបញ្ជាក់
១. ការបាត់បង់ដី					
១ក	ការបាត់បង់ដី	ដីកសិកម្ម	ម្ចាស់កម្មសិទ្ធិ និងអ្នក កាន់កាប់ស្របច្បាប់នៃ ដី រួមមានអ្នកដែលកាន់ កាប់ដោយសិទ្ធិទំនៀម ទំលាប់	សម្រាប់ផ្នែកដីឯកជនដែល រងផលប៉ះពាល់÷ សំណងជា សាច់ប្រាក់នៅក្នុងតម្លៃជំនួស ពេញលេញ រួមមាន សំណង នៅក្នុងតម្លៃជំនួសដែល សម្រាប់ជីវភាពរស់នៅ ដែលនៅសល់ក្រោយធ្វើលទ្ធ កម្មដី ប្រសិនបើផ្នែកដីនៅ សល់ពុំអាចប្រើប្រាស់បាន។	នៅក្នុងករណីដីនៅសល់ពុំ អាចប្រើប្រាស់បានបន្ត (សម្រេចនៅកំឡុងពេល ធ្វើ DMS ដោយក្រុម ការងារ DMS របស់ GDR) ដីទាំងមូលនឹងត្រូវ បានទទួលនៅក្នុងតម្លៃជំនួស ស។ RCS ជាអ្នកកំណត់អ ត្រាតម្លៃ។ AHS នឹងត្រូវបានជូន ដំណឹងយ៉ាងតិច ៣ខែ ពិត ប្រាកដដែលដីនឹងត្រូវបាន ទទួលដោយអនុគម្រោង។ AHS នឹងត្រូវបានអនុញ្ញាត ឱ្យប្រមូលផលដំណាំប្រចាំ ឆ្នាំ និងដំណាំតាមរដូវ វស្សា និងផលិត ផល លើមុនពេលសាងសង់ ប្រសិនបើមាន។ ប្រសិនបើមេគ្រួសាររៀប ការ សំណងនឹងត្រូវបង់



					នៅចំពោះមុខប្តី និងប្រពន្ធ។ ការកែសម្រួលប័ណ្ណកម្មសិទ្ធិដីធ្លីនឹងធ្វើឡើងដោយ MLMUPC ចំពោះឯកសារប័ណ្ណកម្មសិទ្ធិ។
១ខ	ការបាត់បង់ដី	ដីលំនៅដ្ឋាន	ម្ចាស់កម្មសិទ្ធិ និងអ្នកកាន់កាប់ស្របច្បាប់នៃដី រួមមានអ្នកដែលកាន់កាប់ដោយសិទ្ធិទំនៀមទំលាប់	សម្រាប់ផ្នែកដីឯកជនដែលរងផលប៉ះពាល់÷ សំណងជាសាច់ប្រាក់នៅក្នុងតម្លៃជំនួសពេញលេញ រួមមាន សំណងនៅក្នុងតម្លៃជំនួសដែលសម្រាប់ដីរងផលប៉ះពាល់ដែលនៅសល់ក្រោយធ្វើលទ្ធកម្មដី ប្រសិនបើផ្នែកដីនៅសល់ពុំអាចប្រើប្រាស់បាន។	នៅក្នុងករណីដីនៅសល់ពុំអាចប្រើប្រាស់បានបន្ត (សម្រេចនៅក្នុងពេលធ្វើ DMS ដោយក្រុមការងារ DMS របស់ GDR) ដីទាំងមូលនឹងត្រូវបានទទួលនៅក្នុងតម្លៃជំនួស។ RCS ជាអ្នកកំណត់អត្រាតម្លៃ។ AHS នឹងត្រូវបានជូនដំណឹងយ៉ាងតិច ៣ខែ ពិតប្រាកដដែលដីនឹងត្រូវបានទទួលដោយអនុគម្រោង។ ប្រសិនបើមេគ្រួសាររៀបការ សំណងនឹងត្រូវបង់នៅចំពោះមុខប្តី និងប្រពន្ធ។ ការកែសម្រួលប័ណ្ណកម្មសិទ្ធិដីធ្លីនឹងធ្វើឡើងដោយ MLMUPC ចំពោះឯកសារប័ណ្ណកម្មសិទ្ធិ។



១គ	ការបាត់បង់ដី	ដីកសិកម្ម ដីលំនៅដ្ឋាន និងដីពាណិជ្ជកម្ម	ភតិកៈ និងអ្នកជួល	គ្មានសំណងសម្រាប់ការខូចខាតដីដែលមិនមែនជាកម្មសិទ្ធិស្របច្បាប់ ប៉ុន្តែមានសំណងសម្រាប់ការកែលម្អលើដី	
១ឃ	ការបាត់បង់ដី		អ្នកកាន់កាប់ ឬអ្នកទន្ទ្រានខុសច្បាប់ដោយគ្មានបណ្ណកម្មសិទ្ធិ ឬសិទ្ធិស្របច្បាប់	គ្មានសំណងសម្រាប់ការខូចខាតដីដែលមិនមែនជាកម្មសិទ្ធិស្របច្បាប់ ប៉ុន្តែមានសំណងសម្រាប់ការកែលម្អលើដី	
១ង	ការបាត់បង់ដី	ការស្តារប្រាក់ចំណូល	AHs បាត់បង់ដីកសិកម្មដែលមានផលិតភាពនៅក្នុង ROW និងលើដីសាធារណៈ	សំណងជាសាច់ប្រាក់សម្រាប់ការកែលម្អលើដី និងការបាត់បង់សក្តានុពលប្រាក់ចំណូល។	RCS នឹងកំណត់តម្លៃសំណងការជូនដំណឹងជាមុនដើម្បីប្រមូលផលយ៉ាងហោចណាស់មុន៣ខែ នៃការចាប់ផ្តើមការសាងសង់ ហើយ APs នឹងត្រូវដកដំណាំ និងដើមឈើពីតំបន់អនុគម្រោង នៅក្នុងរយៈពេល ១ខែបន្ទាប់ពីទទួលបានសំណង។
២. ការបាត់បង់សិទ្ធិក្នុងការប្រើប្រាស់ដី					
២ក	ការខូចខាតដំណាំ និងដើមឈើហូបផ្លែ	ដីកសិកម្ម÷	គ្រួសាររងផលប៉ះពាល់ទាំងអស់ដែលជាកសិករ	សម្រាប់ដើមឈើហូបផ្លែ តម្លៃជំនួសនៃការខូចខាតផ្នែកតាមរូបមន្តដូចតទៅ÷	

				បរិមាណប្រមូលផលក្នុង១ឆ្នាំ $\times$ (តម្លៃទីផ្សារ) $\times$ (ចំនួនឆ្នាំ ដែលនឹងចេញផ្ទៃ + ថ្ងៃគ្រាប់ ពូជ) ដើមឈើដែលមានអាយុច្រើន ឆ្នាំដែលមានរយៈពេលលូត លាស់លើសពី៥ឆ្នាំ ត្រូវបាន ចាត់ថ្នាក់ដូចខាងក្រោម៖ • កូនឈើដែលមានអាយុ ក្រោម ១ឆ្នាំ មិនត្រូវ បានផ្តល់សំណងទេ ព្រោះអាចដាំឡើងវិញ បាន។ ថ្ងៃគ្រាប់ពូជត្រូវ បានផ្តល់ឱ្យ។ • ដើមឈើវ័យតិច) ពី ១ ទៅ ៣ឆ្នាំ(÷ មានតម្លៃ ១/៣ នៃតម្លៃពេញ ព្រោះអាចដាំឡើងវិញ បាន ឬក៏នឹងថ្លៃគ្រាប់ ពូជ • ដើមឈើវ័យក្មេង)លើសពី ៣ ទៅ ៥ឆ្នាំ (÷ ផ្តល់ផលខ្លះ÷ មានតម្លៃ ២/៣ នៃតម្លៃពេញ របស់វា ឬក៏នឹងថ្លៃគ្រាប់ ពូជ • ដើមឈើចំណាស់)លើសពី ៥ឆ្នាំ (ផ្ទៃ ពេញ មានតម្លៃពេញ ឬក៏នឹងថ្លៃគ្រាប់ពូជ	ការសិក្សាថ្លៃជំនួសនឹង កំណត់តម្លៃ តម្លៃទីផ្សារគឺផ្អែកលើតម្លៃ កសិដ្ឋាន។ ការជូនដំណឹងជាមុនដើម្បី ប្រមូលផលយ៉ាងហោច ណាស់ មុន៣ខែ នៃការចាប់ផ្តើម ការសាងសង់ ហើយ APs នឹងត្រូវដកដំណាំ និងដើមឈើពីតំបន់អនុ គម្រោង នៅក្នុងរយៈពេល ១ខែបន្ទាប់ពីទទួលបាន សំណង។
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២ខ	ការខូចខាត អាជីវកម្ម	ដីពាណិជ្ជកម្ម និង អាជីវកម្ម÷	គ្រួសាររងផលប៉ះពាល់ ទាំងអស់ដែលអាជីវករ	• សម្រាប់អាជីវកម្មដែល ចាំបាច់ត្រូវផ្លាស់ប្តូរទី តាំងទៅទីតាំងថ្មី សំណងជាសាច់ប្រាក់ ក្នុងចំនួនទឹកប្រាក់ស្មើ នឹងការបាត់បង់ប្រាក់ ចំណូលសុទ្ធដែលបាន ព្យាករណ៍សម្រាប់រយៈ ពេល ២ខែ។ • សម្រាប់អាជីវកម្មរង ផលប៉ះពាល់ដោយផ្នែក និងអាជីវកម្មដែលនឹង ត្រូវផ្លាស់ប្តូរទីតាំងនៅ នឹងកន្លែង (ផ្លាស់ទីត្រ ឡប់មកវិញ ឬតំបន់ដូច គ្នា) សំណងជាសាច់ ប្រាក់ក្នុងចំនួនទឹកប្រាក់ ស្មើនឹងការបាត់បង់ប្រាក់ ចំណូលសុទ្ធដែលបាន គ្រោងទុកសម្រាប់ រយៈពេលមួយខែ។ • សំណងជាសាច់ប្រាក់ សម្រាប់ការជួល ១ខែ សម្រាប់តួបន្ទីមួយ។ • សម្រាប់ប្រតិបត្តិការ អាជីវកម្មខុសច្បាប់ ដូច ជាល្បែងស៊ីសង ពេស្យា ចារ គ្រឿងញៀន និង ប្រភេទស្រដៀងគ្នានេះ មិនត្រូវបានបង់សំណង ទេ។	ការសិក្សាថ្លៃជំនួសនឹង កំណត់ចំណូលសុទ្ធដែល បានព្យាករណ៍។ ទាំងអាជីវកម្មដែលបានចុះ បញ្ជី និងមិនបានចុះបញ្ជី ត្រូវបានផ្តល់សំណង លើកលែងតែអាជីវកម្ម ដែលមានលក្ខណៈខុស ច្បាប់។
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៣. ការខូចខាតផ្ទះ និងសំណង់ផ្សេងៗ					
ក	ការខូចខាត ផ្ទះ និង សំណង់	លំនៅដ្ឋាន សំណង់ ពាណិជ្ជកម្ម និងទ្រព្យ សម្បត្តិផ្សេងទៀត÷	ម្ចាស់ផ្ទះ អគារ និង សំណង់	- សំណងជាសាច់ប្រាក់ ស្មើនឹងតម្លៃជំនួសនៃ ចំណែកដែលបាត់បង់នៃ ផ្ទះ/អគារ/ សំណង់។ ប្រសិនបើម្ចាស់ដាក់ជួល សំណងសម្រាប់ការកែ លម្អសាងសង់ដែលធ្វើ/ ឡើងដោយអ្នកជួល នឹងត្រូវកាត់ចេញពីការ - ក្នុងករណីខូចខាតតែ ផ្នែកនៃផ្ទះ/អគារ/ ណាមួយ ហើយចំណែកសំណង ដែលនៅសល់មិនអាច រស់នៅបាន ឬអាចប្រើ ប្រាស់បាន សំណងនឹង ត្រូវបង់សម្រាប់សំណង់ ពេញលេញក្នុងតម្លៃ ជំនួសដូចគ្នា។	RCS នឹងកំណត់តម្លៃជំនួស សម្រាប់លទ្ធភាព នៃ ផ្នែកផ្ទះ/ សំណង់ ដែល អាចប្រើប្រាស់បាន នឹង ត្រូវកំណត់ក្នុងកំឡុងពេល DMS ដោយក្រុមការងារ DMS របស់ GDR ។ AH អាចរក្សាទុកសម្ភារៈពី ការរុះរើរចនាសម្ព័ន្ធរបស់ ពួកគាត់។ AHS នឹងត្រូវទទួលប្រាក់ សំណង យ៉ាងហោច ណាស់មុន ១ខែ នៃ ការងារសាងសង់ ដើម្បីផ្តល់ ពេលគ្រប់គ្រាន់ក្នុងការ រៀបចំហាង ឬផ្ទះឡើងវិញ ជៀសវាងការរំខានជីវភាព រស់នៅ។ ប្រសិនបើមេគ្រួសាររៀប ការ សំណងនឹងត្រូវបង់ នៅចំពោះមុខប្តី និង ប្រពន្ធ។
ខ	ការខូចខាត ផ្ទះ និង សំណង់	លំនៅដ្ឋាន សំណង់ ពាណិជ្ជកម្ម និងទ្រព្យ សម្បត្តិផ្សេងៗ	អ្នកជួល	សំណងជាសាច់ប្រាក់ ក្នុងតម្លៃជំនួសសម្រាប់ ការកែលម្អ ឬសាងសង់ ណាមួយដោយអ្នកជួល	ការសិក្សាថ្លៃជំនួសនឹង កំណត់តម្លៃជំនួស

				- ក្នុងករណីមិនមានការកែលម្អ ឬសាងសង់ទេ សំណងមិនត្រូវបានទូទាត់ទេ។ - ប្រាក់ឧបត្ថម្ភការដឹក/រំខាន ស្មើនឹង ១ខែនៃតម្លៃជួល	ភស្តុតាងឯកសារត្រូវបានទាមទារ
៣ គ	ការខូចខាតផ្ទះ និងសំណង់	លំនៅដ្ឋាន សំណង់ពាណិជ្ជកម្ម និងទ្រព្យសម្បត្តិផ្សេងៗ	អ្នកកាន់កាប់ ឬអ្នកទន្ទ្រានខុសច្បាប់	សំណងជាសាច់ប្រាក់ស្មើនឹងតម្លៃជំនួសនៃការបាត់បង់សំណងដែលសាងសង់ដោយអ្នកកាន់កាប់ខុសច្បាប់	RCS នឹងកំណត់តម្លៃជំនួស គ្រួសាររងផលប៉ះពាល់ដែលគ្មានដីត្រូវបានចាត់ចែងស្ទើរតែនៅក្នុងផែនការដោះស្រាយផលប៉ះពាល់បឋមនេះ។ ការសិក្សាថ្លៃជំនួសនឹងកំណត់តម្លៃជំនួស
៣ ឃ	ការខូចខាតផ្ទះ និង (អាជីវកម្ម) សំណង (ប្រាក់ឧបត្ថម្ភការដឹកជញ្ជូន)	ប្រាក់ឧបត្ថម្ភការដឹកជញ្ជូនសម្រាប់គ្រួសារ និងទំនិញផ្ទាល់ខ្លួន។	គ្រួសាររងផលប៉ះពាល់ជាមួយនឹងផ្ទះ និង ផ្ទះអាជីវកម្មដែលរងផលប៉ះពាល់ និងជាមួយនឹងការផ្លាស់ប្តូរទីតាំងអាជីវកម្មតាមតួប	ប្រាក់ឧបត្ថម្ភសរុបថេរក្នុងគ្រួសាររងផលប៉ះពាល់មួយដោយផ្អែកលើការចំណាយជាមធ្យមនៃការដឹកជញ្ជូនទៅកាន់កន្លែងផ្លាស់ប្តូរទីតាំងថ្មី។ - សម្រាប់ការផ្លាស់ប្តូរទីលំនៅ ក្រោម៥គ.ម - សម្រាប់ការផ្លាស់ប្តូរទីលំនៅ លើស៥គ.ម	ការសិក្សាថ្លៃជំនួសនឹងកំណត់តម្លៃសរុបសម្រាប់អត្រាទាំង២
៤. ការបាត់បង់ចំណូល និងរបររចិញ្ចឹមជីវិត					

៤ក	ការបាត់បង់ ចំណូលក្នុង អំឡុងពេល អន្តរកាល- ប្រាក់ឧបត្ថម្ភ ចិញ្ចឹមជីវិត	ការបាត់បង់ប្រាក់ ចំណូល÷	គ្រួសាររងផលប៉ះពាល់ ដែលបាត់បង់ប្រាក់ ចំណូលក្នុងអំឡុងពេល អន្តរកាល។	ចំនួនទឹកប្រាក់សរុបស្មើ នឹង ៣ខែនៃប្រាក់ ចំណូលដោយផ្អែកលើអ ត្រាភាពក្រីក្រផ្លូវការ ប្រចាំខែ ដែលកំណត់ ដោយរាជរដ្ឋាភិបាល អ ត្រាភាពក្រីក្រ/ខែ x ចំនួនអ្នករងផលប៉ះ ពាល់ x ៣	អត្រាភាពក្រីក្រប្រចាំខែ ដែលកំណត់ដោយរាជរដ្ឋា ភិបាល។ សម្រាប់ផែនការដោះ ស្រាយផលប៉ះពាល់បឋម នេះ ៧០,៥៨ដុល្លារ/ខែ/ បន្ទាត់ភាពក្រីក្រក្នុងម្នាក់ ត្រូវបានអនុវត្ត។ ប្រសិនបើនៅក្នុងដំណាក់ កាលរៀបចំផែនការដោះ ស្រាយផលប៉ះពាល់លម្អិត និងកិច្ចសន្យា មាន បច្ចុប្បន្នភាពអត្រាភាពក្រី ក្រ នោះអត្រាចុងក្រោយ នឹងត្រូវយកមកអនុវត្ត។
៤ក	ការបាត់បង់ ប្រភពចិញ្ចឹម ជីវិតជាអ ចិន្ត្រៃយ៍ ដោយសារការ ផ្លាស់ប្តូរទីតាំង	ការស្តារចំណូល	គ្រួសាររងផលប៉ះពាល់ ដែលបាត់បង់ប្រភព ចិញ្ចឹមជីវិតជាអចិន្ត្រៃ យ៍	- មានសិទ្ធិចូលរួមក្នុងកម្ម វិធីស្តារគាំទ្រជីវភាព/ រស់នៅមួយក្នុង រងផលប៉ះពាល់÷ កម្មវិធីស្តារការប្រកប របរចិញ្ចឹមជីវិតដែល ផ្អែកលើដី សម្រាប់ គ្រួសាររងផលប៉ះពាល់ ដែលចិញ្ចឹមជីវិតពី ផ្នែកលើដី) i) ស្វែងរក ប្រភពប្រាក់ចំណូល	មូលដ្ឋានដីសម្រាប់គ្រួសារ រងផលប៉ះពាល់ ដែល បាត់បង់ជីវភាពរស់នៅ ផ្អែកលើដី មូលដ្ឋានការងារសម្រាប់ គ្រួសាររងផលប៉ះពាល់ ដែលបាត់បង់ជីវភាពរស់ នៅផ្អែកលើការងារ មូលដ្ឋានអាជីវកម្មសម្រាប់ គ្រួសាររងផលប៉ះពាល់

		ការលើកកម្ពស់ ជីវភាពរស់នៅរបស់ គ្រួសាររងផលប៉ះ ពាល់ងាយរងគ្រោះ ផ្ទាល់ប្តូរទីតាំងផ្ទះ អាជីវកម្ម	ក្រីក្រ និងងាយរង គ្រោះ	ដែលពឹងផ្អែកលើដី ផ្សេងទៀត ប្រសិនបើ មានដីដែលមានផលិត ភាពណាស់មរម្យអាច ទិញបាន ដូចជាស្ពាន បន្លែ ដើមឈើហូបផ្លែ ក សិដ្ឋានចិញ្ចឹមសត្វ និង ប្រភពបង្កើតប្រាក់ ចំណូលដែលពឹងផ្អែក លើដីប្រហាក់ប្រហែល ផ្សេងទៀត (ii) ផ្តល់ការ បណ្តុះបណ្តាលជំនាញ ធ្វើស្រែចម្ការ និងចិញ្ចឹម សត្វ និង) iii) ឧបត្ថម្ភ សាច់ប្រាក់សរុប ២០០ ដុល្លារអាមេរិកគ្រួសារ/ រងផលប៉ះពាល់ ដើម្បី ជួយបង្កើតប្រភពចិញ្ចឹម ជីវិតឡើងវិញ។ - ក្នុងករណីមិនមានដីស មរម្យ គ្រួសាររងផលប៉ះ ពាល់អាចជ្រើសរើសកម្ម វិធីស្តារចំណូលផ្នែកលើ ការងារ ឬអាជីវកម្ម។ ឬ ការស្តារជីវភាពរស់នៅ ដោយផ្អែកលើការងារ សម្រាប់គ្រួសាររងផល ប៉ះពាល់ដែលបាត់បង់ ការងារជាអចិន្ត្រៃយ៍។ (i) ការផ្តល់ការបណ្តុះប ណ្តាលជំនាញការងារ	ដែលបាត់បង់ជីវភាពរស់ នៅផ្នែកលើអាជីវកម្ម អាចត្រូវបានផ្តល់ជូន សម្រាប់គ្រួសាររងផលប៉ះ ពាល់ ដែលអាចជ្រើស រើសយកកម្មវិធីណាមួយ។ គ្រួសាររងផលប៉ះពាល់នឹង មានសិទ្ធិសម្រាប់តែ ជម្រើសមួយក្នុងចំណោម ជម្រើសទាំងបីខាងលើ ប៉ុណ្ណោះ។ សម្រាប់ផែនការដោះ ស្រាយផលប៉ះពាល់បឋម នេះ ៧០,៥៨ដុល្លារ/ខែ/ បន្ទាត់ភាពក្រីក្រក្នុងម្នាក់ ត្រូវបានអនុវត្ត។ ប្រសិនបើនៅក្នុងដំណាក់ កាលរៀបចំផែនការដោះ ស្រាយផលប៉ះពាល់លម្អិត និងកិច្ចសន្យា មាន បច្ចុប្បន្នភាពអត្រាភាពក្រី ក្រ នោះអត្រាចុងក្រោយ នឹងត្រូវយកមកអនុវត្ត។ ការចាត់ថ្នាក់នឹងត្រូវបាន អនុវត្តក្នុងអំឡុងពេល
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				និង (ii) ជំនួយជាសាច់ប្រាក់សរុបស្មើនឹងប្រាក់ចំណូលរយៈពេល ៣ខែដោយផ្អែកលើអត្រាភាពក្រីក្រផ្លូវការ ដើម្បីបន្ថែមការគាំទ្រប្រាក់ចំណូលក្នុងអំឡុងពេលបណ្តុះបណ្តាល។ ឬ • ការស្តារជីវភាពរស់នៅដោយផ្អែកលើអាជីវកម្ម សម្រាប់ គ្រួសាររងផលប៉ះពាល់ ដែលបាត់បង់អាជីវកម្មជាអចិន្ត្រៃយ៍ ឬ គ្រួសាររងផលប៉ះពាល់ដែលជ្រើសរើសវាជាប្រភពចិញ្ចឹមជីវិតជំនួស។ (i) ការផ្តល់ជំនាញអាជីវកម្ម និង (ii) ជំនួយសាច់ប្រាក់សរុបចំនួន ២០០ដុល្លារ ដើម្បីជួយក្នុងការចាប់ផ្តើមអាជីវកម្មខ្នាតតូច ឬ អាជីវកម្មតាមផ្ទះ។ ឬ • ជំនួយជាសាច់ប្រាក់ ៥០០ដុល្លារ ជំនួសឱ្យកម្មវិធីស្តារប្រាក់ចំណូល។	អង្កេតវាស់វែងលម្អិត និងស្របតាមលក្ខណៈវិនិច្ឆ័យដែលបានកំណត់ក្នុងផ្នែកទី៤ នៃស្តង់ដារនីតិវិធីប្រតិបត្តិ។ សម្រាប់ផែនការដោះស្រាយផលប៉ះពាល់បឋមនេះ ៧០,៥៨ដុល្លារ/ខែ/បន្ទាត់ភាពក្រីក្រក្នុងម្នាក់ ត្រូវបានអនុវត្ត។ ប្រសិនបើនៅក្នុងដំណាក់កាលរៀបចំផែនការដោះស្រាយផលប៉ះពាល់លម្អិត និងកិច្ចសន្យា មានបច្ចុប្បន្នភាពអត្រាភាពក្រីក្រ នោះអត្រាចុងក្រោយនឹងត្រូវយកមកអនុវត្ត។
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				សម្រាប់ជំនួយពិសេសដល់គ្រួសាររងផលប៉ះពាល់ក្រីក្រ និងងាយរងគ្រោះ បន្ថែមពីលើការបណ្តុះបណ្តាលជំនាញ (i) ជំនួយជាសាច់ប្រាក់សរុបក្រោមកម្មវិធីស្តារប្រាក់ចំណូលនិមួយៗនឹងត្រូវបង្កើនទ្វេដងពេលគឺពី ២០០ដុល្លារ ទៅ ៤០០ ដុល្លារ ក្រោមមូលដ្ឋានដី និង ការស្តារឡើងវិញនូវជីវភាពរស់នៅតាមអាជីវកម្ម និងជំនួយជាសាច់ប្រាក់សរុបពី ៣ខែទៅ ៦ខែនៃប្រាក់ចំណូលផ្នែកលើអត្រាភាពក្រីក្រផ្លូវការ ក្រោមការស្តារឡើងវិញនូវជីវភាពរស់នៅដោយផ្អែកលើការងារ និង (ii) ទទួលបានអាទិភាពចំពោះឱកាសការងារក្រោមអនុគម្រោង។	
៤គ			ជនក្រីក្រ និងងាយរងគ្រោះ គ្មាន AHs/APs	ចំពោះគ្រួសាររងផលប៉ះពាល់ដែលត្រូវបានចាត់ថ្នាក់ជាក្រុមប្រជាពលរដ្ឋក្រីក្រ និងងាយរងគ្រោះ÷ បន្ថែមពីលើការបណ្តុះបណ្តាលជំនាញ គឺ÷ (i) ការផ្តល់ជូនជាចំនួនទ្វេដងនៃសាច់ប្រាក់ឧបត្ថម្ភកម្មវិធីស្តារការប្រកបរបរចិញ្ចឹមជីវិត	

				ដែលផ្អែកលើដី និងកម្មវិធីស្ថាប័នប្រកបរបរចិញ្ចឹមជីវិតដែលផ្អែកលើដី និងបង្កើនប្រាក់ឧបត្ថម្ភ ពី៣ខែ ទៅ៦ខែសម្រាប់ការស្តារជីវភាពរស់នៅដោយផ្អែកលើការងារ (ii) ការផ្តល់អាទិភាពឱកាសការងារក្នុងគម្រោង។	
៥. ជំនួយពិសេស					
៥ក	គ្រួសារងាយរងគ្រោះ	ធ្វើឱ្យប្រសើរឡើងនូវស្តង់ដាររស់នៅសម្រាប់អ្នករងផលប៉ះពាល់ងាយរងគ្រោះក្រោម	ក្រីក្រ និងងាយរងគ្រោះ	ចំនួនទឹកប្រាក់សរុបស្មើនឹង ៣ខែនៃប្រាក់ចំណូលដោយផ្អែកលើអត្រាភាពក្រីក្រផ្លូវការប្រចាំខែ ដែលកំណត់ដោយរាជរដ្ឋាភិបាល (អត្រាភាពក្រីក្រ/ខែ x ចំនួនសមាជិកគ្រួសាររងផលប៉ះពាល់ក្នុង១គ្រួសារ x ៣)	ការចាត់ថ្នាក់នឹងត្រូវបានអនុវត្តក្នុងអំឡុងពេលអង្កេតវាស់វែងលម្អិត និងស្របតាមលក្ខណៈវិនិច្ឆ័យដែលបានកំណត់ ។ នៅដំណាក់កាល DRP ខ្សែបន្ទាត់នៃភាពក្រីក្រក្នុងក្រោយនឹងត្រូវបានអនុវត្ត ហើយស្ថានភាពភាពងាយរងគ្រោះត្រូវបានបញ្ជាក់ឡើងវិញដោយផ្អែកលើខ្សែបន្ទាត់ភាពក្រីក្រក្នុងក្រោយបំផុត ដូចដែលបានផ្តល់ដោយ MOP ។
៦. ផលប៉ះពាល់បណ្តោះអាសន្នលើដី និងទ្រព្យសម្បត្តិមិនមែនដីកំឡុងពេលសាងសង់					
៦ក	ផលប៉ះពាល់អំឡុងពេលសាងសង់	ផលប៉ះពាល់ជាបណ្តោះអាសន្នលើដី និងទ្រព្យសម្បត្តិមិនមែនដី រួមមានអាជីវកម្ម	គ្រួសាររងផលប៉ះពាល់នឹងត្រូវបានកំណត់អត្តសញ្ញាណកំឡុងពេលសាងសង់	ដីដែលនៅក្រៅការតម្រឹមដែលរងផលប៉ះពាល់យ៉ាងធ្ងន់ធ្ងរពីសកម្មភាពសាងសង់ នឹងត្រូវទូទាត់ជាសាច់ប្រាក់ ឬ	ផលប៉ះពាល់ដោយសារការសាងសង់ ឧទាហរណ៍ ការខូចខាត) សំណង់ ការរឹតត្បិតការចូលទៅកាន់កន្លែងអាជីវកម្មប្រាក់/ចំណូលដែលកើតចេញពីនិងវិធាន (សកម្មភាពសាងសង់ការសំណង់នឹងត្រូវបញ្ចូលទៅ



				តាមប្រភេទក្នុងតម្លៃជំនួសដោយអ្នកម៉ៅការសាងសង់។ - អ្នកម៉ៅការនឹងស្តារឡើងវិញដី/ណាងដែលបានរំលោភបំពានប្រើជាបណ្តោះអាសន្នទៅជាលក្ខខណ្ឌមុនគម្រោង។ - អ្នកម៉ៅការនឹងសម្រួលដល់ដំណើរការអាជីវកម្មសម្រាប់ការបាត់បង់ប្រាក់ចំណូលអាជីវកម្ម។	ក្នុងផែនការគ្រប់គ្រងបរិស្ថានរបស់គម្រោង។ គោលការណ៍ដែលបានអនុម័តសម្រាប់ ផែនការដោះស្រាយផលប៉ះពាល់បឋមនេះត្រូវបានអនុវត្ត។
៧. ការដោះស្រាយផលប៉ះពាល់ ដែលមិនបានរំពឹងទុក					
ក	ការដោះស្រាយផលប៉ះពាល់ដែលមិនបានរំពឹងទុក ក្រៅពីចំណុច១ ដល់៦ខាងលើ	ផលប៉ះពាល់ណា ដែលមិនបានរំពឹងទុក	គ្រួសាររងផលប៉ះពាល់ថ្មីដែលមានសិទ្ធិ	អ្នករងផលប៉ះពាល់ថ្មីដែលនឹងត្រូវបានកំណត់អត្តសញ្ញាណមានសិទ្ធិទទួលបានសិទ្ធិដូចគ្នានឹងអ្នករងផលប៉ះពាល់ផ្សេងទៀត។	អគ្គនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ នឹងធានានូវការអនុវត្តការវាយតម្លៃសង្គម និងធ្វើបច្ចុប្បន្នភាពផែនការដោះស្រាយផលប៉ះពាល់លម្អិត ឬបង្កើតផែនការដោះស្រាយផលប៉ះពាល់លម្អិត អាស្រ័យលើវិសាលភាពនៃការផ្លាស់ប្តូរផលប៉ះពាល់ដែលគ្របដណ្តប់លើតម្រូវការដែលអាចអនុវត្តបានទាំងអស់ដែលបានបញ្ជាក់នៅក្នុងផែនការដោះស្រាយផលប៉ះពាល់លម្អិត ស្របតាមសេចក្តីថ្លែងការណ៍គោលនយោបាយសុវត្ថិភាពរបស់ធនាគារពិភពលោក

					និងច្បាប់ និងបទប្បញ្ញត្តិរបស់រាជរដ្ឋា ភិបាលកម្ពុជា។
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ប្រភព៖ BRP ខែកញ្ញា ឆ្នាំ២០២១

យន្តការដោះស្រាយបណ្តឹងតវ៉ា

ប្រសិនបើប្រជាពលរដ្ឋរងផលប៉ះពាល់ទាំងឡាយណាមួយដល់ច្បាប់ ឬមិនពេញចិត្តនឹងការផ្តល់ជូនចំពោះការទូទាត់សំណង ក្រោមហេតុផលណាមួយ ឬក៏ការទូទាត់សំណងមិនត្រឹមត្រូវតាមកាលបរិច្ឆេទដែលបានព្រមព្រៀង នោះប្រជាពលរដ្ឋរងផលប៉ះពាល់មានសិទ្ធិដាក់ពាក្យបណ្តឹង (សូមមើលទម្រង់ជូនភ្ជាប់)។

យន្តការដោះស្រាយបណ្តឹងមានបីដំណាក់កាល ដែលរៀបចំឡើងដោយគណៈកម្មការខេត្តដោះស្រាយបណ្តឹងដូចខាងក្រោម៖

ដំណាក់កាលទី១៖ ប្រជាពលរដ្ឋរងផលប៉ះពាល់ដែលជាដើមបណ្តឹង អាចដាក់ពាក្យបណ្តឹងជាលាយលក្ខណ៍ទៅកាន់ប្រធានការិយាល័យស្រុកដែលជាតំបន់អនុគម្រោងស្ថិតនៅ។ ប្រជាពលរដ្ឋរងផលប៉ះពាល់អាចនាំចាស់ទុំ ឬអ្នកតំណាងក្នុងសហគមន៍ទៅជាមួយ ដើម្បីជួយសម្របសម្រួលនៅថ្នាក់ស្រុក។ ក្រុមការងារអន្តរក្រសួងនឹងវាយតម្លៃការដោះស្រាយបណ្តឹងនៅថ្នាក់ស្រុក។ កិច្ចប្រជុំពិភាក្សា និងការសម្រេចចិត្តផ្សេងៗ នឹងត្រូវធ្វើឡើងក្នុងរយៈពេល១៥ថ្ងៃ គិតចាប់ពីថ្ងៃទទួលពាក្យបណ្តឹងដោយការិយាល័យស្រុក។ ប្រសិនបើប្រជាពលរដ្ឋរងផលប៉ះពាល់ពេញចិត្តនឹងការដោះស្រាយបណ្តឹងហើយនោះ ក្រុមការងារអន្តរក្រសួងនឹងជូនដំណឹងដល់នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ នៃអគ្គនាយកដ្ឋានគ្រប់គ្រងទិន្នន័យនិងវាយតម្លៃផ្ទៃក្នុង ដើម្បីធ្វើការពិនិត្យ និងអនុម័តដោយអគ្គនាយកនៃនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ ដើម្បីធ្វើសកម្មភាពដោះស្រាយដ៏សមស្រប។ ប្រជាពលរដ្ឋរងផលប៉ះពាល់នឹងត្រូវជូនដំណឹងជាលាយលក្ខណ៍ដោយនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ នូវសេចក្តីសម្រេច និងសកម្មភាពដោះស្រាយបណ្តឹង ដែលនឹងធ្វើឡើងក្នុងរយៈពេល១៥ថ្ងៃអំឡុងពេលថ្ងៃធ្វើការងារ គិតចាប់ពីថ្ងៃទទួលពាក្យបណ្តឹងដោយការិយាល័យស្រុក។ ប្រសិនបើបណ្តឹងត្រូវបានជំទាស់ក្នុងដំណាក់កាលនេះ ការិយាល័យស្រុកនឹងជូនដំណឹងទៅសាមីជនជាលាយលក្ខណ៍អក្សរ ប្រសិនបើសាមីជនមិនយល់ព្រមនឹងការជំទាស់នេះទេ សាមី ជនអាចប្តឹងបន្តទៅដំណាក់កាលបន្ទាប់ ដែលត្រូវសរសេរពាក្យបណ្តឹងជាលាយលក្ខណ៍អក្សរទៅនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដើម្បីស្វែងរកដំណោះស្រាយបន្ត។

ដំណាក់កាលទី២៖ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់តាមរយៈនាយកដ្ឋានត្រួតពិនិត្យផ្ទៃក្នុង និងគ្រប់គ្រងទិន្នន័យនិងវាយតម្លៃ នឹងពិនិត្យមើលជាមួយនៃទិដ្ឋភាពបណ្តឹង នឹងដាក់ជូននូវរបាយការណ៍ស៊ើបសួរទៅអគ្គនាយកដើម្បីពិនិត្យ និងសម្រេច។ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ នឹងអាចចុះប្រមូលទិន្នន័យនៅថ្នាក់មូលដ្ឋានដើម្បីជួបជាមួយដើមបណ្តឹង និងក្រុមការងារគណៈកម្មការអន្តរក្រសួងដើម្បីប្រមូលព័ត៌មានលម្អិត។ របាយការណ៍សម្រេចត្រូវតែបំពេញក្នុងរយៈពេល៣០ថ្ងៃ បន្ទាប់ពីថ្ងៃទទួលពាក្យបណ្តឹង និងដាក់ជូនបណ្តឹងទៅអគ្គនាយកដ្ឋាននៃនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ ដើម្បីធ្វើការសម្រេចចុងក្រោយក្នុងរយៈពេល៥ថ្ងៃ នៃអំឡុងពេលទទួលរបាយការណ៍។ នៅក្នុងករណីដែលបណ្តឹងតម្រូវអោយមានការអន្តរាគមន៍ពីថ្នាក់គោលនយោបាយ



ជាតិ គឺនឹងត្រូវសម្រេចយោងពីសេចក្តីសម្រេចរបស់គណៈកម្មការអន្តរក្រសួង ក្នុងករណីនេះរយៈពេល១០ថ្ងៃនឹងត្រូវបន្ថែមទៀត គិតចាប់ពីថ្ងៃសម្រេចចុងក្រោយ។

ដំណាក់កាលទី៣៖ ប្រជាពលរដ្ឋរងផលប៉ះពាល់នឹងដាក់ពាក្យបណ្តឹងជាលាយលក្ខណ៍ទៅគណៈកម្មការដោះស្រាយបណ្តឹង ថ្នាក់ខេត្ត តាមរយៈសាលាខេត្ត។ ដើមបណ្តឹងឬអ្នកតំណាងនឹងត្រូវបានផ្តល់ឱកាសរាយការណ៍អំពីករណីបណ្តឹង ក្នុងអំឡុងពេល កិច្ចប្រជុំ ហើយគណៈកម្មការដោះស្រាយបណ្តឹង នឹងពិចារណាលើភស្តុតាង និងកាលៈទេសៈចាំបាច់ណាមួយរបស់ដើមបណ្តឹង មុន នឹងឈានដល់ការសម្រេចចិត្ត។ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់នឹងបញ្ជូនតំណាងរបស់ខ្លួនដែលមិនជាប់ពាក់ព័ន្ធនឹងបណ្តឹង ទៅធ្វើការពន្យល់បង្ហាញដើម្បីជំទាស់នឹងដើមបណ្តឹងដូចដែលបានធ្វើឡើងនៅដំណាក់កាលទីពីរ ដែលដោះស្រាយដោយ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់។ សេចក្តីសម្រេចរបស់គណៈកម្មការថ្នាក់ខេត្តត្រូវតែឈានដល់ កិច្ចព្រមព្រៀងជាគោល និង បញ្ចប់ដោយមិនអាចកែប្រែបាន លើកលែងតែករណីទាំងឡាយណាដែលទាក់ទងទៅនឹងគោលនយោបាយរបស់រាជរដ្ឋាភិបាល។ សេចក្តីសម្រេចរបស់គោលនយោបាយរាជរដ្ឋាភិបាលទាក់ទងទៅនឹងក្របខ័ណ្ឌស្តីពីការធ្វើលទ្ធកម្មដីនិងការងារដោះស្រាយផល ប៉ះពាល់ គឺត្រូវធ្វើសេចក្តីសម្រេចដោយគណៈកម្មការអន្តរក្រសួង។ គណៈកម្មការដោះស្រាយបណ្តឹងថ្នាក់ខេត្ត មានរយៈពេល៤០ ថ្ងៃដើម្បីចេញសេចក្តីសម្រេច ដោយគិតចាប់ពីថ្ងៃទទួលពាក្យបណ្តឹងរហូតដល់ធ្វើការសម្រេចចុងក្រោយ។

ការដោះស្រាយបណ្តឹងតវ៉ាតាមនីតិវិធីរដ្ឋបាលត្រូវបានបញ្ចប់នៅដំណាក់កាលទី៣។ ចំពោះដំណើរការបណ្តឹងទាំងនេះ ដើមបណ្តឹង នឹងមិនមានការបង់ប្រាក់អ្វីទេរាប់ចាប់ពីដំណាក់កាលទី១ ដំណាក់កាលទី២ រហូតដល់ដំណាក់កាលទី៣។ ទោះជាយ៉ាងណាក៏ ដោយ ដូចដែលមានចែងក្នុងច្បាប់អស្សាមិករណ៍ ដើមបណ្តឹងអាចធ្វើការដាក់ពាក្យប្តឹងទៅតុលាការខេត្ត/ក្រុង តាមដែលអាចអនុ វត្តបានដើម្បីស្វែងរកដំណោះស្រាយ។ ដំណើរការនេះ ដើមបណ្តឹងនឹងត្រូវចំណាយថវិកាខ្លួនឯង។ នៅក្នុងដំណាក់កាលនេះ អគ្គ នាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ គណៈកម្មការដោះស្រាយបណ្តឹងថ្នាក់ខេត្ត ឬក្រុមការងារគណៈកម្មការអន្តរក្រសួង មិនមាន សមត្ថកិច្ចពាក់ព័ន្ធអ្វីទេ លើកលែងតែការកោះពីអង្គចៅក្រមសាលាដំបូងខេត្ត។

(i) គណកម្មការដោះស្រាយបណ្តឹងតវ៉ាថ្នាក់ឃុំ

ឈ្មោះ ÷ លោក សៅ សាខុន

តួនាទី ÷ ចៅសង្កាត់បារិត

លេខទូរស័ព្ទ÷ ០៨៨ ៦៣ ៤៥ ៧៧៧

(ii) គណកម្មការដោះស្រាយបណ្តឹងតវ៉ាថ្នាក់ស្រុក

ឈ្មោះ ÷ លោក ខាំ វិទ្យា

តួនាទី ÷ នាយករដ្ឋបាលសាលាក្រុង

លេខទូរស័ព្ទ÷ ០៩៧ ៤៨ ១១ ៨០១

(iii) គណកម្មការដោះស្រាយបណ្តឹងតវ៉ាថ្នាក់ GDR

ឈ្មោះ ÷ លោក សុខ សុភក្តិ

ភ្នាក់ងារ ÷ ប្រធានការិយាល័យទទួលពាក្យបណ្តឹងនិងទំនាក់ទំនងសាធារណៈ

លេខទូរស័ព្ទ ÷ ០១២ ៩២៣ ៦០៧

(iv) គណកម្មការដោះស្រាយបណ្តឹងតវ៉ាថ្នាក់ខេត្ត

ឈ្មោះ ÷ លោក អ៊ុំ សាផាត

ភ្នាក់ងារ ÷ នាយកទីចាត់ការសាលាខេត្ត

លេខទូរស័ព្ទ ÷ ០៩៧ ៧៦ ១២ ៥៦៧

ពាក្យបណ្តឹងបុគ្គល

គម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP)

កាលបរិច្ឆេទបណ្តឹង		លេខ DMS
ឈ្មោះអ្នកដាក់ពាក្យបណ្តឹង		
លេខអត្តសញ្ញាណប័ណ្ណ សៀវភៅគ្រួសារ		
លេខទំនាក់ទំនង		
អាសយដ្ឋាន		
សេចក្តីសង្ខេបនៃពាក្យបណ្តឹង		
បញ្ជីឯកសារគាំទ្រ ភស្តុតាង /		

ឈ្មោះ: (មេគ្រួសារ)

ហត្ថលេខា/ ស្នាមមេដៃ:

កាលបរិច្ឆេទ:



ការចុះពាក្យបណ្តឹង

គម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ (LCIP)

ក្រុង-ស្រុក-ខណ្ឌ: _____

រាជធានី-ខេត្ត: _____

កាលបរិច្ឆេទ នៃការទទួល ពាក្យបណ្តឹង	ករណី លេខ	ឈ្មោះនិងអត្តសញ្ញាណប័ណ្ណអ្នកដាក់ពាក្យបណ្តឹង		ចំណុចសំខាន់នៃពាក្យបណ្តឹង
		ឈ្មោះ	អត្តសញ្ញាណប័ណ្ណ/ សៀវភៅគ្រួសារ	

ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ
លិខិតពីអភិបាលខណ្ឌ-ស្រុក

ក្រុង-ស្រុក-ខណ្ឌ: _____

រាជធានី-ខេត្ត: _____

បណ្តឹងបុគ្គល		
ករណីលេខ៖		
ឈ្មោះអ្នកដាក់ពាក្យបណ្តឹង		
កាលបរិច្ឆេទបណ្តឹង		
សេចក្តីសង្ខេបនៃពាក្យបណ្តឹង (ដូចគ្នានឹងពាក្យសុំចុះឈ្មោះបណ្តឹងតវ៉ាម្នាក់ៗ)		
កិច្ចប្រជុំគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ា		
កាលបរិច្ឆេទ:	ម៉ោង:	ទីតាំង:
អ្នកចូលរួម		
សេចក្តីសង្ខេបនៃការពិភាក្សា		
កាលបរិច្ឆេទនៃការចុះពិនិត្យទីតាំង (ប្រសិនបើមាន)		
លទ្ធផលនៃការប្រជុំ/សេចក្តីសម្រេច		
☐ បដិសេធ - គ្មានមូលដ្ឋានយោងតាមតារាងនៃសិទ្ធិទទួលបានសំណង		

ឧ សមនឹងទទួល - បណ្តឹងបញ្ជូនបន្តទៅអគ្គនាយកដ្ឋានដោះស្រាយផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ដើម្បី ចាត់វិធានការ

ឈ្មោះ:

តួនាទី:

ហត្ថលេខា/ ស្នាមមេដៃ:

កាលបរិច្ឆេទ:

Annex 6: Combined Minutes of PCMs Prior to DMS under Expropriation
Kingdom of Cambodia
Nation Religion King

Combined Minutes of Meeting Prior to Detailed Measurement Survey
Public consultation meeting with people affected by
Liveable Cities Investment Project located in Sangkat Chrokmtes, Bavet city

Prior to the Detailed measurement Survey (DMS), the IRC-WG and PRSC-WG with the assistance of local authorities and representatives of Bavet Municipality conducted two (2) public consultation meetings (PCM) on 19 June 2024 on the the solid waste management system and wastewater treatment plant and conveyance network and stormwater drainage network subprojects under the Livible Cities Investment Project attended by 36 participants out which 13 or 36% were females. The first PCM was conducted with the participants from the solid waste management system subproject area, while the second PCM was conducted with the participants from the wastewater treatment plant and conveyance network and stormwater drainage network subproject area. The PCMs were presided by the Director of Bavet Municipality, representing the Mayor of Bavet City and discussions in the PCMs were led by the Team Leader (TL) of the IRC-WG. Table below summarizes the details of the PCMs.

Summary of PCMs

No.	Date/Time	Location	Topics Discussed	No. of Participants
1	19 Jun 24 9:00 AM	Prey Top village, Chrokmtes commune, Bavet city	DMS/SES, entitlementts, grievance redress mechanism procedures, including the lodging and registration of complaints, the resolution mechansm and the contact persons of the greivance redress committees at commune, district, GDR and provincial levels.	23 (M:11; F: 12)
2	19 Jun 24 3:00 PM	Bati commune, Bavet City		13 (M:12; F: 1)
Total				36 (M: 23, F: 13)

Prior to the PCMs, the updated public information brochure, the DMS Questionnair and the GRM Guidelines, all published in Khmer language were districbuted to the participants. The PIB that also included entitlements, GRM procedures and GRC focal points and the DMS Questionnaire was read out and explained to the participants in both PCMs. The TL of the IRC-WG encouraged the participants to read and familiarize with the updated PIB, entitlements and the GRM procedures. The participants were informed that the GRM was established at all levels and operational to address their issues, concerns and grievances arising from the subprojects. During house-to-house DMS, the updated PIB and the DMS Questionnaire was read out and explianed to individual AHs. At the end of the discussions, the TL of the IRC-WG requested participants to ask questions and seek clarifications on any matters regarding the presentation and discussions on land Acquisition and Involuntary Resettlement and DMS activities.

Table below summarizes the key questions/concerns raised by the participants with responses.

Summary of Key Questions/Concerns Raised by Participants and Responses

No.	Questions/Discussion Point	Response
Chrok Mtes Commune		
1	Will the subproject give compensation when the waste is burrnt in the street in front of her house?	Any waste buried in front of the house do not receive ccompensation.

2	During transportation the waste trash OFTEN falls off from the trucks on the road and the sewage flows and creates very unpleasant conditions.	Please register this concern with your village or commune chief for them to address with the garbage collection and disposal company or you can directly address the issue with the garbage collection and disposal company
Bati Commune		
3	Raised concern to build the canal next to the 4m wide that affects her fence and property.	It was explained to her that if the fences and property are affected, they will be measured and compensated at prevailing market price.
4	My land is in dispute, does not have a land title. Will I get compensation for non-ownership of the land?	If the land is affected, the ownership and title status will be discussed with the Cadastral Office and compensation decided. If the land is cultivated, you will receive compensation, you will receive compensation for loss of land use.

After the question and answer session, the TL of the IRC-WG informed the participants that the next stage is to start the DMS and requested all the AHs to be present for consultation and measurements.

Seen and approved
By Chairman of the meeting



Youk Bunheng

Minute taker



Chhai Vylam

Attendance List
at the PCMs on 19 June 2024

No.	Name	Sex	Village	Telephone	Thumbprint
PCM at Chrok Mtes commune					
1	Ti Srey Leak	F	Prey Tob	097 7250427	
2	Touch Sapoeurn	F	Prey Tob	097 72150315	
3	Chuk Chetra	M	Prey Tob	0977899263	
4	Prak Sarab	M	Chrok Mtes		
5	Kim Sakhorn	M	Prey Tob	088 9261008	
6	Pech Sarem	F	Prey Tob	097 4600440	
7	Chan Net	F	Prey Tob	071 9917696	
8	Hout Sabol	F	Prey Tob		
9	Pov Sopheak	F	Prey Tob		
10	Chan Sarun	M	Chrok Mtes	088 9486815	
11	Ba Nol	M	Prey Tob	068 9363936	
12	Thorn Chanpenh	M	Prey Tob		
13	Sous Sina	F	Prey Tob	090 811732	
14	Teom Sorn	F	Prey Tob	088 4942653	
15	Chea Veasna	M	Chrok Mtes	097 2661443	
16	Soam Navy	F	Prey Tob	088 9227352	
17	Noun Chanthy	F	Prey Tob	097 9889788	
18	Chan Chany	M	Prey Tob	0974441134	
19	Roath Sady	M	Prey Tob	071 9444982	
20	Preang Vina	M	Prey Tob	031 9788899	
21	Keo Pov Chantha	F	Prey Tob	097 969674965	
22	Shek Muny	M	Chrok Mtes	088 3718486	
23	Em Rithy	F	Prey Tob	088 8163006	
PCM at Bati Commune					
1	Chheung Rady	M	Chrok Liev	097 982 2106	
2	Minh Kheang	M	Chrok Liev	097 289 99508	
3	Chan Dara	M	Ta Pov	088 834 3330	
4	Pov Run	M	Ta Pov	097 767 5568	
5	Meas Lorn	M	Thnanh		
6	Meas Suon	M	Thnanh		
7	Morn Tuth	M	Thnanh	097 889 3100	
8	Chan Sopha	F	Thnanh	067 393 538	
9	Chum Ravireak	M	Ta Pov	097 454 3678	
10	Sok Yeung	M	Ta Pov		
11	Meas Sopheak	M	Thnanh	088 932 7802	
12	Song Vina	M	Thnanh	088 244 4442	
13	Heng Pha	M	Thnanh	097 810 9426	

Attendance List in Khmer

PCM at Chrok Mtes Commune

ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ

គណៈកម្មការអន្តរាគ្គស្ថាន
អន្តរាគ្មានដោះស្រាយជម្លោះ

19/06/2029

បញ្ជីអ្នកចូលរួមក្នុងការសម្រេចចិត្តរបស់គណៈកម្មការអន្តរាគ្មានដោះស្រាយជម្លោះ

ល.រ	ឈ្មោះ	ភេទ	អង្គភាព	តួនាទី	ស្នាមមេដៃ
1	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	097725008	
2	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0977215035	
3	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0977299263	
4	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ		
5	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0977261008	
6	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0977600440	
7	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0977217886	
8	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ		
9	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ		

10	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0889186815	
11	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0889163226	
12	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ		
13	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	090811731	
14	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0889424653	
15	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0972661448	
16	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0889227351	
17	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0972889788	
18	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0974441174	
19	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	097444082	
20	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	097288899	
21	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0972674965	
22	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0889378486	
23	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	088963006	

PCM at Bati Commune

ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ

គណៈកម្មការអន្តរាគ្គស្ថាន
អន្តរាគ្មានដោះស្រាយជម្លោះ

បញ្ជីអ្នកចូលរួមក្នុងការសម្រេចចិត្តរបស់គណៈកម្មការអន្តរាគ្មានដោះស្រាយជម្លោះ

ល.រ	ឈ្មោះ	ភេទ	អង្គភាព	តួនាទី	ស្នាមមេដៃ
1	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	097222106	
2	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0972899508	
3	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0889343330	
4	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	097275568	
5	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	/	
6	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	/	
7	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0978923100	
8	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	067993538	
9	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	097464608	

10	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ		
11	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	088922802	
12	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	0882444442	
13	គ្រីស្ទ	ប្រុស	ស្រុកស្រែចម្ការ	097109426	
14					
15					
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18					
19					
20					
21					
22					

Photos During Public Consultation Meeting

Chrok Mtes Commune

Date: 19 June 2024, Time: 9:00 am



Bati Commune

Date: 19 June 2024, Time: 3:00 pm



Annex 7: Establishment of the Provincial Grievance Redress Committee (Bavet)



លេខ: ០៣៧/២៤.៣.២០

**ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ**

**សេចក្តីសម្រេច
នីតិ**

**ការកែសម្រួលសមាសភាពគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ាថ្នាក់ខេត្ត
សម្រាប់ដំណើរការដោះស្រាយនូវរាល់បណ្តឹងផ្សេងៗ របស់ប្រជាពលរដ្ឋដែលរងផលប៉ះពាល់
ដោយសារគម្រោងអភិវឌ្ឍន៍ដីក្រុងក្នុងតំបន់នៅ ក្រោមកម្ចីតណានសម្បទានពី
ធនាគារអភិវឌ្ឍន៍អាស៊ី (ADB)**

អតិថិជន នៃគណៈអភិបាលខេត្តស្វាយរៀង

- បានឃើញរដ្ឋធម្មនុញ្ញ នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០៨២៣/១៩៨១ ចុះថ្ងៃទី២២ ខែសីហា ឆ្នាំ២០២៣ ស្តីពីការតែងតាំងរាជរដ្ឋាភិបាល នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០២២៤/២០៥ ចុះថ្ងៃទី២១ ខែកុម្ភៈ ឆ្នាំ២០២៤ ស្តីពីការតែងតាំងបំពេញបន្ថែមសមាសភាពរាជរដ្ឋាភិបាល នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រមលេខ នស/រកម/០៦១៨/០១២ ចុះថ្ងៃទី២៨ ខែមិថុនា ឆ្នាំ២០១៨ ដែល ប្រកាសឱ្យប្រើច្បាប់ ស្តីពីការរៀបចំ និងការប្រព្រឹត្តទៅ នៃគណៈរដ្ឋមន្ត្រី
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០៨២៣/ ចុះថ្ងៃទី២៣ ខែសីហា ឆ្នាំ២០២៣ ត្រាស់បង្គាប់តែងតាំងអភិបាល នៃគណៈអភិបាលខេត្តស្វាយរៀង
- បានឃើញអនុក្រឹត្យលេខ ២១៦ អនក្រ.បក ចុះថ្ងៃទី១៤ ខែធ្នូ ឆ្នាំ២០០៩ ស្តីពីតួនាទី ភារកិច្ច និងទំនាក់ទំនងការងាររបស់ក្រុមប្រឹក្សា គណៈអភិបាលខេត្ត ក្រុមប្រឹក្សា គណៈអភិបាលក្រុង ក្រុមប្រឹក្សា គណៈអភិបាលស្រុក
- យោងសំណើលេខ ១១០៥៦ សហវ.អជជ ចុះថ្ងៃទី២១ ខែវិច្ឆិកា ឆ្នាំ២០២២ របស់ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
- យោងសេចក្តីសម្រេចលេខ ០៤៩/២៤ សសរ ចុះថ្ងៃទី១២ ខែមេសា ឆ្នាំ២០២៤ របស់រដ្ឋបាលខេត្តស្វាយរៀង
- យោងតាមការចាំបាច់របស់រដ្ឋបាលខេត្ត

សម្រេច

ប្រការ១._

ត្រូវបានកែសម្រួលសមាសភាពគណៈកម្មការដោះស្រាយបណ្តឹងតវ៉ាថ្នាក់ខេត្ត សម្រាប់ដំណើរការដោះស្រាយនូវរាល់បណ្តឹងផ្សេងៗ របស់ប្រជាពលរដ្ឋដែលរងផលប៉ះពាល់ ដោយសារគម្រោងអភិវឌ្ឍន៍ដីក្រុងក្នុងតំបន់នៅ ក្រោមកម្ចីតណានសម្បទានពីធនាគារអភិវឌ្ឍន៍អាស៊ី (ADB) ដែលមានដូចខាងក្រោម៖

27/0

១.ឯកឧត្តម ម៉េង ពោធិ៍សា	អភិបាលខេត្ត	ប្រធាន
២.លោក សុខ រស់	អភិបាលរងខេត្ត	អនុប្រធាន
៣.លោក ជូ សុខី	ប្រធានមន្ទីរសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុខេត្ត	អនុប្រធាន
៤.លោក ម៉ិញ សុំចាន់	ប្រធានមន្ទីរប្រចាំដែនដី នគរូបនីយកម្ម សំណង់ និងសុរិយោដីខេត្ត	អនុប្រធាន
៥.ប្រធានមន្ទីរសាធារណការ និងដឹកជញ្ជូនខេត្ត		សមាជិក
៦.លោក លឹម សៀងហេង	អភិបាលក្រុងបាវិត	សមាជិក
៧.លោក អ៊ុំ សាវ៉ាត	នាយកទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
៨.លោក ឆ័យ អ៊ុយ	ប្រធានការិយាល័យគ្រប់គ្រងការអភិវឌ្ឍ និងសំណង់សាលាខេត្ត	សមាជិក
៩.លោក សុខ សំណាង	អនុប្រធានការិ.សេដ្ឋកិច្ច និងសង្គមកិច្ចសាលាខេត្ត	សមាជិក
១០.លោក ឃៀង សុខុន	អង្គការអភិវឌ្ឍន៍សេដ្ឋកិច្ចកសិកម្មជា(ស៊ីហ្វីត)	សមាជិក

ប្រការ២._

គណៈកម្មការនេះ មានភារកិច្ចដោះស្រាយបណ្តឹងតវ៉ារបស់ប្រជាពលរដ្ឋអ្នករងផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ ក្រោមកម្ចីតណាមានសម្បទានពីធនាគារអភិវឌ្ឍន៍អាស៊ី (ADB)។

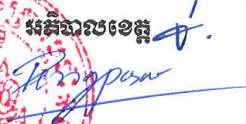
ប្រការ៣._

បទប្បញ្ញត្តិទាំងឡាយណាដែលមានខ្លឹមសារផ្ទុយនឹងសេចក្តីសម្រេចនេះ ត្រូវទុកជានិរាករណ៍។

ប្រការ៤._

នាយករដ្ឋបាលសាលាខេត្ត ប្រធានមន្ទីរ-អង្គភាពពាក់ព័ន្ធ អភិបាលក្រុង ស្រុក ពាក់ព័ន្ធ និងឯកឧត្តម លោក ដូចមានឈ្មោះក្នុងប្រការ១ខាងលើ ត្រូវអនុវត្តសេចក្តីសម្រេចនេះឱ្យមានប្រសិទ្ធភាពខ្ពស់ចាប់ពីថ្ងៃចុះហត្ថលេខាតទៅ។

ថ្ងៃ ចន្ទ ១២ ខែ កញ្ញា ឆ្នាំ ២០២៤
ធ្វើនៅ ភ្នំពេញ ថ្ងៃទី ០៣ ខែ មិថុនា ឆ្នាំ ២០២៤

អគ្គនាយកខេត្ត



ម៉េង ពោធិ៍សា

កន្លែងទទួល៖

- ក្រសួងមហាផ្ទៃ
- ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
- ក្រសួងរៀបចំដែនដី នគរូបនីយកម្ម និងសំណង់
(ដើម្បីគោរពជូនប្រជាពលរដ្ឋ)
- ដូចប្រការ៤ (ដើម្បីអនុវត្ត)
- ឯកសារ កាលប្បវត្តិ

**Kingdom of Cambodia
Nation Religion King**

The Administration of Svay Rieng
No. 076/24 SSR

**Decision on
Adjustment of the composition of the provincial grievance redressal committee for
resolving grievances of people affected by LCIP under loans from the Asian
Development Bank (ADB)**

Governor of Svay Rieng Provincial Board of Governors

- As Seen the Constitution of the Kingdom of Cambodia
- As Seen the Royal Decree No. NS / RKOT / 0823/1981 dated 22 August 2023 on the appointment of the Royal Government of the Kingdom of Cambodia
- As Seen the Royal Decree No. NS / RKOT / 0224/205 dated 21 February 2024 on the appointment of additional members of the Royal Government of the Kingdom of Cambodia
- As Seen Royal Kram No. NS / RKAM / 0618/012 dated 28 June 2018 which promulgates the Law on the Organization and Functioning of the Council of Ministers
- As Seen the Royal Decree No. NS / RKOT / 0823 / dated 23 August 2023 ordering the appointment of the Governor of Svay Rieng Provincial Board of Governors
- As Seen the Sub-Decree No. 216 dated 14 December 2009 on the Roles, Duties and Labor Relations of the Provincial Board of Governors, the Municipal Board of Governors, and the District Board of Governors.
- Referred to Proposal No. 11056 MEF-ADP dated 21 November 2022 of the Ministry of Economy and Finance
- Referred to Decision No. 049/24 Pillar dated 12 April 2024 of Svay Rieng Provincial Administration
- According to the need of the provincial administration

Decided

Article 1:

The composition of the provincial grievance redressal committee for the process of dismissal of me, including various complaints of people affected by LCIP under loans from the Asian Development Bank, has been adjusted as follows:

No.	Name	Title	PGRC position assigned
1	H.E. Peng Po Sa	Provincial Governor	Chair
2	Mr. Sok Ros	Deputy Governor	Vice Chair
3	Mr. Chou Sothy,	Director of Provincial DEF	Vice Chair
4	Mr. Menh Sichay	Director of Land Management, Urban Planning and Construction Department	Vice Chair
5	Mr. Yon Raksmeay	Director of Public Works and Transport Department	Member
6	Mr. Lem Seangheng	Governor of Bavet city	Member
7	Mr. Oum Sophat	Director of Provincial Inter-sectoral Department	Member

8	Mr. Nhem Uy	Chief of Provincial Development and Construction Office	Member
9	Mr. Sok Samnang,	Deputy Chief of Economic and Social Affairs office	Member
10	Mr. Ream Sophon	Cambodian Farmer Economic Development Organization (SEFIT)	Member

Article 2:

The commission is tasked with resolving the grievances of people affected by desirable urban development projects under a concessional loan from the Asian Development Bank (ADB).

Article 3:

Any provisions that are contrary to this decision shall be repealed.

Article 4:

The Director of Administration of the Provincial Hall, the Director of the relevant departments and units, the relevant District Governors and Brigadier General as mentioned in Article 1 above, shall implement this decision effectively from the date of signing.

Svay Rieng, 03 June 2024
Governor

Peng Po Sa

Reception:

- Ministry of Interior
- Ministry of Economy and Finance
- Ministry of Land Management, Urban Planning and Construction (To be informed)
- As in Article 4 (to apply)
- Chronological documents

Annex 8: Establishment of the Provincial Resettlement Sub-Committee and Provincial Resettlement Sub-Committee Working Group



រដ្ឋបាលខេត្តស្វាយរៀង

លេខ៖ ០៣៧/២៤.៤.២០១២

**ព្រះរាជាណាចក្រកម្ពុជា
ជាតិ សាសនា ព្រះមហាក្សត្រ**



**សេចក្តីសម្រេច
ស្តីពី**

**ការកែសម្រួលសមាសភាពអនុគណៈកម្មការខេត្ត និងក្រុមការងារដើម្បីចុះពិនិត្យ និងធ្វើការអនុវត្ត
ចាស់រចនាសម្ព័ន្ធ និងចាស់តម្លៃលើផលប៉ះពាល់ដល់សំណង់ផ្ទះសម្បែង ដីធ្លី និងទ្រព្យសម្បត្តិផ្សេងៗ
របស់ប្រជាពលរដ្ឋ ដែលរងផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ទីក្រុងតូចៗចង្រ្កាបសំរោង
ក្រោមកម្មវិធីនានាសម្រាប់ការអភិវឌ្ឍន៍អាស៊ី (ADB)**

អភិបាល នៃគណៈអភិបាលខេត្តស្វាយរៀង

- បានឃើញរដ្ឋធម្មនុញ្ញ នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០៨២៣/១៩៨១ ចុះថ្ងៃទី២២ ខែសីហា ឆ្នាំ២០២៣ ស្តីពីការតែងតាំងរាជរដ្ឋាភិបាល នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០២២៤/២០៥ ចុះថ្ងៃទី២១ ខែកុម្ភៈ ឆ្នាំ២០២៤ ស្តីពីការតែងតាំងបំពេញបន្ថែមសមាសភាពរាជរដ្ឋាភិបាល នៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រមលេខ នស/រកម/០៦១៨/០១២ ចុះថ្ងៃទី២៨ ខែមិថុនា ឆ្នាំ២០១៨ ដែលប្រកាសឱ្យប្រើច្បាប់ ស្តីពីការរៀបចំ និងការប្រព្រឹត្តទៅ នៃគណៈរដ្ឋមន្ត្រី
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០៨២៣/ ចុះថ្ងៃទី២៣ ខែសីហា ឆ្នាំ២០២៣ ក្រាស់បង្គាប់តែងតាំងអភិបាល នៃគណៈអភិបាលខេត្តស្វាយរៀង
- បានឃើញអនុក្រឹត្យលេខ ២១៦ អនក្រ.បក ចុះថ្ងៃទី១៤ ខែធ្នូ ឆ្នាំ២០០៩ ស្តីពីតួនាទី ភារកិច្ច និងទំនាក់ទំនងការងាររបស់ក្រុមប្រឹក្សា គណៈអភិបាលខេត្ត ក្រុមប្រឹក្សា គណៈអភិបាលក្រុង ក្រុមប្រឹក្សា គណៈអភិបាលស្រុក
- យោងសំណើលេខ ១១០៥៣ សហវ.អជជ ចុះថ្ងៃទី២១ ខែវិច្ឆិកា ឆ្នាំ២០២២ របស់ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
- យោងសេចក្តីសម្រេចលេខ ០៤៨/២៤ សសរ ចុះថ្ងៃទី១២ ខែមេសា ឆ្នាំ២០២៤ របស់រដ្ឋបាលខេត្តស្វាយរៀង
- យោងតាមការចាំបាច់របស់រដ្ឋបាលខេត្ត

សម្រេច

ប្រការ១._

ត្រូវបានកែសម្រួលសមាសភាពអនុគណៈកម្មការខេត្ត និងក្រុមការងារដើម្បីចុះពិនិត្យ និងធ្វើការអនុវត្តចាស់រចនាសម្ព័ន្ធ និងវាយតម្លៃលើផលប៉ះពាល់ដល់សំណង់ផ្ទះសម្បែង ដីធ្លី និងទ្រព្យសម្បត្តិផ្សេងៗរបស់ប្រជាពលរដ្ឋ ដែលរងផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ទីក្រុងតូចៗចង្រ្កាបសំរោងនៅ ក្រោមកម្មវិធីនានាសម្រាប់ការអភិវឌ្ឍន៍អាស៊ី (ADB) ដែលមានដូចខាងក្រោម៖



១.លោក សុខ រត់	អភិបាលរងខេត្ត	ប្រធាន
២.លោក ជូ សុផិ	ប្រធានមន្ទីរសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុខេត្ត	អនុប្រធាន
៣.ប្រធានមន្ទីរសាធារណការ និងដឹកជញ្ជូនខេត្ត		អនុប្រធាន
៤.លោក តេ គង់	នាយករងរដ្ឋបាលសាលាខេត្ត	សមាជិក
៥.លោកឧត្តមសេនីយ៍ទោ ពេជ្រ វិរៈ	ស្នងការនគរបាលខេត្ត	សមាជិក
៦.លោកឧត្តមសេនីយ៍ត្រី សុខា វណ្ណៈ	មេបញ្ជាការកងរាជអាវុធហត្ថខេត្ត	សមាជិក
៧.លោក សឹម សៀងហេង	អភិបាលក្រុងបាវិត	សមាជិក
៨.លោក ម៉ីព្យូ ស៊ីហាយ	ប្រធានមន្ទីររៀបចំដែនដី នគរូបនីយកម្ម សំណង់ និងសុរិយោដីខេត្ត	សមាជិក
៩.លោក កើត សាញ៉ែន	ប្រធានមន្ទីរបរិស្ថានខេត្ត	សមាជិក
១០.លោក អ៊ុំ សាដាត	នាយកទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក

ប្រការ២._

អនុគណៈកម្មការនេះ មានភារកិច្ច ដូចខាងក្រោម៖

- សហការសម្របសម្រួលជាមួយគណៈកម្មការអន្តរក្រសួង និងអ្នកពាក់ព័ន្ធសំដៅបម្រើឱ្យដំណើរការចុះអង្កេតវាស់វែង និងវាយតម្លៃផលប៉ះពាល់ដីធ្លី សំណង់ ផ្ទះ ដើមឈើហូបផ្លែ។ល។របស់ប្រជាពលរដ្ឋ ដែលរងផលប៉ះពាល់ដោយសារគម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ
- ត្រួតពិនិត្យពិគ្រោះយោបល់ជាមួយប្រជាពលរដ្ឋ និងអ្នកពាក់ព័ន្ធ អំពីផលប៉ះពាល់ផ្សេងៗដើម្បីធ្វើការសម្របសម្រួលដោះស្រាយបានល្អប្រសើរ
- សហការសម្របសម្រួលដំណើរការអនុវត្តសកម្មភាពពាក់ព័ន្ធផ្សេងៗទៀតឱ្យបានល្អប្រសើរ
- ធ្វើរបាយការណ៍ អំពីលទ្ធផលការងារដោះស្រាយផលប៉ះពាល់ដោយសារគម្រោងខាងលើគោរពជូន ឯកឧត្តមអភិបាល នៃគណៈអភិបាលខេត្ត។

ប្រការ៣._

ត្រូវបានបង្កើតក្រុមការងារមួយក្រុម ជានួយការឱ្យអនុគណៈកម្មការដោះស្រាយផលប៉ះពាល់ខេត្ត សម្រាប់ចូលរួមសហការជាមួយក្រុមការងារគណៈកម្មការអន្តរក្រសួង ដែលមានសមាសភាពដូចខាងក្រោម៖

១.លោក តេ គង់	នាយករងរដ្ឋបាលសាលាខេត្ត	ប្រធាន
២.លោក យ៉ង់ រស្មី	អនុប្រធានមន្ទីរសាធារណការ និងដឹកជញ្ជូនខេត្ត	សមាជិក
៣.លោកឧត្តមសេនីយ៍ត្រី អ៊ុំគ សំអឿង	ស្នងការរងនគរបាលខេត្ត	សមាជិក
៤.លោកវរសេនីយ៍ទោ ឡឹក ចំរើន	មេបញ្ជាការរងកងរាជអាវុធហត្ថខេត្ត	សមាជិក
៥.លោក គឹម សាមិត្ត	អនុប្រធានមន្ទីរសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុខេត្ត	សមាជិក
៦.លោក អ៊ុំ សុភក្តិ	អនុប្រធានមន្ទីររៀបចំដែនដី នគរូបនីយកម្ម សំណង់ និងសុរិយោដីខេត្ត	សមាជិក
៧.លោក អ៊ុំ សាដាត	នាយកទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក
៨.លោក ម៉ុង សាមិន	នាយករងទីចាត់ការអន្តរវិស័យសាលាខេត្ត	សមាជិក



៩.លោក **ស្រី អ៊ុយ** ប្រធានការិយាល័យគ្រប់គ្រងការអភិវឌ្ឍ និងសំណង់សាលាខេត្ត សមាជិក
 ១០.លោក **ហ៊ុំ ចិន្តា** ប្រធានការិយាល័យរៀបចំផែនដី នគរូបនីយកម្ម សំណង់
 និងភូមិបាលក្រុងបារាំង សមាជិក

ប្រការ៤._

- ក្រុមការងារនេះ មានភារកិច្ច ដូចខាងក្រោម៖
- ជាជំនួយការផ្ទាល់អោយអនុគណៈកម្មការខេត្ត
 - ចូលរួមសហការជាមួយក្រុមការងារអន្តរក្រសួងក្នុងដំណើរការវាស់វែង ស្រង់ទិន្នន័យលំអិត អំពីផលប៉ះពាល់ ដីធ្លី សំណង់ ផ្ទះ និងទ្រព្យសម្បត្តិផ្សេងៗរបស់ប្រជាពលរដ្ឋដោយសារ គម្រោងអភិវឌ្ឍន៍ទីក្រុងគួរឱ្យចង់រស់នៅ
 - បូកសរុបរបាយការណ៍អំពីលទ្ធផលការងារជូនអនុគណៈកម្មការខេត្តនូវគ្រប់សកម្មភាពដែល អនុវត្តបាន។

ប្រការ៥._

បទប្បញ្ញត្តិទាំងឡាយណាដែលមានខ្លឹមសារផ្ទុយនឹងសេចក្តីសម្រេចនេះ ត្រូវទុកជានិរាករណ៍។

ប្រការ៦._

នាយករដ្ឋបាលសាលាខេត្ត ស្នងការនគរបាលខេត្ត មេបញ្ជាការកងរាជអាវុធបាត់ខេត្ត ប្រធាន មន្ទីរ-អង្គភាពពាក់ព័ន្ធ អភិបាលក្រុងស្វាយរៀង ទីចាត់ការអន្តរវិស័យសាលាខេត្ត និងលោក ដូចមាន ឈ្មោះក្នុងប្រការ១ និងប្រការ៣ខាងលើ ត្រូវអនុវត្តសេចក្តីសម្រេចនេះឱ្យមានប្រសិទ្ធភាពខ្ពស់ ចាប់ពីថ្ងៃចុះហត្ថលេខាតទៅ។ ៤៧

ថ្ងៃ ពុធ ១២ ខែ ពិសាខ ឆ្នាំរោង ឆស័ក ព.ស.២៥៦៨
 ធ្វើនៅស្វាយរៀង ថ្ងៃទី ០៣ ខែ ៦ ៩៧ ឆ្នាំ២០២៤

កន្លែងទទួល៖

- ក្រសួងមហាផ្ទៃ
- ក្រសួងសេដ្ឋកិច្ច និងហិរញ្ញវត្ថុ
- ក្រសួងសាធារណការ និងដឹកជញ្ជូន
- ក្រសួងរៀបចំផែនដី នគរូបនីយកម្ម និងសំណង់
- (ដើម្បីគោរពជូនជ្រាប)
- ដូចប្រការ៦ (ដើម្បីអនុវត្ត)
- ឯកសារ កាលប្បវត្តិ

អភិបាលខេត្ត

ម៉េង ពោធិ៍សា

Kingdom of Cambodia

Nation Religion King

3

The Administration of Svay Rieng

No. 077/24 SSR

DECISION

On

Adjustment of the composition of the Provincial Resettlement Sub-committee in implementing Resettlement of Livable Cities Investment Project

3

Governor of Svay Rieng Provincial Board of Governors

- As seen the Constitution of the Kingdom of Cambodia
- As seen the Royal Decree No. NS/RKOT/0823/1981 dated 22 August 2023 on the appointment of the Royal Government of the Kingdom of Cambodia
- As seen the Royal Decree No. NS/RKOT/0224/205 dated 21 February 2024 on the appointment of additional members of the Royal Government of the Kingdom of Cambodia
- As seen the Royal Kram No. NS/RKAM/0618/012 dated 28 June 2018 which promulgates the Law on the Organization and Functioning of the Council of Ministers
- As seen the Royal Decree No. NS/RKOT/0823 dated 23 August 2023 ordering the appointment of the Governor of Svay Rieng Provincial Board of Governors
- As seen the Sub-Decree No. 216 dated 14 December 2009 on the Roles, Duties and Labor Relations of the Provincial Board of Governors, the Municipal Board of Governors, and the District Board of Governors
- Refer to Proposal No. 11053 MEF-ADP dated 21 November 2022 of the Ministry of Economy and Finance
- Referred to Decision No. 048/24 Pillar dated 12 April 2024 of Svay Rieng Provincial Administration
- Referred to the necessary needs of Provincial Administration

DECISION

Article 1: Establishment of Provincial Resettlement Sub-Committee for the Bavet Subprojects under the Livable Cities Investment Project as detail below:

No.	Name	Title	PGRC position assigned
1	Mr. Sok Ros	Deputy Provincial Governor	Chair
2	Mr. Chou Sothy	Director of Economy and Finance Department	Vice Chair
3	Mr. Yon Raksmeay	Director of Public Works and Transport Department	Vice Chair
4	Mr. Phe Kong	Deputy Director of Provincial Administration	Member
5	Mr. B.G. Pich Vireak	Provincial Police Commissioner	Member
6	Mr. B.G. Sokha Raneath	Provincial Commander of the Gendarmerie	Member
7	Mr. Lem Seangheng	Governor of Bavet city	

8	Mr. Menh Sichay	Director of Land Management, Urban Planning and Construction Department	Member
9	Mr. Koert Savoeun	Director of Environment Department	Member
10	Mr. Oum Saphat	Director of Provincial Inter-sectoral Department	Member

Article 2: This sub-committee has responsibility as below:

- To cooperate with Inter-Ministerial Resettlement Committee (IRC) and relevant people to assess impact of the affected structures, house, land, fruit trees and other assets.
- To consult with Affected Persons and relevant people on other impacts in order to facilitate the resettlement.
- To coordinate the process of implementing various related activities
- To prepare report of the resettlement outcome to Provincial Governor

Article 3: Establish Working Group to assist provincial sub-committee to fulfill the work as below:

No.	Name	Title	Position assigned
1	Mr. Phe Kong	Deputy Director of Provincial Administration	Chair
2	Mr. Yon Reaksmeay	Director of Public Works and Transport Department	Vice Chair
3	Mr. B.G. Ouk Someang	Deputy Provincial Police Commissioner	Member
4	Mr. B.G Lek Chomreun	Deputy Provincial Commander of the Gendarmerie	Member
5	Mr. Kem Samith	Deputy Director of Economy and Finance Department	Member
6	Mr. Ou Sopheakdey	Deputy Director of Land Management, Urban Planning and Construction Department	Member
7	Mr. Oum Saphat	Director of Provincial Inter-sectoral Department	Member
8	Mr. Bun Saborn	Deputy Director of Provincial Inter-sectoral Department	Member
9	Mr. Nhem Uy	Chief of Provincial Development and Construction Office	Member
10	Mr. Mom Chenda	Chief of Land Management, Urban Planning and Construction Office	Member

Article 4: This working group has responsibility as below:

- To assist the sub-committee
- To coordinate with IRC-WG to assess impact of the affected structures, house, land, fruit trees and other assets.
- To conclude the report of the resettlement outcome to sub-committee

Article 5: Any decision that is contrary to this decision shall be abolished.

Article 6:

The Director of Provincial Administration, Director of relevant departments and units and Brigadier General as mentioned in **Article 1** shall be effective implemented from the date of signing.

Siem Reap, 03 June 2024

Governor

Peng Po Sa

Reception:

- Ministry of Interior,
- Ministry of Economy and Finance,
- Ministry of Land Management,
Urban Planning and Construction
(To be informed)
- As in article 6 (to apply)
- Chronological documents

Annex 9: Internal Monitoring indicators

Purpose	Activities	Monitoring Indicators
1. Identification of compensation recipients	1.1 Verify the list of compensation recipients against eligibility criteria for compensations	1.1.1 Number of persons in the list of compensation recipients, who do not meet eligibility criteria (included by mistake)
	1.2 Identification of persons, who may claim eligibility for compensation, but are not included in the lists of compensation recipients. Separate verification should be performed on each type of compensation	1.2.1 Number of persons who meet the criteria, but are not included in the list of compensation recipients (excluded by mistake)
2. Verification of affected area	2.1 Confirmation of the areas of affected assets (including land plots and real property) against the RP	2.1.1 Area of land subject to acquisition, for which compensation has been paid
		2.2.1 Area of structures subject to acquisition for which compensation has been paid
3. Verification of compensation amount, processing and payment	3.1 Examination of financial documents	3.1.1 Number of persons who received compensation in time and in full amount disaggregated by compensation types
4. Verification compensation timeline	4.1 Identification of reasons for which payment of compensations was delayed (e.g. due to the court trial, inheritance issue, etc.)	4.1.1 Number of persons who received compensation with delay, disaggregated by compensation types and reasons of delay; changes in amount of compensation (if any) should also be noted
5. Verification of Consultation and participation	5.1 Determine the level of involvement and identification of reasons of inadequate participation	5.1.1 Number of compensation recipients who participated in consultations and coordination meetings at each stage of land acquisition
		5.2.1 Number of complaints received
	5.2 Examination of grievance cases; analysis of disputes and complaints content, and resolution of conflicts	5.2.2 Number of complaints resolved

Source: BRP, Bavet Subproject, September 2021